

PARLIAMENT OF VICTORIA

Criminal Procedure Bill 2008

TABLE OF PROVISIONS

<i>Clause</i>	<i>Page</i>
CHAPTER 1—PRELIMINARY	1
1 Purposes	1
2 Commencement	3
3 Definitions	3
4 References to Parts	11
CHAPTER 2—COMMENCING A CRIMINAL PROCEEDING	12
PART 2.1—WAYS IN WHICH A CRIMINAL PROCEEDING IS COMMENCED	12
5 How a criminal proceeding is commenced	12
PART 2.2—CHARGE-SHEET AND LISTING OF MATTER	13
6 Commencement of a criminal proceeding in the Magistrates' Court	13
7 Time limits for filing a charge-sheet	14
8 Order for amendment of charge-sheet	14
9 Errors etc. in charge-sheet	15
10 Listing of matter for mention hearing or filing hearing in the Magistrates' Court	16
11 Place of hearing	16
PART 2.3—NOTIFYING ACCUSED OF COURT APPEARANCE	18
Division 1—Summons or warrant to arrest	18
12 Court may issue summons or warrant to arrest	18
13 Summons or warrant to be accompanied by charge-sheet and notice when served	19
14 Police or public official may issue summons	20
15 Contents of summons	20
16 Personal service of summons	21
17 Summons for summary offence may be served by ordinary service	22
18 Informant must nominate address etc. for service of documents	23

<i>Clause</i>	<i>Page</i>
19 Extension of return date if summons not served	23
20 Adjournment of proceeding on application of accused	24
Division 2—Notice to appear	24
21 Police or public official may serve notice to appear	24
22 Notice to appear lapses unless charge-sheet filed within 14 days	25
23 Notice to be given on lapsing	26
24 Preliminary brief to be served if charge-sheet filed	26
25 Non-appearance of accused served with notice to appear	27
26 Notice to appear does not commence proceeding	28
CHAPTER 3—SUMMARY PROCEDURE	29
PART 3.1—WHEN A SUMMARY HEARING MAY BE HELD	29
27 Summary offences	29
28 Indictable offences that may be heard and determined summarily	29
29 When an indictable offence may be heard and determined summarily	30
30 Procedure for indictable offences that may be heard and determined summarily	32
PART 3.2—PROCEDURE BEFORE SUMMARY HEARING	35
Division 1—General	35
31 Court may change place of hearing	35
32 Accused entitled to copy of charge-sheet and particulars	35
33 Unrepresented accused who requires legal advice	35
34 Return of property	36
Division 2—Pre-hearing disclosure of prosecution case	36
35 When preliminary brief is to be served	36
36 How preliminary brief must be served	37
37 Contents of preliminary brief	38
38 Requirements for informant's statement in preliminary brief	40
39 When full brief must be served	41
40 How full brief must be served	42
41 Contents of full brief	42
42 Continuing obligation of disclosure	46
43 Accused may make request for material etc. not provided	47
44 Informant must comply with request or state grounds of refusal	48
45 Grounds on which informant may refuse disclosure	48
46 Accused may apply for order requiring disclosure	50
47 Rules with respect to statements	50
48 Disclosure of address or telephone number of witness	52
49 Informant may place material on database	53

<i>Clause</i>	<i>Page</i>
Division 3—Preliminary disclosure of case of accused	55
50 Expert evidence	55
51 Alibi evidence	55
52 Offence to communicate with alibi witness	57
Division 4—Mention hearing and contest mention hearing	58
53 Mention hearing	58
54 Summary case conference	58
55 Contest mention hearing	60
PART 3.3—SUMMARY HEARING	62
Division 1—Joint or separate hearing of charges	62
56 Multiple charges on single charge-sheet or multiple accused named on single charge-sheet	62
57 Joint hearing of charges on separate charge-sheets	62
58 Order for separate hearing	62
Division 2—Diversion program	63
59 Adjournment to undertake diversion program	63
Division 3—Sentence indication	65
60 Court may give sentence indication	65
61 Effect of sentence indication	66
Division 4—Entering a plea	67
62 Charge to be read or explained to accused before plea	67
63 Legal practitioner may enter plea on behalf of accused	67
64 Refusal to plead	67
Division 5—Opening addresses	68
65 Parties may give opening addresses	68
Division 6—Case for the accused	68
66 Accused entitled to respond after close of prosecution case	68
67 Election when accused is legally represented	68
68 Election when accused is not legally represented	69
69 Procedure for joint hearings if no case submission made	69
70 Questioning to determine proper course of proceeding	70
71 Opening address of accused at beginning of case for the accused	70
72 Evidential burden on accused for exceptions etc.	71

<i>Clause</i>	<i>Page</i>
Division 7—Closing addresses	71
73 Prosecutor's closing address	71
74 Closing address of the accused	72
75 Supplementary address by prosecutor	72
Division 8—Determination of charge	73
76 Option of finding of attempt	73
Division 9—Criminal record	73
77 Criminal record	73
78 Proof of previous convictions by criminal record	74
Division 10—Non-appearance of party	74
79 Non-appearance of informant	74
80 Non-appearance of accused charged with summary offence	75
81 Non-appearance of accused charged with indictable offence	76
82 Non-appearance of corporate accused charged with indictable offence	76
83 Admissibility of evidence in absence of accused where full brief served	77
84 Admissibility of evidence in absence of accused where preliminary brief served	78
85 Non-appearance of accused— Infringements Act 2006	79
86 Proof of criminal record in absence of accused	80
87 Limitations on sentencing in absence of accused	81
PART 3.4—REHEARING	83
88 Right to apply for rehearing	83
89 Notice of intention to apply for rehearing	83
90 Service of notice	83
91 Stay of sentence etc.	84
92 Court may order rehearing	85
93 Failure to appear on application	85
94 Automatic rehearing in certain cases	85
CHAPTER 4—COMMITTAL PROCEEDING	86
PART 4.1—PRELIMINARY	86
95 Definition	86
96 When a committal proceeding must be held	86
97 Purposes of a committal proceeding	86
98 When a committal proceeding commences	87
99 Time limit for determining certain committal proceedings for a sexual offence	87
100 Hearings in a committal proceeding and attendance of accused	88

<i>Clause</i>	<i>Page</i>
PART 4.2—FILING HEARING	90
101 Filing hearing	90
102 Time limit for filing hearing	90
PART 4.3—COMPULSORY EXAMINATION	91
103 Application for order	91
104 Order for compulsory examination hearing	92
105 Notice of compulsory examination order to be served	93
106 Compulsory examination hearing	93
PART 4.4—PRE-HEARING DISCLOSURE OF PROSECUTION CASE	95
107 Informant must serve hand-up brief	95
108 How hand-up brief must be served	95
109 Copy hand-up brief to be filed and forwarded to DPP	96
110 Contents of hand-up brief	96
111 Continuing obligation of disclosure	100
112 Rules with respect to statements	100
113 Rules with respect to recordings	101
114 Disclosure of address or telephone number of witness	102
115 Inspection of exhibits	103
116 Informant may serve and file plea brief	103
117 Contents of plea brief	104
PART 4.5—CASE DIRECTION	106
118 Case direction notice	106
119 Contents of case direction notice	107
120 Late application for leave to cross-examine witness	108
121 Adjournment without appearance of parties	109
122 Compliance with request to copy or inspect items or disclose previous convictions of witness	110
123 No cross-examination of certain witnesses in sexual offence cases	111
124 Leave required to cross-examine other witnesses	111
PART 4.6—COMMITTAL MENTION AND CASE CONFERENCE	114
125 Committal mention hearing	114
126 Time for holding committal mention hearing	114
127 Committal case conference	116

<i>Clause</i>	<i>Page</i>
PART 4.7—COMMITTAL HEARING	117
128 Committal hearing	117
129 Attendance of witnesses	117
130 Giving of evidence by witnesses	118
131 Disclosure of address or telephone number of witness	119
132 Cross-examination of witnesses	120
133 Special rules applicable to sexual offences	120
134 Failure of witness to attend committal hearing	122
135 Court may permit accused to be absent from committal hearing	122
136 Accused who absconds etc. during a committal hearing	123
137 Accused (natural person) absent at close of prosecution case	123
138 Procedure on accused's attendance after absence	124
PART 4.8—EVIDENCE IN COMMITTAL PROCEEDING	125
139 Admissibility of non-oral evidence	125
140 Procedure if accused makes admission of relevant fact or matter	126
PART 4.9—DETERMINATION OF COMMITTAL PROCEEDING	127
141 Determination of committal proceeding where hand-up brief used	127
142 Determination of committal proceeding where plea brief used	128
143 Determination of committal proceeding where accused elects to stand trial	129
144 Procedure before and on committing accused for trial	129
PART 4.10—PROCEDURE AFTER COMMITTAL	132
145 Transfer of summary offences that are related offences on or after committal	132
146 Documents to be forwarded to DPP	132
147 Accused entitled to copies of depositions and exhibits	133
148 Absent corporate accused to be notified of committal	133
PART 4.11—TAKING EVIDENCE AFTER ACCUSED COMMITTED FOR TRIAL	135
149 Application for order that evidence be taken after committal	135
150 Determination of application	135
151 Attendance of witness	136
152 Taking of evidence after committal	137

<i>Clause</i>	<i>Page</i>
PART 4.12—GENERAL	139
153 Special mention hearing	139
154 Non-appearance of corporate accused	139
155 Nature of committal proceeding	140
156 Nothing in Chapter affects certain powers of DPP	140
157 DPP may give directions for release of property tendered in evidence	140
CHAPTER 5—TRIAL ON INDICTMENT	142
PART 5.1—INTRODUCTION	142
158 Application of Chapter	142
PART 5.2—INDICTMENT AND PLACE OF TRIAL	143
159 DPP or Crown Prosecutor may file an indictment	143
160 Choice of Supreme Court or County Court for filing an indictment	143
161 Direct indictment commences criminal proceeding	144
162 Filing of any other indictment does not commence criminal proceeding	144
163 Time limits for filing certain indictments	144
164 Filing of fresh indictment	145
165 Order for amendment of indictment	146
166 Errors etc. in indictment	146
167 Supreme Court may order that accused be tried in County Court or Supreme Court	147
168 Court may transfer certain charges to Magistrates' Court	147
169 Place of hearing of criminal trial	148
170 Multiple charges or multiple accused on single indictment	148
PART 5.3—NOTIFYING ACCUSED OF INDICTMENT	149
171 Copy indictment to be served	149
172 DPP may nominate address etc. for service of documents	149
173 Extra notice for corporate accused	150
174 Compelling attendance when direct indictment filed	150
175 Service of summons	151
176 Warrant to be accompanied by indictment and notice	152
PART 5.4—DISCONTINUING A PROSECUTION	153
177 DPP may discontinue a prosecution without adjudication	153
178 Release from custody on discontinuance of prosecution	154

<i>Clause</i>	<i>Page</i>
PART 5.5—PRE-TRIAL PROCEDURE	155
Division 1—Directions hearings	155
179 Directions hearing	155
180 Accused may be arraigned at a directions hearing	155
181 Powers of court at directions hearing	155
Division 2—Pre-trial disclosure	157
182 Summary of prosecution opening and notice of pre-trial admissions	157
183 Response of accused to summary of prosecution opening and notice of pre-trial admissions	158
184 Intention to depart at trial from document filed and served	159
185 Continuing obligation of disclosure	159
186 Disclosure of address or telephone number of witness	161
187 Previous convictions of witness	162
188 Prosecution notice of additional evidence	163
189 Expert evidence	163
190 Alibi evidence	164
191 Offence to communicate with alibi witness	166
Division 3—Orders	166
192 Power to change place of trial	166
193 Order for separate trial	167
194 Order for separate trial—sexual offences	168
195 Order for separate trial—conspiracy	168
196 Other powers of court not affected	168
197 Order for legal representation for accused	168
198 Order for taking evidence from a witness before trial	170
Division 4—Procedure for pre-trial orders and other decisions	172
199 Court may make orders and other decisions before trial	172
200 Disclosure of pre-trial issues	173
201 Court may decide pre-trial issue without a hearing	173
202 Hearing of application for exclusion of evidence	174
203 Judge at pre-trial hearing need not be trial judge	175
204 Pre-trial orders and other decisions generally binding on trial judge	175
205 Pre-trial orders and other decisions may be applied in new trial	175
206 Procedure if prosecution proposes not to lead evidence	176
PART 5.6—SENTENCE INDICATION	177
207 Court may give sentence indication	177
208 Application for sentence indication	177
209 Effect of sentence indication	178

<i>Clause</i>	<i>Page</i>
PART 5.7—TRIAL	179
Division 1—Preliminary	179
210 When trial commences	179
211 Time limit for commencing trial for offences other than sexual offences	179
212 Time limits for commencing trials for sexual offences	180
213 Powers of trial judge not affected	180
214 Non-appearance of corporate accused at trial	180
Division 2—Arraignment	181
215 Arraignment	181
216 Written pleas of guilty may be accepted	181
217 Arraignment in presence of jury panel	182
218 Special pleas in addition to plea of not guilty	182
219 Plea of guilty to alternative offence	182
220 Form of plea of previous conviction or previous acquittal	183
221 Refusal to plead	183
Division 3—Assisting the jury	183
222 Judge may address jury	183
223 Jury documents	184
Division 4—Opening addresses	185
224 Opening address by prosecutor	185
225 Response of accused to prosecution opening	186
Division 5—Case for the accused	186
226 Accused entitled to respond after close of prosecution case	186
227 Election when accused is legally represented	187
228 Election when accused is not legally represented	187
229 Procedure for joint trials if no-case submission made	188
230 Questioning to determine proper course of proceeding	188
231 Opening address of accused	189
Division 6—Giving of evidence	189
232 Manner of giving evidence	189
233 Introduction of evidence not previously disclosed	190
Division 7—Closing addresses and judge's directions to the jury	191
234 Prosecution closing address	191
235 Closing address of the accused	192
236 Supplementary prosecution address	192
237 Comment on departure or failure	192
238 Judge's directions to the jury	193

<i>Clause</i>	<i>Page</i>
Division 8—Alternative verdicts and discharge of jury from delivering verdict	194
239 Alternative verdicts on charges other than treason or murder	194
240 Judge may order that guilt in respect of alternative offences is not to be determined	194
241 When judge may enter finding of guilty or not guilty	194
PART 5.8—GENERAL	196
Division 1—Hearing of charges for related and unrelated summary offences	196
242 Summary offence related to indictable offence	196
243 Unrelated summary offence	197
Division 2—Criminal record	198
244 Criminal record	198
245 Proof of previous convictions by criminal record	199
Division 3—Powers and obligations	200
246 Attendance of accused at hearings	200
247 Power to extend or abridge time	200
248 Parties must inform Juries Commissioner of certain events	201
249 Counsel required to retain brief for trial	201
250 Complaints about legal practitioners	202
251 Judge at earlier trial not prevented from presiding at later trial	202
252 Offence for corporate accused to fail to appear	203
253 Abolition of grand jury procedure	203
CHAPTER 6—APPEALS AND CASES STATED	204
PART 6.1—APPEAL FROM MAGISTRATES' COURT TO COUNTY COURT	204
Division 1—Appeal by offender	204
254 Right of appeal	204
255 How appeal is commenced	204
256 Determination of appeal	206
Division 2—Appeal by DPP against sentence	206
257 DPP's right of appeal against sentence	206
258 How appeal is commenced	207
259 Determination of DPP's appeal	207

<i>Clause</i>	<i>Page</i>
Division 3—Appeal by DPP—Failure to fulfil undertaking	208
260 DPP's right of appeal—failure to fulfil undertaking	208
261 How appeal is commenced	209
262 Determination of DPP's appeal—failure to fulfil undertaking	209
Division 4—Procedure	210
263 Late notice of appeal deemed to be application for leave to appeal	210
264 Stay of order	210
265 Bail pending appeal	211
266 Abandonment of appeal	211
267 Appellant's failure to appear	213
268 Respondent's failure to appear on appeal by DPP	214
269 One notice of appeal for 2 or more sentences	214
270 Appeal against aggregate sentence	215
271 Appeal to County Court authorised by other Acts	215
PART 6.2—APPEAL FROM MAGISTRATES' COURT TO SUPREME COURT ON A QUESTION OF LAW	216
272 Appeal to Supreme Court on a question of law	216
273 Appeal on question of law precludes appeal to County Court	217
PART 6.3—APPEAL AND CASE STATED FROM COUNTY COURT OR TRIAL DIVISION OF SUPREME COURT TO COURT OF APPEAL	218
Division 1—Appeal against conviction	218
274 Right of appeal against conviction	218
275 How appeal is commenced	218
276 Determination of appeal against conviction	218
277 Orders etc. on successful appeal	219
Division 2—Appeal by offender against sentence	221
278 Right of appeal against sentence imposed by originating court	221
279 How appeal is commenced	221
280 Determination of application for leave to appeal	222
281 Determination of appeal	222
282 Orders etc. on successful appeal	223
283 Right of appeal against sentence of imprisonment imposed by County Court on appeal from Magistrates' Court	223
284 How appeal is commenced	224
285 Determination of appeal	224
286 Orders etc. on successful appeal	225

<i>Clause</i>	<i>Page</i>
Division 3—Crown appeal against sentence	225
287 Right of appeal—inadequate sentence	225
288 How appeal is commenced	226
289 Determination of Crown appeal	226
290 Orders etc. on successful appeal	227
291 Right of appeal—failure to fulfil undertaking	227
292 How appeal is commenced	227
293 Determination of Crown appeal—failure to fulfil undertaking	228
294 Powers of Court of Appeal on successful appeal	228
Division 4—Interlocutory appeal	229
295 Right of appeal against interlocutory decision	229
296 Review of refusal to certify	230
297 When leave to appeal may be given	231
298 How interlocutory appeal is commenced	232
299 Adjournment of trial if leave to appeal given	233
300 Determination of appeal	233
301 Determination of interlocutory appeal to be entered on record	234
Division 5—Case stated for Court of Appeal	234
302 Reservation of question of law	234
303 Adjournment if question of law reserved	235
304 Refusal to reserve question of law	235
305 Case to be stated if question of law reserved	236
306 General powers of Court of Appeal on case stated	236
307 Judgment to be entered on record	236
308 DPP may refer point of law to Court of Appeal	237
Division 6—Status of sentences and orders during appeal period	237
309 Sentence not stayed during appeal period	237
310 Bail pending appeal	238
311 Stay of certain orders during appeal period	238
312 Execution of order for forfeiture or destruction of property	239
Division 7—Powers and procedure	239
313 Extension of time for filing or serving notice of appeal or notice of application for leave to appeal	239
314 Abandonment of appeal	240
315 Powers which may be exercised by a single Judge of Appeal	240
316 Trial judge may be required to provide report on appeal	240
317 Production of documents, exhibits or other things	241
318 Order for examination of compellable witness	241
319 Evidence of competent but not compellable witness	241
320 Reference of question to special commissioner	242
321 New evidence—effect on sentence	242
322 Sentence in absence of offender	243

<i>Clause</i>	<i>Page</i>
323 Bail following appeal	243
324 Warrants	243
325 Ancillary orders of originating court	244
326 Expenses of assessors and special commissioners	244
CHAPTER 7—REFERENCE TO COURT OF APPEAL ON PETITION FOR MERCY	245
327 Reference by Attorney-General	245
CHAPTER 8—GENERAL	246
PART 8.1—CONDUCT OF PROCEEDING	246
328 Appearance	246
329 When accused etc. is required to appear at hearing	246
330 When accused etc. is required to attend hearing	247
331 Power to adjourn proceeding	248
332 Transfer of accused between place of detention and court	249
333 Power to return accused to youth justice centre	250
334 Proceedings against bodies corporate	251
335 Interpreter	252
336 Subpoenas and witness summonses	253
337 Court may act on application or on own motion	253
PART 8.2—SERVICE OF DOCUMENTS	254
338 General rules as to service	254
339 Personal service	254
340 Service on informant or DPP	255
341 Service on company, registered body, incorporated association or other body corporate	257
342 Ordinary service	258
343 Personal service satisfies ordinary service	259
344 Last known place of residence or business	259
345 Order for substituted service	259
346 Who may effect service	259
347 Proof of service	259
PART 8.3—COSTS	261
Division 1—Preliminary	261
348 Right to be heard	261

<i>Clause</i>	<i>Page</i>
Division 2—Costs in summary proceedings and committal proceedings	261
349 Costs in Magistrates' Court	261
350 Notice to appear	262
351 Convicted accused to pay filing fee	262
Division 3—Costs in trials on indictment	263
352 Costs in the Supreme Court and County Court	263
353 Costs order	264
Division 4—Costs on appeal	264
354 Costs on appeal to County Court	264
355 Costs on abandonment of appeal to County Court	265
356 Costs on appeal from Magistrates' Court to Supreme Court on a question of law	266
357 No costs on appeal to Court of Appeal or on new trial	266
Division 5—Legal practitioners	266
358 Costs liability of legal practitioner	266
PART 8.4—MISCELLANEOUS	269
359 Issue of warrant to arrest	269
360 Power to amend when there is a defect or error	269
361 Transfer of charge to court with jurisdiction	270
362 Court may direct that a person be prosecuted for perjury	270
363 Disclosure of material by prosecution	270
364 Court fees not payable by accused	270
365 Supreme Court—limitation of jurisdiction	271
366 Rules of court	271
367 Regulations	271
CHAPTER 9—REPEALS AND CONSEQUENTIAL AND OTHER AMENDMENTS	274
PART 9.1—CRIMES (CRIMINAL TRIALS) ACT 1999	274
368 Repeal	274
PART 9.2—CRIMES ACT 1958	275
369 Amendment of the Crimes Act 1958	275

<i>Clause</i>	<i>Page</i>
PART 9.3—CRIMES (MENTAL IMPAIRMENT AND UNFITNESS TO BE TRIED) ACT 1997	276
370 New section 14A inserted	276
14A Appeal in relation to fitness to plead	276
371 New section 24AA inserted	278
24AA Appeal against mental impairment verdict	278
372 Consequential amendments	280
PART 9.4—MAGISTRATES' COURT ACT 1989	282
373 Joint committals	282
374 Consequential amendments	284
PART 9.5—CHILDREN, YOUTH AND FAMILIES ACT 2005	285
375 Definitions inserted	285
376 New Part 5.1A inserted in Chapter 5	285
PART 5.1A—COMMENCEMENT OF PROCEEDINGS	285
344A Time limits for filing a charge	285
344B Application for extension of time for commencement of proceeding	287
344C Extension of time	288
344D Rehearing	289
377 New section 516A inserted	290
516A Joint committal proceedings	290
PART 9.6—APPEAL COSTS ACT 1998	293
378 New sections 15A, 15B and 15C inserted	293
15A Application for indemnity certificate if interlocutory appeal by accused is successful	293
15B Application for indemnity certificate by respondent if interlocutory appeal by prosecution	294
15C Application for indemnity certificate if case stated for Court of Appeal	295
PART 9.7—SENTENCING ACT 1991	296
379 Repeal	296
380 New section 112A inserted	296
112A Maximum fine for indictable offence heard and determined summarily	296
381 Maximum fine for body corporate	297

<i>Clause</i>	<i>Page</i>
PART 9.8—MISCELLANEOUS AMENDMENTS	298
382 Reclassification of certain offences	298
383 Option of jury trial removed	298
384 Repeal of provisions concerning sentence indications in Supreme Court and County Court	298
385 Repeal of Chapter	299
SCHEDULES	300
SCHEDULE 1—Charges on a Charge-Sheet or Indictment	300
1 Statement of offence	300
2 Statement of particulars	300
3 Statutory offence	300
4 Exceptions, exemptions etc.	301
5 Joinder of charges	301
6 Charge against multiple accused	301
7 Descriptions generally	301
8 Description of persons	302
9 Description of document	302
10 Description of property	302
11 Statement of intent to deceive, injure or defraud	303
12 Perjury, subornation of perjury, etc.	303
13 Names of witnesses to be included on indictment	304
SCHEDULE 2—Indictable Offences that may be Heard and Determined Summarily	305
1 Common law	305
2 Control of Weapons Act 1990	305
3 Crimes Act 1958	305
4 Dangerous Goods Act 1985	309
5 Drugs, Poisons and Controlled Substances Act 1981	310
6 Electricity Industry Act 2000	310
7 Electricity Safety Act 1998	310
8 Environment Protection Act 1970	310
9 Equipment (Public Safety) Act 1994	311
10 Firearms Act 1996	311
11 Food Act 1984	311
12 Gas Industry Act 2001	311
13 Gas Safety Act 1997	311
14 Health Records Act 2001	311
15 Heritage Act 1995	312
16 Infertility Treatment Act 1995	312
17 Information Privacy Act 2000	312
18 Juries Act 2000	312

<i>Clause</i>		<i>Page</i>
19	Major Events (Aerial Advertising) Act 2007	312
20	Occupational Health and Safety Act 2004	312
21	Police Regulation Act 1958	312
22	Pollution of Waters by Oil and Noxious Substances Act 1986	312
23	Prostitution Control Act 1994	312
24	Road Management Act 2004	313
25	Sex Offenders Registration Act 2004	313
26	Sports Event Ticketing (Fair Access) Act 2002	313
27	Tobacco Act 1987	313
28	Water Act 1989	313
29	Water Industry Act 1994	313
SCHEDULE 3—Persons who may Witness Statements in Preliminary Brief, Full Brief or Hand-up Brief		314
ENDNOTES		317

PARLIAMENT OF VICTORIA

Introduced in the Assembly

Criminal Procedure Bill 2008

A Bill for an Act to provide for procedures for the initiation and conduct of criminal proceedings and appeals in criminal proceedings, to amend the **Crimes Act 1958**, the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997**, the **Magistrates' Court Act 1989**, the **Children, Youth and Families Act 2005**, the **Sentencing Act 1991** and the **Appeal Costs Act 1998** and to repeal the **Crimes (Criminal Trials) Act 1999** and for other purposes.

The Parliament of Victoria enacts:

CHAPTER 1—PRELIMINARY

1 Purposes

The purposes of this Act are—

- (a) to clarify, simplify and consolidate the laws relating to criminal procedure in the Magistrates' Court, the County Court and the Supreme Court;

-
- 5 (b) to introduce a new procedure permitting the
service of a notice to appear in the
Magistrates' Court;
- (c) to provide new pre-trial disclosure
requirements for the prosecution;
- 10 (d) to provide for a 6-month time limit for the
filing of charges for summary offences in the
Children's Court;
- (e) to provide for the transfer to the County
Court or Supreme Court of summary
offences related to an offence to be tried on
indictment by the relevant court;
- 15 (f) to abolish the procedure of indictment by
grand jury;
- (g) to provide for interlocutory appeals in
criminal proceedings in the County Court
and the Supreme Court;
- 20 (h) to clarify the tests relating to determination
of appeals by the Court of Appeal;
- (i) to provide for the stay of sentences on
appeal;
- 25 (j) to amend the **Sentencing Act 1991** to
provide for a maximum fine that may be
imposed for an indictable offence that is
heard and determined summarily;
- 30 (k) to amend the **Crimes Act 1958**, the **Crimes
(Mental Impairment and Unfitness to be
Tried) Act 1997**, the **Magistrates' Court
Act 1989**, the **Children, Youth and
Families Act 2005** and the **Appeal Costs
Act 1998**;
- (l) to repeal the **Crimes (Criminal Trials) Act
1999**;
-

(m) to make consequential and other amendments.

2 Commencement

- (1) This Chapter comes into operation on the day after the day on which this Act receives the Royal Assent.
- (2) Section 384 comes into operation on 1 July 2010.
- (3) Subject to subsection (4), the remaining provisions of this Act come into operation on a day or days to be proclaimed.
- (4) If a provision referred to in subsection (3) does not come into operation before 1 January 2011, it comes into operation on that day.

3 Definitions

In this Act—

accused means a person who—

- (a) is charged with an offence; or
- (b) is directed under section 362 to be tried for perjury;

appeal includes application for leave to appeal;

appeal period means the period permitted by or under this Act or any other Act for commencing an appeal under Part 6.3 or, if a notice of appeal or notice of application for leave to appeal under Part 6.3 is filed within that period, the determination of the appeal;

appear, in relation to a party, has the meaning given in section 328;

appellant includes an applicant for leave to appeal;

appropriate registrar means—

- (a) the registrar at the venue of the Magistrates' Court referred to in section 11; or
- (b) if an order is made under section 31, the registrar at the venue of the Magistrates' Court at which the hearing is to be held;

arraignment has the meaning given in section 215(1);

attend, in relation to a person, means be physically present in court or, if authorised to do so under Division 2 or 3 of Part IIA of the **Evidence Act 1958**, appear or be brought before the court by audio visual link;

cognitive impairment includes impairment because of mental illness, intellectual disability, dementia or brain injury;

commencement of trial, in relation to the Supreme Court or the County Court, has the meaning given in section 210;

compulsory examination hearing means a hearing under section 106;

contest mention hearing means a hearing under section 55;

conviction, in Chapters 6 and 8, includes a finding of guilt by a court, whether or not a conviction is recorded;

corporate accused means an accused that is a body corporate;

criminal record, in relation to a person, means a document that—

- (a) sets out all previous convictions of the person alleged by the prosecution; and

- (b) complies with section 77 or 244, as the case requires;

Crown Prosecutor means the Chief Crown Prosecutor, a Senior Crown Prosecutor or a Crown Prosecutor appointed under the **Public Prosecutions Act 1994**;

depositions means the transcript of evidence given in a committal proceeding and any statements admitted in evidence in a committal proceeding in accordance with Chapter 4;

direct indictment means an indictment filed against an accused who has not been committed for trial in respect of the offence charged in the indictment or a related offence;

DPP means the Director of Public Prosecutions for Victoria;

filing hearing means a hearing referred to in section 101;

full brief means a full brief described in section 41;

hand-up brief means a hand-up brief described in section 110;

in detention means—

- (a) in a prison in the legal custody of the Secretary to the Department of Justice; or
- (b) in custody in a police gaol in the legal custody of the Chief Commissioner of Police; or
- (c) detained in an approved mental health service within the meaning of the **Mental Health Act 1986** in the legal

custody of the authorised psychiatrist of the approved mental health service; or

- (d) in custody in a remand centre, youth residential centre or youth justice centre within the meaning of the **Children, Youth and Families Act 2005** in the legal custody of the Secretary to the Department of Human Services; or

- (e) in custody in a residential institution or a residential treatment facility within the meaning of the **Disability Act 2006** in the legal custody of the Secretary to the Department of Human Services;

indictable offence that may be heard and determined summarily means an offence to which section 28(1) applies;

informant means a person who commences a criminal proceeding in the Magistrates' Court;

infringements registrar has the same meaning as in the **Infringements Act 2006**;

interlocutory appeal means an appeal under Division 4 of Part 6.3;

interlocutory decision means a decision made by a trial judge in a proceeding referred to in section 295(1), whether before or during the trial, including a decision to grant or refuse to grant a permanent stay of the proceeding;

Juries Commissioner has the same meaning as in the **Juries Act 2000**;

legal practitioner means—

- (a) an Australian legal practitioner within the meaning of the **Legal Profession Act 2004**; or

(b) a person referred to in section 2.2.2(2)(g) of the **Legal Profession Act 2004** who engages in legal practice in that capacity;

mention hearing means a hearing referred to in section 53;

ordinary service means service in accordance with section 342;

original jurisdiction includes—

- (a) a proceeding for an indictable offence; and
- (b) a proceeding for a related summary offence heard under section 242; and
- (c) a proceeding for an unrelated summary offence heard under section 243; and
- (d) a proceeding for contempt of court; and
- (e) a proceeding for variation or breach of a sentencing order under the **Sentencing Act 1991**;

originating court means the County Court in its original jurisdiction or the Trial Division of the Supreme Court in its original jurisdiction;

personal service means service in accordance with section 339;

plea brief means a plea brief described in section 117;

police gaol has the same meaning as in the **Corrections Act 1986**;

preliminary brief means a preliminary brief described in section 37;

previous conviction means a prior conviction or finding of guilt by a court (whether in or out of Victoria) but does not include—

-
- 5 (a) a conviction or finding of guilt set
aside by the Magistrates' Court under
section 92; or
- (b) a conviction or finding of guilt set aside
by the County Court under section 256;
or
- 10 (c) a conviction or finding of guilt set
aside by the Court of Appeal
under section 277; or
- (d) a conviction or finding of guilt by a
children's court (whether in or out of
Victoria) made more than 10 years
before the hearing at which it is sought
to be proved;
- 15 *prison* has the same meaning as in the
Corrections Act 1986;
- prison officer* has the same meaning as in the
Corrections Act 1986;
- 20 *proceeding*, in relation to the Magistrates' Court,
includes a committal proceeding but does not
include the exercise by a registrar of the
Magistrates' Court of any jurisdiction, power
or authority vested in the registrar as
infringements registrar;
- 25 *public official* means—
- (a) a public official within the meaning of
the **Public Administration Act 2004**;
or
- 30 (b) a person employed by, or the holder of
an office in, or on the governing body
of a Council within the meaning of the
Local Government Act 1989; or
- 35 (c) in the case of a charge for an offence
referred to in section 24(1) of the
Prevention of Cruelty to Animals Act
-

1986, a full-time officer of the Royal Society for the Prevention of Cruelty to Animals authorised under section 24(1)(b) of that Act;

related offences means offences that are founded on the same facts or form, or are part of, a series of offences of the same or a similar character;

related summary offence means a summary offence the proceedings for which are transferred from the Magistrates' Court under section 145;

responsible person, in relation to a person in detention, means—

- (a) in the case of a prison, the officer in charge of the prison;
- (b) in the case of a police gaol, the Chief Commissioner of Police;
- (c) in the case of an approved mental health service within the meaning of the **Mental Health Act 1986**, the authorised psychiatrist of the approved mental health service;
- (d) in the case of a remand centre, youth residential centre or youth justice centre within the meaning of the **Children, Youth and Families Act 2005**, the Secretary to the Department of Human Services;
- (e) in the case of a residential institution or a residential treatment facility within the meaning of the **Disability Act 2006**, the Secretary to the Department of Human Services;

return date, in relation to a criminal proceeding in the Magistrates' Court, means the first date on which the proceeding is listed before the court;

sentence includes—

- (a) the recording of a conviction; and
- (b) an order made under Part 3, 3A, 4 or 5 of the **Sentencing Act 1991**, other than an order incidental to or preparatory to the making of the order; and
- (c) an order made under section 11 of the **Sex Offenders Registration Act 2004**; and
- (d) an order made under section 84S or 84T of the **Road Safety Act 1986**; and
- (e) an order made under section 365, 367, 373, 380 or 387 of the **Children, Youth and Families Act 2005** made by the Supreme Court in its original jurisdiction or the County Court in its original jurisdiction;

Note

Section 586 of the **Children, Youth and Families Act 2005** gives the Supreme Court and the County Court, when sentencing a child for an indictable offence, power to make any sentencing order which the Children's Court may make.

sexual offence means—

- (a) an offence under Subdivision (8A), (8B), (8C), (8D), (8E) or (8EAA) of Division 1 of Part I of the **Crimes Act 1958** or under any corresponding previous enactment; or
- (b) an attempt to commit an offence referred to in paragraph (a); or

(c) an assault with intent to commit an offence referred to in paragraph (a);

summary case conference means a conference referred to in section 54;

summary hearing means a hearing conducted in accordance with Part 3.3;

trial judge means the judge of the Trial Division of the Supreme Court or the judge of the County Court before whom an accused is tried;

Victoria Legal Aid means Victoria Legal Aid established under section 3 of the **Legal Aid Act 1978**;

youth justice centre means a youth justice centre established under section 478 of the **Children, Youth and Families Act 2005**.

4 References to Parts

Unless the context otherwise requires, a reference in this Act to a Part by a number must be construed as a reference to the Part of this Act designated by that number.

s. 5

Part 2.1—Ways in which a Criminal Proceeding is Commenced

CHAPTER 2—COMMENCING A CRIMINAL PROCEEDING

PART 2.1—WAYS IN WHICH A CRIMINAL PROCEEDING IS COMMENCED

5

5 How a criminal proceeding is commenced

A criminal proceeding is commenced by—

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- (a) filing or signing a charge-sheet in accordance with section 6; or
 - (b) filing a direct indictment in accordance with section 159; or
 - (c) a direction under section 362 that a person be tried for perjury.
-

PART 2.2—CHARGE-SHEET AND LISTING OF MATTER

6 Commencement of a criminal proceeding in the Magistrates' Court

(1) A criminal proceeding is commenced—

- 5 (a) by filing a charge-sheet containing a charge
 with a registrar of the Magistrates' Court; or
- (b) if the accused is arrested without a warrant
 and is released on bail, by filing a charge-
10 sheet containing a charge with a bail justice;
 or
- (c) if a summons is issued under section 14, at
 the time the charge-sheet is signed.

Note

15 A criminal proceeding against a child is commenced in the
 same manner in the Children's Court: section 528 of the
 Children, Youth and Families Act 2005.

20 (2) If a charge-sheet is filed in accordance with the
 method prescribed by the rules of court for
 electronic filing, the requirements of sections 8(1)
 and 9(1) of the **Electronic Transactions**
 (Victoria) Act 2000 are taken to have been met.

(3) A charge-sheet must—

- 25 (a) be in writing; and
- (b) be signed by the informant personally; and
- (c) comply with Schedule 1.

Note

 Section 18 requires an informant to nominate an address for
 service of documents and other details. That information
 may be included on a charge-sheet.

30 (4) The informant may include a request for a
 committal proceeding in a charge-sheet containing
 a charge for an indictable offence that may be
 heard and determined summarily.

7 Time limits for filing a charge-sheet

(1) A proceeding for a summary offence must be commenced within 12 months after the date on which the offence is alleged to have been committed except where—

(a) otherwise provided by or under any other Act; or

(b) the accused gives written consent, and the DPP or a Crown Prosecutor consent, to the proceeding being commenced after the expiry of that period.

Note

See Part 5.1A of Chapter 5 of the **Children, Youth and Families Act 2005** for a shorter time limit in relation to children.

(2) A proceeding for an indictable offence—

(a) may be commenced at any time, except where otherwise provided by or under this or any other Act; and

(b) may be heard and determined summarily even though the proceeding may have been commenced more than 12 months after the date on which the offence is alleged to have been committed.

8 Order for amendment of charge-sheet

(1) The Magistrates' Court at any time may order that a charge-sheet be amended in any manner that the court thinks necessary, unless the required amendment cannot be made without injustice to the accused.

(2) If a charge-sheet is amended by order under this section, the charge-sheet is to be treated as having been filed in the amended form for the purposes of the hearing and all proceedings connected with the hearing.

(3) An amendment of a charge-sheet that has the effect of charging a new offence cannot be made after the expiry of the period, if any, within which a proceeding for the offence may be commenced.

(4) If a limitation period applies to the offence charged in the charge-sheet, the charge-sheet may be amended after the expiry of the limitation period if—

(a) the charge-sheet before the amendment sufficiently disclosed the nature of the offence; and

(b) the amendment does not amount to the commencement of a proceeding for a new offence; and

(c) the amendment will not cause injustice to the accused.

9 Errors etc. in charge-sheet

(1) A charge-sheet is not invalid by reason only of a failure to comply with Schedule 1.

(2) A charge on a charge-sheet is not invalid by reason only of—

(a) omitting to state the time at which the offence was committed unless time is an essential element of the offence; or

(b) incorrectly stating the time at which the offence was committed; or

(c) stating the offence to have been committed on an impossible day or on a day that never happened.

10 Listing of matter for mention hearing or filing hearing in the Magistrates' Court

- (1) If a charge-sheet contains a charge for a summary offence, the proceeding must be listed for a mention hearing.
- (2) Subject to subsection (3), if a charge-sheet contains a charge for an indictable offence that may be heard and determined summarily, the proceeding may be listed for a mention hearing or a filing hearing, having regard to any request for a committal proceeding included on the charge-sheet.
- (3) If a notice to appear is served under section 21 and a charge-sheet is filed in accordance with section 22, the proceeding must be listed for a mention hearing on the date specified in the notice to appear.
- (4) Despite subsections (1) and (2), if a charge-sheet contains a charge for an indictable offence that is not an indictable offence that may be heard and determined summarily, the proceeding must be listed for a filing hearing.

Notes

- 1 A mention hearing is the first hearing for a charge that will be heard and determined summarily.
- 2 A filing hearing is the first stage in a committal proceeding under Chapter 4.
- 3 Section 28(1) sets out the indictable offences that may be heard and determined summarily.

11 Place of hearing

- (1) A criminal proceeding in the Magistrates' Court is to be heard at the venue of the court that is nearest to—
- (a) the place where the offence is alleged to have been committed; or

(b) the place of residence of the accused—
except where otherwise provided by this or any
other Act or by a nomination under subsection (2).

Note

Part 2 of the **Magistrates' Court Act 1989** sets out the
special requirements for matters that may be heard in the
various Divisions of the Magistrates' Court: the Drug Court
Division, the Koori Court Division, the Family Violence
Court Division and the Neighbourhood Justice Division.

(2) The Chief Magistrate may from time to time, by
notice published in the Government Gazette,
nominate a venue of the Magistrates' Court as a
venue for the hearing of a specified criminal
proceeding or a specified class of criminal
proceeding.

(3) A criminal proceeding in the Magistrates' Court is
not invalid only because it was conducted at a
venue of the court other than the venue referred to
in subsection (1) or nominated under
subsection (2).

**PART 2.3—NOTIFYING ACCUSED OF COURT
APPEARANCE**

Division 1—Summons or warrant to arrest

12 Court may issue summons or warrant to arrest

5 (1) On the filing of a charge-sheet under section 6, an
application may be made to a registrar of the
Magistrates' Court for the issue of—

(a) a summons to answer to the charge directed
to the accused; or

10 (b) a warrant to arrest in order to compel the
attendance of the accused—

unless a notice to appear has been served on the
accused under Division 2.

15 (2) An application under subsection (1)(b) must be
made by the informant personally but an
application under subsection (1)(a) may be made
by the informant or a person on behalf of the
informant.

20 (3) An application under subsection (1) may be made
by the applicant in person or by post.

(4) On an application under subsection (1), the
registrar must, if satisfied that the charge discloses
an offence known to law, issue—

(a) a summons to answer to the charge; or

25 (b) subject to subsection (5), a warrant to arrest.

(5) A registrar of the Magistrates' Court must not
issue in the first instance a warrant to arrest unless
satisfied by sworn evidence, whether oral or by
affidavit, that—

30 (a) it is probable that the accused will not
answer a summons; or

- (b) the accused has absconded, is likely to abscond or is avoiding service of a summons that has been issued; or
- (c) a warrant is required or authorised by any other Act or for other good cause.

Notes

- 1 If an accused fails to appear in answer to a summons, sections 80 and 81 provide for the issue of a warrant to arrest the accused. Section 330 provides for the issue of a warrant to arrest a person who has been remanded in custody or granted bail to attend a hearing but fails to attend.
- 2 Section 29 of the **Magistrates' Court Act 1989** enables a magistrate to exercise the powers of a registrar to issue a summons or warrant.

13 Summons or warrant to be accompanied by charge-sheet and notice when served

A summons to answer to a charge or a warrant to arrest issued under section 12, on service or execution on the accused, must be accompanied by—

- (a) a copy of the charge-sheet; and
- (b) a notice, in the form prescribed by the rules of court, containing—
- (i) a summary of Division 2 of Part 3.2; and
- (ii) advice that the accused should seek legal advice and that the accused has the right, if eligible, to legal aid under the **Legal Aid Act 1978**; and
- (iii) details of how to contact Victoria Legal Aid.

14 Police or public official may issue summons

- (1) Without limiting the power of a registrar of the Magistrates' Court in any way—
- (a) a member of the police force; or
 - (b) a public official acting in the performance of his or her duty (whether the power to commence the proceeding is conferred on him or her by or under an Act or at common law)—

may, after signing a charge-sheet containing a charge, issue a summons to answer to the charge.

- (2) If a member of the police force or a public official issues a summons under subsection (1), he or she must file the charge-sheet and summons with the appropriate registrar within 7 days after signing the charge-sheet.

- (3) If it appears to the Magistrates' Court that subsection (2) has not been complied with in relation to a proceeding, the court may strike out the charge.

Note

Section 349(3) allows the court to award costs if a charge is struck out.

15 Contents of summons

- (1) A summons to answer to a charge must direct the accused to appear at the venue of the Magistrates' Court referred to in section 11 on a specified date and at a specified time to answer the charge.
- (2) A summons to answer to a charge for an indictable offence that is to be served on a corporate accused must state that, if the accused does not appear in answer to the summons, the Magistrates' Court may proceed—

(a) in the case of an indictable offence that may be heard and determined summarily, to hear and determine the charge in the absence of the accused in accordance with Division 10 of Part 3.3; or

(b) in any case, to conduct a committal proceeding in the absence of the accused in accordance with Chapter 4.

Notes

1 See sections 80, 81 and 82 for consequences of failing to appear in answer to a summons.

2 Section 28(1) sets out the indictable offences that may be heard and determined summarily.

16 Personal service of summons

Except where otherwise expressly enacted, every summons to answer to a charge must be served personally on the accused in accordance with section 339—

(a) subject to paragraph (b), at least 14 days before the return date;

(b) in the case of a charge for an indictable offence in respect of which a registrar of the Magistrates' Court has fixed a date for a filing hearing, at least 7 days before that date or any other time before that date that is prescribed by the regulations.

Note

See section 347(4) for filing in court of affidavit or declaration of service.

17 Summons for summary offence may be served by ordinary service

- 5 (1) A summons to answer to a charge for a summary offence must be served personally on the accused in accordance with section 339 unless the informant is satisfied that ordinary service is appropriate in all the circumstances.

Note

Section 342 provides for ordinary service.

- 10 (2) In considering whether to effect service of a summons by ordinary service, an informant must consider whether it is an appropriate method of service in all the circumstances as known by the informant including—

- 15 (a) the nature and gravity of the alleged offence;
(b) whether the accused has previously been found guilty or convicted of any similar offence;
20 (c) the period of time that has elapsed since the accused's address for service was ascertained.

- (3) If a summons is served in accordance with section 342(a), evidence of service must state—

- 25 (a) how the informant ascertained the address to which the summons was posted; and
(b) the time and place of posting; and
(c) whether the informant considered the matters referred to in subsection (2) before determining to effect service by post.

18 Informant must nominate address etc. for service of documents

- (1) An informant must nominate in writing a business address, email address, if any, and fax number for service on the informant of documents in relation to a charge.
- (2) A nomination under subsection (1) may be included on a charge-sheet or any other document served with a charge-sheet.

19 Extension of return date if summons not served

- (1) If the informant has not served a summons to answer to a charge, the appropriate registrar may extend a return date specified in the summons without cause on one occasion on the application of the informant—
- (a) before the return date; or
 - (b) within 28 days after the return date.
- (2) The appropriate registrar may extend a return date on a subsequent occasion on the application of the informant—
- (a) before the current return date; or
 - (b) within 28 days after the current return date—
- if the registrar is satisfied by sworn evidence, whether oral or by affidavit, that reasonable efforts have been made to serve the summons.

Note

See also section 331 as to the court's general power of adjournment.

20 Adjournment of proceeding on application of accused

On the application of the accused, the appropriate registrar may—

- (a) if the accused is not on bail or in custody, before or on the return date or on the date to which the proceeding is adjourned, adjourn the proceeding to a later date;
- (b) if the accused is on bail, on the return date or on the date to which the proceeding is adjourned, adjourn the proceeding to a later date and extend bail but not vary the conditions of bail or revoke bail.

Note

See also section 331 as to the court's general power of adjournment.

Division 2—Notice to appear

21 Police or public official may serve notice to appear

(1) A member of the police force or a public official acting in the performance of his or her duties may serve on a person a notice to appear if the member or public official reasonably suspects that the person has committed—

- (a) a summary offence; or
- (b) an indictable offence that may be heard and determined summarily.

(2) A notice to appear must—

- (a) state the name of the person serving the notice; and
- (b) if the notice is served by a public official, state the name of the employer of the public official; and

(c) state a telephone number and email address at which the person serving the notice may be contacted and the business address of the person and may state similar details for a person authorised to act in relation to the notice on behalf of the person serving the notice; and

(d) state the full name and address of the person served with the notice; and

(e) state the offence that the person served with the notice is suspected of having committed; and

(f) state in general terms the circumstances of the suspected offence; and

(g) direct the person served with the notice to appear at a venue of the Magistrates' Court on a date (at least 28 days after the date of service of the notice) and at a time specified in the notice to answer any charge in respect of the suspected offence; and

(h) include a summary of this Division; and

(i) be signed by the person serving the notice.

(3) A notice to appear must be served by—

(a) giving it to the person to be served; or

(b) if the person does not accept it, by putting it down in the person's presence and telling the person the nature of the document.

22 Notice to appear lapses unless charge-sheet filed within 14 days

(1) If a member of the police force or a public official serves a notice to appear on a person, the notice lapses on the expiry of 14 days after service unless, within that period, the member or public

official files with a registrar of the Magistrates' Court—

- (a) a charge-sheet containing a charge against the person for the suspected offence stated in the notice to appear or a related offence; and
- (b) a copy of the notice to appear; and
- (c) evidence of service.

- (2) Failure to file a charge-sheet in accordance with subsection (1) does not affect the filing of a charge-sheet at any later time.

23 Notice to be given on lapsing

- (1) Within 7 days after the lapsing of a notice to appear, the member of the police force or public official who served the notice must ensure that—

- (a) written notice is given to the person on whom the notice to appear was served that—
 - (i) a charge-sheet has not been filed; and
 - (ii) the person is not required to appear at the Magistrates' Court on the date and at the time specified in the notice to appear; and
- (b) the Magistrates' Court is notified that the notice to appear has lapsed.

- (2) A notice under subsection (1) is given by sending it by prepaid ordinary post addressed to the person at the last known address of the person.

24 Preliminary brief to be served if charge-sheet filed

If a charge-sheet is filed in accordance with section 22(1), the informant must—

- (a) serve a preliminary brief on the accused within 7 days after the day on which the charge-sheet is filed; and

- (b) on the return date have available a copy of the preliminary brief for provision to the accused or the legal practitioner representing the accused, on request.

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Notes

- 1 Section 36 sets out how a preliminary brief must be served.
- 2 Section 37 sets out the contents of a preliminary brief, including a copy of the charge-sheet.

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25 Non-appearance of accused served with notice to appear

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- (1) If a charge-sheet containing a charge for a summary offence is filed against an accused in accordance with section 22(1) and the accused does not appear in answer to the notice to appear, the Magistrates' Court may—

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- (a) issue a warrant to arrest the accused; or
- (b) proceed to hear and determine the charge in the absence of the accused in accordance with Division 10 of Part 3.3; or
- (c) adjourn the proceeding on any terms that it considers appropriate.

25

- (2) If a charge-sheet containing a charge for an indictable offence that may be heard and determined summarily is filed against an accused in accordance with section 22(1) and the accused does not appear in answer to the notice to appear, the Magistrates' Court may issue a warrant to arrest the accused.

26 Notice to appear does not commence proceeding

Service of a notice to appear does not commence a criminal proceeding.

Note

Chapter 8 contains general provisions that apply to all criminal proceedings.

CHAPTER 3—SUMMARY PROCEDURE

PART 3.1—WHEN A SUMMARY HEARING MAY BE HELD

27 Summary offences

A charge for a summary offence is to be heard and determined summarily in accordance with this Chapter or, if the case requires, Division 1 of Part 5.8.

Note

The procedure set out in the **Infringements Act 2006** may be used instead of commencing a proceeding for certain offences. See section 99 of the **Magistrates' Court Act 1989**.

28 Indictable offences that may be heard and determined summarily

(1) A charge for any of the following indictable offences may be heard and determined summarily by the Magistrates' Court, if section 29 is satisfied—

(a) an offence referred to in Schedule 2;

(b) an indictable offence under an Act or subordinate instrument or an offence at common law if the offence is described by an Act or subordinate instrument as being—

(i) a level 5 offence or level 6 offence; or

(ii) punishable by level 5 or level 6 imprisonment or fine or both; or

s. 29

Part 3.1—When a Summary Hearing May Be Held

(iii) punishable by a term of imprisonment not exceeding 10 years or a fine not exceeding 1200 penalty units or both—

unless the contrary intention appears in this or any other Act or in any subordinate instrument.

Note

A level 5 offence is punishable by 10 years imprisonment maximum and a level 6 offence is punishable by 5 years imprisonment maximum: section 109 of the **Sentencing Act 1991**.

(2) If an indictable offence is described as being punishable in more than one way or in one of 2 or more ways, all of those ways must be referred to in subsection (1) for subsection (1) to apply.

(3) If an indictable offence referred to in Schedule 2 is qualified by reference to a specified amount or value or a specified kind of property, that qualification is not affected by subsection (1)(b) or (2).

29 When an indictable offence may be heard and determined summarily

(1) The Magistrates' Court may hear and determine summarily a charge for an offence to which section 28(1) applies if—

(a) the court considers that the charge is appropriate to be determined summarily, having regard to the matters in subsection (2); and

(b) the accused consents to a summary hearing.

Notes

1 Section 82 provides for a summary hearing without consent in the case of a corporate accused which fails to appear in answer to a summons.

2 Section 168(3) provides that a charge transferred
by order under that section must be heard and
determined summarily.

5 (2) For the purposes of subsection (1)(a), the
Magistrates' Court must have regard to—

(a) the seriousness of the offence including—

(i) the nature of the offence; and

10 (ii) the manner in which the offence is
alleged to have been committed, the
apparent degree of organisation and the
presence of aggravating circumstances;
and

15 (iii) whether the offence forms part of a
series of offences being alleged against
the accused; and

(iv) the complexity of the proceeding for
determining the charge; and

20 (b) the adequacy of sentencing orders available
to the court, having regard to the criminal
record of the accused; and

(c) whether a co-accused is charged with the
same offence; and

(d) any other matter that the court considers
relevant.

25 (3) A legal practitioner appearing for an accused may,
on behalf of the accused, consent to a summary
hearing of a charge for an indictable offence.

(4) Nothing in subsection (2) applies to a proceeding
in the Children's Court.

s. 30

Part 3.1—When a Summary Hearing May Be Held

(5) If a body corporate and a natural person are jointly charged with an indictable offence which may be heard and determined summarily, the Magistrates' Court must not hear and determine the charge summarily against either of the accused unless—

(a) each of them consents to a summary hearing; or

(b) if the body corporate fails to appear in the proceeding, the natural person consents to a summary hearing and the court proceeds under section 82 to hear and determine the charge in the absence of the body corporate.

30 Procedure for indictable offences that may be heard and determined summarily

(1) The informant or the accused may apply for a summary hearing under section 29(1).

(2) Without any application under subsection (1), the Magistrates' Court may offer a summary hearing under section 29(1).

(3) An application for, or an offer of, a summary hearing may be made at any time before the Magistrates' Court determines whether to commit the accused for trial.

Note

Section 6(4) provides that an informant may include a request for a committal proceeding in a charge-sheet containing a charge for an indictable offence that may be heard and determined summarily.

(4) If an application for a summary hearing is made before the hearing of any evidence, the Magistrates' Court may seek from the prosecutor or, if the informant is appearing in person, the informant and he or she must give—

(a) an outline of the evidence which will be presented for the prosecution; and

(b) any other information which the court considers relevant—

for the purpose of enabling the court to determine whether to grant a summary hearing.

(5) Any statement made by the prosecutor or informant under subsection (4) is not admissible in evidence in any subsequent proceeding in respect of the charge.

(6) If the Magistrates' Court grants a summary hearing, the hearing and determination of the charge must be conducted in accordance with Part 3.3.

Note

Sections 112A to 113D of the **Sentencing Act 1991** provide for maximum penalties in the Magistrates' Court.

(7) Subject to subsection (8), if—

(a) a committal hearing commences; and

(b) the Magistrates' Court subsequently grants a summary hearing—

the court may, with the consent of the accused, admit as evidence in the summary hearing—

(c) the oral evidence of any witness; and

(d) the statement of any witness; and

(e) any document or exhibit—

given or tendered during the committal hearing.

(8) If evidence is admitted under subsection (7)—

(a) the Magistrates' Court must, at the request of the informant or the accused, call or recall (as the case requires) any witness for examination or cross-examination; and

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Part 3.1—When a Summary Hearing May Be Held

- (b) the hearing must otherwise be conducted in the same manner as a proceeding for a summary offence.
-

PART 3.2—PROCEDURE BEFORE SUMMARY HEARING

Division 1—General

31 Court may change place of hearing

If the Magistrates' Court considers that—

- (a) a fair hearing in a criminal proceeding cannot otherwise be had; or
- (b) for any other reason it is appropriate to do so—

the court may order that the hearing be held at another place or venue of the court that the court considers appropriate.

32 Accused entitled to copy of charge-sheet and particulars

- (1) An accused is entitled to receive free of charge a copy of the charge-sheet from the informant or the appropriate registrar.
- (2) An accused is entitled to receive from the informant reasonable particulars of the charge.

33 Unrepresented accused who requires legal advice

If—

- (a) an accused is charged with an offence punishable by imprisonment; and
- (b) the accused is unrepresented on the return date—

the court must—

- (c) ask the accused whether the accused has sought legal advice; and

(d) if satisfied that the accused has not had a reasonable opportunity to obtain legal advice, grant an adjournment if so requested by the accused; and

(e) inform the accused that the accused has the right, if eligible, to legal aid under the **Legal Aid Act 1978**.

34 Return of property

(1) If—

(a) property has been taken from an accused; and

(b) the Magistrates' Court considers that the property or part of it can be returned consistently with the interests of justice and with the safe custody of the accused—

the court must direct that the property or part of it be returned to the accused or to any other person that the accused directs.

(2) If property has been taken from a person other than the accused, the Magistrates' Court, on application by the person, may direct that the property be returned to the person at any time, and subject to any condition, that the court considers appropriate.

Division 2—Pre-hearing disclosure of prosecution case

35 When preliminary brief is to be served

(1) If required to do so by section 24, the informant must serve a preliminary brief on the accused.

(2) At any time after the commencement of a proceeding, the accused, by written notice to the informant, may request that a preliminary brief be served.

(3) If the accused gives notice under subsection (2), the informant must serve on the accused a preliminary brief within 14 days after receipt of the notice.

(4) Nothing in this section prevents the informant from serving a preliminary brief on the accused at any other time.

36 How preliminary brief must be served

(1) A preliminary brief must be served personally on the accused in accordance with section 339 unless the informant is satisfied that ordinary service is appropriate in all the circumstances.

Note

Section 342 provides for ordinary service.

(2) In considering whether to effect service of a preliminary brief by ordinary service, the informant must consider whether it is an appropriate method of service in all the circumstances as known by the informant including—

- (a) the nature and gravity of the alleged offence;
- (b) whether the accused has previously been found guilty or convicted of any similar offence;
- (c) the period of time that has elapsed since the accused's address for service was ascertained;
- (d) the manner of service of the summons to answer to the charge.

37 Contents of preliminary brief

(1) A preliminary brief must include—

(a) a copy of the charge-sheet in respect of the alleged offence; and

(b) a notice in the form prescribed by the rules of court—

(i) explaining this section and section 84; and

(ii) explaining the importance of the accused obtaining legal representation; and

(iii) advising that the accused has the right, if eligible, to legal aid under the **Legal Aid Act 1978**; and

(iv) providing details of how to contact Victoria Legal Aid; and

(c) a statement made by the informant personally that complies with subsection (2) and section 38; and

(d) any evidentiary certificate issued under any Act that is likely to be relevant to the alleged offence and is available at the time the preliminary brief is served; and

(e) a copy of the criminal record of the accused that is available at the time the preliminary brief is served or a statement that the accused has no previous convictions known at that time; and

(f) if the informant refuses to disclose any information, document or thing that is required to be included in the preliminary brief, a written notice that the informant refuses disclosure under section 45, identifying the ground for refusing disclosure; and

(g) a list of any other orders that are or will be sought, as known at the time of preparation of the preliminary brief.

(2) A statement by the informant in a preliminary brief must be a complete and accurate statement of the material available to the prosecution at the time the statement is sworn, signed or attested and must include—

(a) a statement of the alleged facts on which the charge is based, including reference to the material available to the prosecution to support the alleged facts; and

(b) a description of the background to and consequences of the alleged offence, if known; and

(c) a summary of any statements made by the accused concerning the alleged offence, including any confession or admission; and

(d) a list of the names of all persons who, at the time the statement is signed, may be called by the prosecution as witnesses at the hearing of the charge, indicating whether those persons have made statements; and

(e) a list of any things the prosecution may tender as exhibits, indicating whether they are in the possession of the prosecution at the time the statement is signed.

- 5 (3) A preliminary brief may include any other information, document or thing that is relevant to the alleged offence and may assist the accused in understanding the evidence against the accused that is available to the prosecution.

Example

Statements of key witnesses may be included in the preliminary brief.

Notes

- 10 1 If the Magistrates' Court hears and determines a charge in the absence of the accused, section 84 provides that certain documents in a preliminary brief served on the accused at least 14 days before the hearing date are admissible in evidence.
- 15 2 See section 86 as to proof of criminal record in the absence of the accused.

38 Requirements for informant's statement in preliminary brief

- 20 (1) A statement by the informant in a preliminary brief must be—
- (a) in the form of an affidavit; or
- (b) signed by the informant and contain an acknowledgment signed in the presence of a person referred to in Schedule 3 that the statement is true and correct and is made in the belief that a person making a false statement in the circumstances is liable to the penalties of perjury; or
- 25 (c) in a form, and attested to in a manner, prescribed by the rules of court.
- 30

- (2) An informant who acknowledges a statement referred to in subsection (1) which the informant knows at the time to be false is liable to the penalties of perjury.

Note

See section 314 of the **Crimes Act 1958** for the offence of perjury.

39 When full brief must be served

- (1) At any time after a criminal proceeding has commenced or, if a preliminary brief is served under section 24, at any time after a summary case conference is held, the accused, by written notice to the informant, may request that a full brief be served.

Note

Section 54 provides for summary case conferences.

- (2) If the accused gives a notice under subsection (1), the informant must serve a full brief on the accused at least 14 days before—
- (a) the contest mention hearing; or
- (b) if a contest mention hearing is not held, the summary hearing.
- (3) The Magistrates' Court, by order, may vary the date for service of a full brief to a specified date that is earlier or later than the date for service required by subsection (2).
- (4) Nothing in this section prevents agreement between the informant and the accused to more limited disclosure than is required in a full brief.

40 How full brief must be served

- (1) A full brief must be served personally on the accused in accordance with section 339 unless the informant is satisfied that ordinary service is appropriate in all the circumstances.

Note

Section 342 provides for ordinary service.

- (2) In considering whether to effect service of a full brief by ordinary service, the informant must consider whether it is an appropriate method of service in all the circumstances as known by the informant including—

- (a) the nature and gravity of the alleged offence;
- (b) whether the accused has previously been found guilty or convicted of any similar offence;
- (c) the period of time that has elapsed since the accused's address for service was ascertained;
- (d) the manner of service of the summons to answer to the charge.

41 Contents of full brief

- (1) Unless earlier disclosed to the accused, whether in a preliminary brief, at a summary case conference or otherwise, a full brief must contain—

- (a) a notice in the form prescribed by the rules of court—
 - (i) explaining this section and section 83;
 - and

- 5
- (ii) explaining the importance of the
accused obtaining legal representation;
and
- (iii) advising that the accused has the right,
if eligible, to legal aid under the **Legal
Aid Act 1978**; and
- (iv) providing details of how to contact
Victoria Legal Aid; and
- 10
- (b) a copy of the charge-sheet relating to the
alleged offence; and
- (c) a copy of the criminal record of the accused
or a statement that the accused has no
previous convictions; and
- 15
- (d) any information, document or thing on which
the prosecution intends to rely at the hearing
of the charge including—
- (i) a copy of any statement relevant to the
charge signed by the accused, or a
record of interview of the accused, that
is in the possession of the informant;
and
- 20
- (ii) a copy, or a transcript, of any audio-
recording or audiovisual recording
required to be made under Subdivision
(30A) of Division 1 of Part III of the
Crimes Act 1958; and
- 25
- (iii) a copy or statement of any other
evidentiary material that is in the
possession of the informant relating to a
confession or admission made by the
accused relevant to the charge.
- 30

- (iv) a list of the persons the prosecution intends to call as witnesses at the hearing, together with a copy of each of the statements made by those persons; and

Note

See section 47 for requirements for statements.

- (v) a legible copy of any document which the prosecution intends to produce as evidence; and

- (vi) a list of any things the prosecution intends to tender as exhibits; and

- (vii) a clear photograph, or a clear copy of such a photograph, of any proposed exhibit that cannot be described in detail in the list; and

- (viii) a description of any forensic procedure, examination or test that has not yet been completed and on which the prosecution intends to rely as tending to establish the guilt of the accused; and

- (ix) any evidentiary certificate issued under any Act that is likely to be relevant to the alleged offence; and

- (e) any other information, document or thing in the possession of the prosecution that is relevant to the alleged offence including—

- (i) a list of the persons (including experts) who have made statements or given information relevant to the alleged offence but who the prosecution does not intend to call as witnesses at the hearing; and

- 5 (ii) a copy of every statement referred to in
subparagraph (i) made by each of those
persons or, if the person has not made a
statement, a written summary of the
substance of any evidence likely to be
given by that person or a list of those
statements or written summaries; and
- 10 (iii) a copy of every document relevant to
the alleged offence that the prosecution
does not intend to tender as an exhibit
at the hearing or a list of those
documents; and
- 15 (iv) a list containing descriptions of any
things relevant to the alleged offence
that the prosecution does not intend to
tender as exhibits at the hearing; and
- 20 (v) a clear photograph, or a clear copy of
such a photograph, of any thing
relevant to the alleged offence that
cannot be described in detail in the list;
and
- (vi) a copy of—
- 25 (A) records of any medical
examination of the accused; and
- (B) reports of any forensic procedure
or forensic examination conducted
on the accused; and
- 30 (C) the results of any tests—
carried out on behalf of the prosecution
and relevant to the alleged offence but
on which the prosecution does not
intend to rely; and

(vii) a copy of any other information,
document or thing required by the rules
of court to be included in a full brief;
and

(f) if the informant refuses to disclose any
information, document or thing that is
required to be included in the full brief, a
written notice that the informant refuses
disclosure under section 45, identifying the
ground for refusing disclosure.

(2) Section 48 applies to information and other
material supplied in a full brief.

Notes

- 1 See section 363 as to the prosecution's general obligation of
disclosure.
- 2 Section 39(4) enables an informant and an accused to agree to
the provision of less material in the full brief than is required
by section 41.
- 3 If the Magistrates' Court hears and determines a charge in the
absence of the accused, section 83 provides that certain
documents in a full brief served on the accused are admissible
in evidence.
- 4 See section 86 as to proof of criminal record in the absence of
the accused.

42 Continuing obligation of disclosure

(1) This section applies to any information, document
or thing that—

- (a) comes into the informant's possession or
comes to the informant's notice after the
service of a preliminary brief or a full brief,
as the case may be; and
- (b) would have been required to be listed, or a
copy of which would have been required to
be served, in the preliminary brief or the full
brief.

(2) The informant must serve on the accused a copy of the document or list as soon as practicable after the information, document or thing comes into the informant's possession or comes to the informant's notice.

(3) If the informant refuses to disclose any information, document or thing that is required to be disclosed under this section, the informant must serve on the accused as soon as practicable a written notice that the informant refuses disclosure under section 45, identifying the ground for refusing disclosure.

Note

See section 363 as to the prosecution's general obligation of disclosure.

43 Accused may make request for material etc. not provided

(1) The accused may give to the informant a written request for—

(a) a copy of any statements made or information given by persons listed in a full brief;

(b) a copy of any things listed in a full brief;

(c) inspection of the exhibits at a time and place agreed between the accused and the informant;

(d) a copy of any information, document or thing specified by the accused that is required by or under this Act to be included in a preliminary brief or a full brief, as the case may be, and was not so included;

(e) particulars of previous convictions of any witness who the prosecution intends to call at the hearing.

(2) Subject to subsection (3), a request under subsection (1) may be made at any time after service of the preliminary brief or the full brief, whichever first occurs.

(3) Unless the Magistrates' Court otherwise orders, a request under subsection (1) must be made at least 7 days before—

(a) the contest mention hearing; or

(b) if a contest mention hearing is not held, the summary hearing.

44 Informant must comply with request or state grounds of refusal

(1) Within 7 days after the informant receives a request under section 43, the informant must comply with the request or serve on the accused a written notice that the informant refuses to comply with the request, identifying the grounds for refusing disclosure.

(2) The Magistrates' Court may vary a time limit referred to in this section.

45 Grounds on which informant may refuse disclosure

(1) The informant may refuse to disclose any information, document or thing that is required by this Division to be disclosed to the accused if the informant considers that disclosure would, or would be reasonably likely to—

(a) prejudice the investigation of a contravention or possible contravention of the law or prejudice the enforcement or proper administration of the law in a particular instance; or

(b) prejudice the fair hearing of the charge against a person or the impartial adjudication of a particular case; or

(c) disclose, or enable a person to ascertain, the identity of a confidential source of information in relation to the enforcement or administration of the law; or

(d) disclose methods or procedures for preventing, detecting, investigating or dealing with matters arising out of contraventions or evasions of the law the disclosure of which would, or would be reasonably likely to, prejudice the effectiveness of those methods or procedures; or

(e) endanger the lives or physical safety of persons engaged in, or in connection with, law enforcement or persons who have provided confidential information in relation to the enforcement or administration of the law; or

(f) endanger the life or physical safety of a person referred to in section 43(1)(a) or of a family member, as defined in the **Family Violence Protection Act 2008**, of such a person.

(2) The informant may refuse to disclose any information, document or thing that is requested under section 43(1)(d) on any ground on which the informant would be entitled to refuse to produce the information, document or thing under a witness summons.

- 5 (3) The informant may refuse to disclose the particulars of any previous conviction of any witness who the informant intends to call at the hearing if the previous conviction is, because of its character, irrelevant to the proceeding but the informant must advise the accused of the existence of any undisclosed previous convictions.

Notes

- 10 1 See section 14 of the **Victims' Charter Act 2006** as to victims' privacy.
- 2 See section 363 as to the prosecution's general obligation of disclosure.

46 Accused may apply for order requiring disclosure

- 15 (1) The accused may apply to the Magistrates' Court for an order under subsection (2) requiring disclosure if—
- (a) the informant has served on the accused under section 45 a statement of grounds for refusing disclosure; or
- 20 (b) the informant has failed to give disclosure in accordance with this Division.
- (2) On application under subsection (1), the Magistrates' Court may order that the informant disclose to the accused any information, document
- 25 or thing in accordance with a request under section 43 or a requirement of this Division.

47 Rules with respect to statements

- 30 (1) Subject to subsection (5), a statement referred to in section 41 which the informant intends to tender at the hearing of the charge if the accused does not appear must be—
- (a) in the form of an affidavit; or

(b) signed by the person making the statement and contain an acknowledgment signed in the presence of a person referred to in Schedule 3 that the statement is true and correct and is made in the belief that a person making a false statement in the circumstances is liable to the penalties of perjury; or

(c) in a form, and attested to in a manner, prescribed by the rules of court.

(2) If a person under the age of 18 years makes a statement which the informant intends to tender as mentioned in subsection (1), the statement must include the person's age.

(3) If a person who cannot read makes a statement which the informant intends to tender as mentioned in subsection (1)—

(a) the statement must be read to the person before he or she signs it; and

(b) the acknowledgment must state that the statement was read to the person before he or she signed it.

(4) A person who acknowledges a statement which the informant intends to tender as mentioned in subsection (1) and which the person knows at the time to be false is liable to the penalties of perjury.

Note

See section 314 of the **Crimes Act 1958** for the offence of perjury.

48 Disclosure of address or telephone number of witness

(1) The informant must not disclose the address or telephone number (including a private, business or official address or telephone number) of any person in any information, document or thing provided to the accused under this Division unless—

(a) the informant believes that—

(i) the information, document or thing does not identify the address or telephone number as that of any particular person; or

(ii) the address or telephone number is relevant to the offence charged and disclosure is not likely to present a reasonably ascertainable risk to the welfare or physical safety of any person; or

(b) the Magistrates' Court permits the disclosure in accordance with subsection (3) on application made by the informant or the accused.

(2) For the purposes of subsection (1), the informant may delete, or render illegible, an address or telephone number included in the information, document or thing before service on the accused.

(3) The Magistrates' Court may grant an application made under subsection (1)(b) if the court is satisfied that—

(a) the address or telephone number is relevant to the offence charged; and

(b) one of the following applies—

- (i) disclosure is not likely to present a reasonably ascertainable risk to the welfare or physical safety of any person; or
- (ii) having regard to the matters referred to in subsection (4), the interests of justice outweigh any risk referred to in subparagraph (i).

(4) For the purposes of subsection (3)(b)(ii), the Magistrates' Court must have regard to—

- (a) the right to privacy of the witness; and
- (b) the right of the accused to prepare properly for the hearing.

Note

See section 14 of the **Victims' Charter Act 2006** as to victims' privacy.

49 Informant may place material on database

(1) This section applies if—

- (a) the informant is a member of the police force or an officer of a prescribed agency; and
- (b) the accused's legal practitioner is authorised by the Secretary to the Department of Justice to access electronically the information, documents and things referred to in section 43; and
- (c) it is practicable to transmit electronically the information, documents and things that are required to be disclosed.

(2) Subject to this Division, the informant must place on the prescribed database a copy of—

- (a) the preliminary brief, if any; and
- (b) the full brief; and

(c) all additional information, documents and things, if any, requested by the accused under section 43; and

(d) all additional information, documents and things required to be disclosed under section 42.

(3) Placement of copies of material on the prescribed database under subsection (2) is deemed to be service for the purposes of this Division.

Note

Time limits provided in this Division for service of a preliminary brief, a full brief or particular information, documents or things still apply.

(4) A statement by the informant in a copy of a preliminary brief placed on the prescribed database need not be sworn or attested as required by section 38 if—

(a) the database technology does not permit placement of the copy in that form; and

(b) a physical copy of the preliminary brief complies with section 38.

(5) An informant who places an unsworn or unattested preliminary brief on the prescribed database must retain the physical copy of the preliminary brief that is sworn or attested for a period of 12 months after the determination of the charge.

Note

Section 38(2) provides that an informant who acknowledges a statement in a preliminary brief which the informant knows at the time to be false is liable to the penalties of perjury.

Division 3—Preliminary disclosure of case of accused

50 Expert evidence

(1) If the accused intends to call a person as an expert witness at the hearing of the charge, the accused must serve on the informant in accordance with section 340 and file in court a copy of the statement of the expert witness in accordance with subsection (2)—

(a) at least 7 days before the day on which the contest mention hearing is to be held; or

(b) if there is no contest mention hearing, at least 7 days before the summary hearing; or

(c) if the statement is not then in existence, as soon as possible after it comes into existence.

(2) The statement must—

(a) contain the name and business address of the witness; and

(b) describe the qualifications of the witness to give evidence as an expert; and

(c) set out the substance of the evidence it is proposed to adduce from the witness as an expert, including the opinion of the witness and the acts, facts, matters and circumstances on which the opinion is formed.

Note

Section 177 of the **Evidence Act 2008** provides for certificates of expert evidence.

51 Alibi evidence

(1) This section applies to an accused on a summary hearing, if the accused is represented by a legal practitioner.

- (2) An accused must not, without leave of the court—
- (a) give evidence personally; or
 - (b) adduce evidence from another witness—
- in support of an alibi unless the accused has given
notice of alibi within the period referred to in
subsection (3).
- (3) A notice of alibi is given by serving the notice on
the prosecutor or the informant—
- (a) at least 7 days before the day on which the
contest mention hearing is to be held; or
 - (b) if there is no contest mention hearing, at least
7 days before the summary hearing; or
 - (c) if the notice is not then in existence, as soon
as possible after it comes into existence.
- (4) A notice of alibi must be served in accordance
with section 340.
- (5) A notice of alibi must contain—
- (a) particulars as to time and place of the alibi;
and
 - (b) the name and last known address of any
witness to the alibi; and
 - (c) if the name and address of a witness are not
known, any information which might be of
material assistance in finding the witness.
- (6) If the name and address of a witness are not
included in a notice of alibi, the accused must not
call that person to give evidence in support of the
alibi unless the court is satisfied that the accused
took reasonable steps to ensure that the name and
address would be ascertained.

(7) If the accused is notified by the informant that a witness named or referred to in a notice of alibi has not been traced, the accused must give written notice to the informant, without delay, of any further information which might be of material assistance in finding the witness.

(8) The court must not refuse leave under subsection (2) if it appears to the court that the accused was not informed of the requirements of this section.

(9) If—

(a) an accused gives notice of alibi under this section; and

(b) the prosecutor requests an adjournment—

the court must grant an adjournment for a period that appears to the court to be necessary to enable investigation of the alibi unless it appears that to do so would prejudice the proper presentation of the case of the accused.

52 Offence to communicate with alibi witness

(1) If a person (other than a person referred to in subsection (2)) has been named or referred to as a proposed witness in a notice of alibi given under section 51—

(a) a person acting for the prosecution; or

(b) a member of the police force—

must not communicate with that person directly or indirectly with respect to the charge or any related matter before the conclusion of the proceeding, including any rehearing, without the consent and presence during the communication of—

(c) the legal practitioner representing the accused; or

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Part 3.2—Procedure before Summary Hearing

(d) if not legally represented, the accused.

Penalty: Level 8 imprisonment (1 year maximum)

(2) Subsection (1) does not apply to a person who the accused has been notified may be called as a witness for the prosecution at the summary hearing.

Division 4—Mention hearing and contest mention hearing

53 Mention hearing

At a mention hearing, the Magistrates' Court may—

- (a) if the offence is an indictable offence that may be heard and determined summarily, grant a summary hearing;
- (b) proceed immediately to hear and determine the charge;
- (c) fix a date for a contest mention hearing;
- (d) fix a date for a summary hearing of the charge;
- (e) make any other order or give any direction that the court considers appropriate.

54 Summary case conference

(1) A summary case conference is a conference between the prosecution and the accused for the purpose of managing the progression of the case including—

- (a) identifying and providing to the accused any information, document or thing in the possession of the prosecution that may assist the accused to understand the evidence available to the prosecution; and
- (b) identifying any issues in dispute; and

(c) identifying the steps required to advance the case; and

(d) any other purpose prescribed by the rules of court.

(2) If a preliminary brief is served in accordance with section 24, a summary case conference must be conducted before—

(a) the charge is set down for a contest mention hearing or a summary hearing; or

(b) a request for a full brief is made under section 39(1).

(3) The Magistrates' Court may direct the parties to attend a summary case conference.

(4) Nothing in this section prevents a summary case conference from being conducted at any other time, if the parties agree.

(5) If an accused is not legally represented, a summary case conference must not be conducted unless the Magistrates' Court is satisfied that the conference is appropriate, having regard to whether the accused has had a reasonable opportunity to obtain legal advice.

(6) If the Magistrates' Court is not satisfied as required by subsection (5), the court may dispense with the requirement under subsection (2) to conduct a summary case conference.

(7) Evidence of—

(a) anything said or done in the course of a summary case conference; or

(b) any document prepared solely for the purposes of a summary case conference—

is not admissible in any proceeding before any court or tribunal or in any inquiry in which evidence is or may be given before any court or

person acting judicially, unless all parties to the summary case conference agree to the giving of the evidence.

55 Contest mention hearing

- 5 (1) This section applies to a proceeding for—
- (a) a summary offence; or
 - (b) an indictable offence that may be heard and determined summarily.
- 10 (2) The Magistrates' Court may, between the return date and the day on which the charge is heard, from time to time conduct a contest mention hearing.
- (3) At a contest mention hearing, the Magistrates' Court may—
- 15 (a) require the parties to provide an estimate of the time expected to be needed for the hearing of the charge;
 - (b) require the parties to advise as to the estimated number and the availability of witnesses (other than the accused) for the hearing of the charge and whether any witnesses are from interstate or overseas;
 - 20 (c) request each party to indicate the evidence that party proposes to adduce and to identify the issues in dispute;
 - 25 (d) require the accused to advise whether the accused is legally represented and has funding for continued legal representation up to and including the hearing of the charge;
 - 30 (e) require the parties to advise whether there are any particular requirements of, or facilities needed for, witnesses and interpreters;
-

(f) order a party to make, file in court or serve (as the case requires) any written or oral material required by the court for the purposes of the proceeding;

(g) allow a party to amend a document that has been prepared by or on behalf of that party for the purposes of the proceeding;

(h) if the court considers that it is in the interests of justice to do so, dispense with or vary any requirement imposed on a party by or under this Part;

(i) require or request a party to do anything else for the case management of the proceeding.

(4) The accused must attend all contest mention hearings.

Notes

1 Section 3 defines *attend* as to be physically present in court.

2 See section 334 in relation to a corporate accused.

3 Section 330 gives the court power to excuse an accused from attending a hearing.

PART 3.3—SUMMARY HEARING

Division 1—Joint or separate hearing of charges

56 Multiple charges on single charge-sheet or multiple accused named on single charge-sheet

- 5 (1) If a charge-sheet contains more than one charge,
the charges must be heard together unless an order
is made under section 58.
- 10 (2) If a charge-sheet names more than one accused,
whether in the same charge or separate charges,
the charge or charges against all accused must be
heard together unless an order is made under
section 58.
- (3) A separate charge-sheet must be filed against each
accused.

15 **57 Joint hearing of charges on separate charge-sheets**

On the application of the prosecutor or the
accused, the Magistrates' Court may order that any
number of charges in separate charge-sheets be
heard together.

20 **58 Order for separate hearing**

- (1) If a charge-sheet contains more than one charge,
the Magistrates' Court may order that any one or
more of the charges be heard separately.
- 25 (2) If a charge-sheet names more than one accused,
the Magistrates' Court may order that charges
against a specified accused be heard separately.
- (3) The Magistrates' Court may make an order under
subsection (1) or (2) if the court considers that—
- 30 (a) the case of an accused may be prejudiced
because the accused is charged with more
than one offence in the same charge-sheet; or

(b) a hearing with co-accused would prejudice the fair hearing of the charge against the accused; or

(c) for any other reason it is appropriate to do so.

(4) The Magistrates' Court may make an order under subsection (1) or (2) before or during the hearing.

(5) If the Magistrates' Court makes an order under subsection (1) or (2), the prosecutor may elect which charge is to be heard first.

(6) The procedure on the separate hearing of a charge is the same in all respects as if the charge had been set out in a separate charge-sheet.

(7) If the Magistrates' Court makes an order for a separate hearing under subsection (1) or (2), the court may make any order for or in relation to the bail of the accused that the court considers appropriate.

Division 2—Diversion program

59 Adjournment to undertake diversion program

(1) This section does not apply to—

(a) an offence punishable by a minimum or fixed sentence or penalty, including cancellation or suspension of a licence or permit to drive a motor vehicle but not including the incurring of demerit points under the **Road Safety Act 1986** or regulations made under that Act; or

(b) an offence against section 49(1) of the **Road Safety Act 1986** not referred to in paragraph (a).

(2) If, at any time before taking a formal plea from an accused in a criminal proceeding for a summary offence or an indictable offence that may be heard and determined summarily—

(a) the accused acknowledges to the Magistrates' Court responsibility for the offence; and

(b) it appears appropriate to the Magistrates' Court, which may inform itself in any way it considers appropriate, that the accused should participate in a diversion program; and

(c) both the prosecution and the accused consent to the Magistrates' Court adjourning the proceeding for this purpose—

the Magistrates' Court may adjourn the proceeding for a period not exceeding 12 months to enable the accused to participate in and complete the diversion program.

(3) An accused's acknowledgment to the Magistrates' Court of responsibility for an offence is inadmissible as evidence in a proceeding for that offence and does not constitute a plea.

(4) If an accused completes a diversion program to the satisfaction of the Magistrates' Court—

(a) no plea to the charge is to be taken; and

(b) the Magistrates' Court must discharge the accused without any finding of guilt; and

(c) the fact of participation in the diversion program is not to be treated as a finding of guilt except for the purposes of—

(i) Division 1 of Part 3 and Part 10 of the **Confiscation Act 1997**; and

(ii) section 9 of the **Control of Weapons Act 1990**; and

(iii) section 151 of the **Firearms Act 1996**; and

(iv) Part 4 of the **Sentencing Act 1991**; and

(d) the fact of participation in the diversion program and the discharge of the accused is a defence to a later charge for the same offence or a similar offence arising out of the same circumstances.

(5) If an accused does not complete a diversion program to the satisfaction of the Magistrates' Court and the accused is subsequently found guilty of the charge, the Magistrates' Court must take into account the extent to which the accused complied with the diversion program when sentencing the accused.

(6) Nothing in this section affects the requirement to observe the rules of natural justice.

(7) This section does not affect the incurring of demerit points under the **Road Safety Act 1986** or regulations made under that Act.

Division 3—Sentence indication

60 Court may give sentence indication

At any time during a proceeding for a summary offence or an indictable offence that may be heard and determined summarily, the Magistrates' Court may indicate that, if the accused pleads guilty to the charge for the offence at that time, the court would be likely to impose on the accused—

(a) a sentence of imprisonment that commences immediately; or

(b) a sentence of a specified type.

Note

Section 126 of the **Magistrates' Court Act 1989** enables the court to close a proceeding to the public.

61 Effect of sentence indication

(1) If—

(a) the Magistrates' Court gives a sentence indication under section 60; and

(b) the accused pleads guilty to the charge for the offence at the first available opportunity—

the court, when sentencing the accused for the offence, must not impose a more severe type of sentence than the type of sentence indicated.

(2) If—

(a) the Magistrates' Court gives a sentence indication under section 60; and

(b) the accused does not plead guilty to the charge for the offence at the first available opportunity—

the court that hears and determines the charge must be constituted by a different magistrate, unless all the parties otherwise agree.

(3) A sentence indication does not bind the Magistrates' Court on any hearing before the court constituted by a different magistrate.

(4) A decision to give or not to give a sentence indication is final and conclusive.

(5) An application for a sentence indication and the determination of the application are not admissible in evidence against the accused in any proceeding.

- (6) This section does not affect any right to appeal against sentence.

Division 4—Entering a plea

62 Charge to be read or explained to accused before plea

- (1) Subject to subsection (2), the Magistrates' Court must ensure that any charge, as set out in the charge-sheet, is read to the accused or its substance is explained to the accused before the accused is asked to plead to the charge.
- (2) It is not necessary that a charge be read, or its substance explained, to an accused who is represented by a legal practitioner if the Magistrates' Court considers it appropriate not to do so.

63 Legal practitioner may enter plea on behalf of accused

A legal practitioner appearing for an accused may, on behalf of the accused, enter a plea.

64 Refusal to plead

- (1) If, when an accused is asked to plead to a charge, the accused will not answer directly to the charge, the Magistrates' Court may order that a plea of not guilty be entered on behalf of the accused.
- (2) A plea of not guilty entered under subsection (1) has the same effect as if the accused in fact had pleaded not guilty.

Note

See the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997** when an accused is or may be unfit to stand trial.

Division 5—Opening addresses

65 Parties may give opening addresses

- (1) With the leave of the Magistrates' Court and before any evidence is given—
- (a) the prosecutor may give an opening address to the court on the prosecution case against the accused; and
- (b) the accused may give an opening address to the court in response to the prosecutor's opening address.
- (2) The Magistrates' Court may limit the length of the opening addresses.

Division 6—Case for the accused

66 Accused entitled to respond after close of prosecution case

After the close of the case for the prosecution, an accused is entitled—

- (a) to make a submission that there is no case for the accused to answer;
- (b) to answer the charge by choosing to give evidence or call other witnesses to give evidence or both;
- (c) not to give evidence or call any witnesses.

67 Election when accused is legally represented

If the accused is represented by a legal practitioner, at the close of the case for the prosecution, the Magistrates' Court may question the legal practitioner to determine which of the options referred to in section 66 the accused elects to take.

68 Election when accused is not legally represented

(1) If the accused is not represented by a legal practitioner, immediately after the close of the case for the prosecution the Magistrates' Court must inform the accused, in a manner that is likely to be understood by the accused that—

(a) the accused has the right to answer the charge and must choose either—

(i) to give sworn evidence, that is, to enter the witness box, take the oath or make an affirmation and say what the accused wants to say in answer to the charge and then to respond to any questions from the prosecution or the court about the evidence of the accused; or

(ii) to say nothing in answer to the charge; and

(b) in either case, the accused may call any witnesses to give sworn evidence for the accused.

(2) After giving the information referred to in subsection (1), the Magistrates' Court must ask the accused what the accused wants to do.

69 Procedure for joint hearings if no case submission made

(1) After the close of the case for the prosecution, an accused who wishes to make a submission that there is no case for the accused to answer must do so at that time.

(2) If, after the Magistrates' Court has ruled on all no case submissions, charges against 2 or more accused remain to be determined, each accused must advise the court, in response to questioning under section 67 or 68, which of the options

referred to in section 66(b) or (c) the accused elects to take.

70 Questioning to determine proper course of proceeding

(1) If the accused intends to call witnesses to give evidence at the hearing, the accused must indicate, when called on by the Magistrates' Court to do so—

(a) the names of those witnesses (other than the accused); and

(b) the order in which those witnesses are to be called.

(2) The accused must not present the case of the accused differently to the way indicated to the Magistrates' Court under subsection (1) without the leave of the court.

71 Opening address of accused at beginning of case for the accused

(1) If the accused intends to give evidence, or to call other witnesses on behalf of the accused, or both, the Magistrates' Court may grant leave to the accused to open the case for the accused if the court considers it appropriate to do so.

(2) If the accused gives an opening address, it must be given before the accused gives evidence or calls any other witnesses.

(3) The Magistrates' Court may limit the length of the opening address of the accused.

(4) The accused is not required to give evidence before any other witness is called on behalf of the accused.

72 Evidential burden on accused for exceptions etc.

(1) If—

(a) an Act or subordinate instrument creates an offence and provides any exception, exemption, proviso, excuse or qualification, whether it does or does not accompany the description of the offence; and

(b) the accused wishes to rely on the exception, exemption, proviso, excuse or qualification—

the accused must present or point to evidence that suggests a reasonable possibility of the existence of facts that, if they existed, would establish the exception, exemption, proviso, excuse or qualification.

(2) No proof in relation to an exception, exemption, proviso, excuse or qualification is required on the part of the informant unless the accused has presented or pointed to evidence in accordance with subsection (1).

(3) If satisfied that it is in the interests of justice to do so the Magistrates' Court may allow the prosecutor to re-open the case for the prosecution in order to adduce evidence in rebuttal of evidence presented or pointed to by the accused in accordance with subsection (1).

Division 7—Closing addresses

73 Prosecutor's closing address

(1) In a hearing under this Part—

(a) after the close of all evidence; and

- (b) before the closing address of the accused, if any, under section 74—

the Magistrates' Court may grant leave, if it is appropriate to do so, to the prosecutor to address the court for the purpose of summing up the evidence.

- (2) The Magistrates' Court may limit the length of the closing address of the prosecutor.

74 Closing address of the accused

- (1) In a hearing under this Part—

(a) after the close of all evidence; and

(b) after the closing address of the prosecutor, if any, under section 73—

the Magistrates' Court may grant leave, if it is appropriate to do so, to the accused to address the court for the purpose of summing up the evidence.

- (2) The Magistrates' Court may limit the length of the closing address of the accused.

75 Supplementary address by prosecutor

- (1) If, in the closing address of the accused under section 74, the accused asserts facts which are not supported by any evidence that is before the Magistrates' Court, the court may grant leave to the prosecutor to make a supplementary address to the court.

- (2) A supplementary address must be confined to replying to the assertion referred to in subsection (1).

- (3) The Magistrates' Court may limit the length of a supplementary address.

Division 8—Determination of charge

76 Option of finding of attempt

In a summary hearing under section 29(1) of a charge for an indictable offence, if the Magistrates' Court finds the accused not guilty of the offence charged, the court may find the accused guilty of having attempted to commit the offence charged.

Division 9—Criminal record

77 Criminal record

- (1) A criminal record must contain, in relation to each previous conviction—
 - (a) the date of the previous conviction; and
 - (b) the court in which the previous conviction took place; and
 - (c) the place of sitting of that court; and
 - (d) the offence committed; and
 - (e) the sentence imposed.
- (2) If other offences were taken into account when a sentence was imposed in respect of a previous conviction, a criminal record may contain a statement to that effect and the offences taken into account, including the number of offences.
- (3) A criminal record is inadmissible as evidence against the person to whom it relates in a proceeding for an offence unless the criminal record is signed by—
 - (a) a member of the police force; or
 - (b) a Crown Prosecutor; or
 - (c) a member of staff of the Office of Public Prosecutions who is a legal practitioner; or

(d) in the case of a proceeding commenced by an informant—

(i) a person who is entitled to represent the informant and is a legal practitioner; or

(ii) a public official.

78 Proof of previous convictions by criminal record

(1) If a person is found guilty of an offence in a summary hearing, the prosecution may provide to the court the criminal record, if any, of the person.

(2) The court must ask the person whether the person admits the previous convictions set out in the criminal record.

(3) If the person admits to a previous conviction, the court may sentence the person accordingly.

(4) If the person does not admit to a previous conviction, the prosecution may lead evidence to prove the previous conviction.

(5) A legal practitioner appearing for the person may, on behalf of the person, admit a previous conviction set out in the criminal record.

Notes

1 Section 178 of the **Evidence Act 2008** provides for proof of previous convictions by the filing of a certificate.

2 Section 86 of this Act provides for proof of a criminal record in the absence of the accused.

Division 10—Non-appearance of party

79 Non-appearance of informant

If the informant in a criminal proceeding does not appear on the date on which the proceeding is listed for hearing, the Magistrates' Court may—

(a) dismiss the charge; or

- (b) adjourn the proceeding on any terms that it considers appropriate.

Note

Section 328 sets out who may appear on behalf of an informant.

80 Non-appearance of accused charged with summary offence

- (1) If an accused does not appear in answer to a summons to answer to a charge for a summary offence, the Magistrates' Court may—

(a) if the summons was served in accordance with section 342 (ordinary service), direct that the accused be served personally with the summons; or

(b) issue a warrant to arrest the accused; or

(c) proceed to hear and determine the charge in the absence of the accused in accordance with this Part; or

(d) adjourn the proceeding on any terms that it considers appropriate.

Note

Section 328 sets out who may appear on behalf of an accused.

- (2) If an accused has been charged with a summary offence and fails to attend in answer to bail, the Magistrates' Court may—

(a) proceed to hear and determine the charge in the absence of the accused in accordance with this Part; or

(b) adjourn the proceeding on any terms that it considers appropriate—

without prejudice to any right of action arising out of the breach of the bail undertaking.

- (3) If the Magistrates' Court proceeds to hear and determine a charge under subsection (1)(c) or (2)(a), the court may dispense with or vary any requirement imposed by or under this Part.

Note

See section 25 for consequences of failing to appear in answer to a notice to appear.

81 Non-appearance of accused charged with indictable offence

If an accused does not appear in answer to a summons to answer to a charge for an indictable offence which has been served in accordance with this Act, the Magistrates' Court may issue a warrant to arrest the accused.

Notes

- 1 Section 25 sets out the consequences of failing to appear in answer to a notice to appear.
- 2 Section 328 sets out who may appear on behalf of an accused.

82 Non-appearance of corporate accused charged with indictable offence

- (1) If a corporate accused does not appear in answer to a summons to answer to a charge for an indictable offence that may be heard and determined summarily, the Magistrates' Court may hear and determine the charge summarily in the absence of the accused if—
- (a) the court is satisfied that the charge and the return date in relation to it have been brought to the notice of the accused; and
 - (b) the court considers that the charge is appropriate to be determined summarily—
- even though the accused has not consented to a summary hearing.

(2) If the Magistrates' Court proceeds to hear and determine a charge summarily in accordance with subsection (1), the court may dispense with or vary any requirement imposed by or under this Part.

(3) If the Magistrates' Court finds a corporate accused guilty in its absence, the court must cause written notice of any sentence imposed by it to be served on the accused.

83 Admissibility of evidence in absence of accused where full brief served

(1) If—

(a) under section 80 the Magistrates' Court proceeds to hear and determine a charge in the absence of the accused; and

(b) the informant has served a full brief on the accused in accordance with Division 2 of Part 3.2—

the following are, subject to subsections (2) and (3), admissible as if their contents were a record of evidence given orally—

(c) any statement a copy of which has been served in the full brief;

(d) any exhibit or document referred to in a statement which is admissible.

(2) The Magistrates' Court may rule as inadmissible the whole or any part of a statement or of any exhibit or document referred to in a statement.

(3) The criminal record of the accused or a statement that the accused has no previous convictions, when served in a full brief, is only admissible for the purpose of sentencing in accordance with section 86.

- (4) Subsection (1) does not limit the power of the Magistrates' Court to proceed to hear and determine the charge in the absence of the accused under section 80 on the basis of sworn evidence given by or on behalf of the informant if the informant has not served a full brief on the accused.

84 Admissibility of evidence in absence of accused where preliminary brief served

- (1) If—

- (a) under section 80 the Magistrates' Court proceeds to hear and determine a charge in the absence of the accused; and
 - (b) the informant has served a preliminary brief on the accused in accordance with Division 2 of Part 3.2 at least 14 days before the date of the hearing under paragraph (a); and
 - (c) the Magistrates' Court considers that the matters set out in the preliminary brief disclose the offence charged—
- the following are, subject to subsections (4) and (5), admissible in evidence, despite the rule against hearsay—
- (d) the informant's statement in the preliminary brief;
 - (e) any exhibit referred to in the informant's statement.

- (2) Without limiting any other power conferred on the Magistrates' Court, if the court considers that the matters set out in a preliminary brief do not disclose the offence charged, the court may require the informant to provide additional evidence.

- (3) The additional evidence referred to in subsection (2) is inadmissible unless—
- (a) it is in the form of written statements that comply with section 38; and
 - (b) a copy of each statement has been served on the accused at least 14 days before the Magistrates' Court considers the additional evidence.
- (4) The Magistrates' Court may rule as inadmissible the whole or any part of a preliminary brief, a statement or an exhibit.
- (5) The criminal record of the accused or a statement that the accused has no previous convictions, when served in a preliminary brief, is only admissible for the purpose of sentencing in accordance with section 86.
- (6) This section does not limit the power of the Magistrates' Court to proceed to hear and determine the charge in the absence of the accused under section 80 on the basis of sworn evidence given by or on behalf of the informant if the informant has not served a preliminary brief on the accused.

85 Non-appearance of accused—Infringements Act 2006

- (1) This section applies to a lodgeable infringement offence within the meaning of the **Infringements Act 2006** in respect of which—
- (a) an election to have the matter of the offence heard and determined in the Magistrates' Court under Part 2 or Part 4 of that Act has been made; or
 - (b) an order under section 72(1) of that Act has been made.

- (2) Without limiting any other power of the Magistrates' Court, if the accused fails to appear and the Magistrates' Court proceeds to hear and determine the charge in the absence of the accused under section 80, the court may hear and determine the charge based on the prescribed information lodged under section 40(1)(a) or 71(1)(a) of that Act (as the case requires).

86 Proof of criminal record in absence of accused

- (1) If—

- (a) an accused is charged with a summary offence; and
- (b) it is alleged that the accused has previous convictions—

there may be served on the accused a copy of the criminal record of the accused.

Notes

- 1 See section 77 as to contents of a criminal record.
- 2 A copy of the criminal record of the accused is included in the preliminary brief (section 37) or, if a preliminary brief is not served, in the full brief (section 41).

- (2) If the Magistrates' Court—

- (a) finds the accused guilty in the absence of the accused; and
- (b) is satisfied that a copy of the criminal record of the accused was served on the accused at least 14 days before the hearing of the charge—

the criminal record is admissible only for the purpose of sentencing and—

- (c) is evidence that the accused has the previous convictions set out in the criminal record; and

- (d) is evidence of the particulars set out in the criminal record.

87 Limitations on sentencing in absence of accused

- (1) If the Magistrates' Court proceeds to hear and determine a charge in the absence of the accused and finds the accused guilty, the court must not make a custodial order under Division 2 of Part 3 of the **Sentencing Act 1991**.
- (2) If the Magistrates' Court finds an accused guilty in the absence of the accused on the basis of a preliminary brief—
- (a) the court must not make an order under Division 4 of Part 3 of the **Sentencing Act 1991** for a fine exceeding 20 penalty units and the total sum of orders for fines must not exceed in the aggregate 50 penalty units; and
- (b) the total sum of orders made under Divisions 1 and 2 of Part 4 of the **Sentencing Act 1991** for the payment of restitution or compensation must not exceed \$2000.

Note

In addition to this section, the court cannot make an order that requires the consent of the accused to its making, for example, a community-based order.

- (3) If, at any time during the hearing, the Magistrates' Court considers that the charge, if proven, is likely to result in an order prohibited by subsection (1) or (2) or an order that requires the consent of the accused, the court—
- (a) must adjourn the proceeding to enable the accused to attend or to be brought before the court to answer to the charge; and
- (b) may issue a warrant to arrest the accused.

(4) If the Magistrates' Court finds a charge against a person proved and imposes a sentence in the absence of the person, the court must serve written notice on the person, at the address of the person on the register kept under section 18 of the **Magistrates' Court Act 1989**, of—

- (a) the order of the court; and
- (b) their right to apply for a rehearing of the charge.

Note

Part 3.4 provides for a rehearing in certain circumstances. In particular, section 94 provides for automatic rehearing in certain cases.

PART 3.4—REHEARING

88 Right to apply for rehearing

5 If a sentence is imposed by the Magistrates' Court
in a criminal proceeding on a person who did not
appear in the proceeding, that person, or the
informant on that person's behalf, may apply to
the Magistrates' Court for an order that the charge
be reheard.

89 Notice of intention to apply for rehearing

10 A notice of intention to apply for a rehearing
must—

(a) state the reason why the person on whom the
sentence was imposed did not appear in the
proceeding; and

15 (b) be filed with the registrar at the venue of the
Magistrates' Court at which the sentence was
imposed.

90 Service of notice

20 (1) If the applicant is the person on whom the
sentence was imposed, the applicant must serve
on the respondent in accordance with section 340
a copy of the notice under section 89 within
7 days after filing the notice.

25 (2) If the informant makes an application for a
rehearing on behalf of the person on whom the
sentence was imposed, the informant must serve
personally on that person in accordance with
section 339 a copy of the notice under section 89
within 7 days after filing the notice.

91 Stay of sentence etc.

(1) On the filing of a notice under section 89, the sentence (other than an order for the cancellation, suspension or variation of the driver licence of the person on whom the sentence was imposed) is stayed until—

(a) the application for rehearing has been heard; and

(b) if a rehearing is granted, the charge has been reheard.

(2) If the driver licence of the person on whom the sentence was imposed has been cancelled, suspended or varied by order of the Magistrates' Court, the applicant may, on or after the filing of a notice under section 89, apply for a stay of the order pending the determination of the rehearing.

(3) An applicant under subsection (2) (other than an informant who is making the application on behalf of the person whose driver licence has been cancelled, suspended or varied) must serve on the informant in accordance with section 340 written notice of the application at least 7 days before making the application.

(4) On an application under subsection (2), the Magistrates' Court may order that the order for the cancellation, suspension or variation of the person's driver licence be stayed until—

(a) the application for rehearing has been heard; and

(b) if a rehearing is granted, the charge has been reheard.

92 Court may order rehearing

On an application under section 88, the Magistrates' Court may set aside any findings and orders made in the earlier proceeding subject to any terms and conditions that it thinks just and rehear the charge.

93 Failure to appear on application

If an applicant fails to appear at the time fixed for the hearing of an application under section 88 and the application is struck out, the applicant may reapply under that section only if the applicant first obtains the leave of the Magistrates' Court.

94 Automatic rehearing in certain cases

(1) On an application under section 88, if—

- (a) the charge-sheet was served in accordance with section 342 (ordinary service); and
- (b) the Magistrates' Court is satisfied that the charge-sheet was not brought to the notice of the applicant prior to the hearing of the charge—

the court must set aside any findings and orders made in the earlier proceeding and rehear the charge.

- (2) If a person is served with a notice under section 87(4) and applies under section 88 for a rehearing of the charge within 28 days after the date of service of the notice, the Magistrates' Court must set aside the findings and orders made in the earlier proceeding and rehear the charge.

Note

Chapter 8 contains general provisions that apply to all criminal proceedings.

CHAPTER 4—COMMITTAL PROCEEDING

PART 4.1—PRELIMINARY

95 Definition

In this Chapter—

the registrar means the registrar at the venue of the Magistrates' Court at which a committal proceeding is, or is to be, held.

96 When a committal proceeding must be held

A committal proceeding must be held in all cases in which the accused is charged with an indictable offence, except cases where—

- (a) a direct indictment is filed; or
- (b) the charge is heard and determined summarily.

97 Purposes of a committal proceeding

The purposes of a committal proceeding are—

- (a) to determine whether a charge for an offence is appropriate to be heard and determined summarily;
- (b) to determine whether there is evidence of sufficient weight to support a conviction for the offence charged;
- (c) to determine how the accused proposes to plead to the charge;
- (d) to ensure a fair trial, if the matter proceeds to trial, by—
 - (i) ensuring that the prosecution case against the accused is adequately disclosed in the form of depositions;

- (ii) enabling the accused to hear or read the evidence against the accused and to cross-examine prosecution witnesses;
- (iii) enabling the accused to put forward a case at an early stage if the accused wishes to do so;
- (iv) enabling the accused to adequately prepare and present a case;
- (v) enabling the issues in contention to be adequately defined.

98 When a committal proceeding commences

A committal proceeding commences on the commencement of a filing hearing.

Notes

- 1 See section 6(1) as to when a criminal proceeding is commenced.
- 2 Section 102 provides for the fixing of a date for a filing hearing.

99 Time limit for determining certain committal proceedings for a sexual offence

- (1) This section applies to a committal proceeding for a sexual offence if—
 - (a) the complainant was a child or a person with a cognitive impairment when the criminal proceeding was commenced; and
 - (b) a witness other than the complainant is to be cross-examined in the committal hearing.
- (2) The Magistrates' Court must determine a committal proceeding to which subsection (1) applies within 2 months after the committal mention hearing or, if more than one committal mention hearing is held, the final committal mention hearing.

(3) The Magistrates' Court may fix a longer period for the determination of a committal proceeding to which subsection (1) applies if the court is satisfied that it is in the interests of justice that another period should be fixed having regard to—

- (a) the seriousness of the offence; and
- (b) the reason a longer period is required.

(4) Subsection (2) does not apply if—

- (a) the accused has failed to attend in accordance with the conditions of his or her bail; or
- (b) a warrant to arrest the accused has been issued and at the end of the relevant period referred to in section 126(1) the accused has not been arrested; or
- (c) the accused requests that the committal proceeding be determined after the period referred to in subsection (2) and the Magistrates' Court is satisfied that in the interests of justice the request should be granted.

(5) If a committal proceeding to which subsection (1) applies has not been determined before the expiry of the period referred to in subsection (2), or any longer period fixed under subsection (3), the Magistrates' Court may, on the application of the accused, order that the accused be discharged.

100 Hearings in a committal proceeding and attendance of accused

(1) The hearings that may be held in a committal proceeding are—

- (a) a filing hearing;
- (b) a special mention hearing;
- (c) a compulsory examination hearing;

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- (d) a committal mention hearing;
 - (e) a committal case conference;
 - (f) a committal hearing.
- (2) An accused must attend all hearings in the committal proceeding against the accused unless excused under—
- (a) section 135, in the case of a committal hearing; or
 - (b) section 330, in any other case.
-

PART 4.2—FILING HEARING

101 Filing hearing

At a filing hearing, the Magistrates' Court may—

- (a) fix a date for a committal mention hearing;
- (b) fix a period of time for service of a hand-up brief;
- (c) make any order or give any direction that the court considers appropriate.

102 Time limit for filing hearing

The date fixed for a filing hearing must be—

- (a) within 7 days after the charge-sheet is filed, if the accused has been arrested and either remanded in custody or granted bail; or
 - (b) within 28 days after the charge-sheet is filed, if a summons to answer to a charge is issued in respect of the accused.
-

PART 4.3—COMPULSORY EXAMINATION

103 Application for order

(1) Subject to this section, an informant may apply for an order under section 104(1).

(2) An application under subsection (1) may only be made—

(a) after a charge-sheet has been filed against the accused in relation to the matter to which the proposed examination relates; and

(b) subject to subsection (3), before the committal hearing, if any, commences.

(3) An application under subsection (1) may be made after the committal mention hearing only if the Magistrates' Court is satisfied that it is in the interests of justice to allow the making of the application at that time.

(4) On an application under subsection (1), the informant must advise the Magistrates' Court of the following information—

(a) whether the person sought to be examined has been asked by the prosecution to make a statement and has refused to do so; and

(b) whether the informant is aware of whether the person sought to be examined has obtained legal advice concerning the proposed examination; and

(c) whether the person sought to be examined is or has been a suspect with respect to the matter to which the proposed examination relates; and

(d) whether the person sought to be examined has been made aware of the application; and

(e) any other information prescribed by the rules of court.

(5) An application under subsection (1) may be made with or without notice to the accused.

(6) If the person sought to be examined in an application under subsection (1) is or has been a suspect with respect to the matter to which the proposed examination relates, the informant must give reasonable notice of the application to the person, or a legal practitioner representing the person, whether or not—

(a) a charge-sheet against the person has been filed; or

(b) a charge against the person has been determined.

(7) The accused—

(a) is not a party to an application under subsection (1); and

(b) may not address the court on the application.

104 Order for compulsory examination hearing

(1) On the application of the informant, the Magistrates' Court may make an order requiring a person to attend before the court on a date fixed by the court for the purpose of being examined by or on behalf of the informant or producing a document or thing or both.

(2) The Magistrates' Court may make an order under subsection (1) if it is satisfied that it is in the interests of justice to do so.

(3) The Magistrates' Court may set aside an order under subsection (1) at any time, whether on its own motion or on the application of the informant or the person sought to be examined.

105 Notice of compulsory examination order to be served

(1) The informant must serve notice of an order made under section 104(1) on—

- (a) the person to whom the order relates; and
- (b) the accused.

(2) The notice must—

- (a) be in the form prescribed by the rules of court; and
- (b) be served personally on the person to whom the order relates in accordance with section 339.

(3) Section 134(1) of the **Magistrates' Court Act 1989** (contempt of court) applies to a person ordered to attend the Magistrates' Court under section 104(1) as if—

- (a) the person had been summoned as a witness and had been given or tendered any conduct money required to be given or tendered; and
- (b) the order were a summons.

106 Compulsory examination hearing

(1) A person ordered under section 104(1) to attend the Magistrates' Court for a compulsory examination hearing—

- (a) may be represented at the hearing by a legal practitioner; and
- (b) may address the court personally or through the legal practitioner.

(2) The evidence of a witness at a compulsory examination hearing must be—

- (a) sworn and given by way of examination-in-chief; and

(b) recorded in the same manner as evidence at a committal hearing.

(3) The accused may attend a compulsory examination hearing.

(4) At a compulsory examination hearing, if the Magistrates' Court determines that there are exceptional circumstances, the accused may address the court personally or through a legal practitioner representing the accused but may not cross-examine a witness.

(5) Nothing in this section excludes or limits the operation of any other law as to the competence or compellability of a witness to give evidence.

**PART 4.4—PRE-HEARING DISCLOSURE OF PROSECUTION
CASE**

107 Informant must serve hand-up brief

- (1) Subject to subsection (2), the informant must serve on the accused a hand-up brief that complies with section 110.
- (2) The informant is not required to serve a hand-up brief if he or she has served a plea brief under section 116 and the accused pleads guilty to the charge.
- (3) At the same time as the hand-up brief is served, the informant must serve on the accused a copy of the criminal record of the accused or a statement that the accused has no previous convictions.

108 How hand-up brief must be served

- (1) A hand-up brief must be served at least 42 days before the committal mention hearing unless—
- (a) the Magistrates' Court fixes another period for service; or
- (b) the accused gives written consent to a lesser period for service.
- (2) A hand-up brief must be served personally on the accused in accordance with section 339 unless the informant is satisfied that ordinary service is appropriate in all the circumstances.

Note

Section 342 provides for ordinary service.

- (3) In considering whether to effect service of the hand-up brief by ordinary service, the informant must consider whether it is an appropriate method of service in all the circumstances as known by the informant including—
- (a) the nature and gravity of the alleged offence;

- (b) whether the accused has previously been found guilty or convicted of any similar offence;
- (c) the period of time that has elapsed since the accused's address for service was ascertained.

109 Copy hand-up brief to be filed and forwarded to DPP

The informant must file a copy of the hand-up brief with the registrar, and, if the DPP is conducting the committal proceeding, forward another copy to the DPP, within 7 days after service of the brief on the accused.

110 Contents of hand-up brief

- (1) A hand-up brief must contain—
 - (a) a notice in the form prescribed by the rules of court—
 - (i) specifying the date of the committal mention hearing; and
 - (ii) explaining the nature of a committal proceeding and the purpose of the various stages; and
 - (iii) explaining the importance of the accused obtaining legal representation; and
 - (iv) advising that the accused has the right, if eligible, to legal aid under the **Legal Aid Act 1978**; and
 - (v) providing details of how to contact Victoria Legal Aid; and
 - (vi) describing the effect of section 125(2); and

- (b) a copy of the charge-sheet relating to the alleged offence; and
- (c) a statement of the material facts relevant to the charge; and
- 5 (d) any information, document or thing on which the prosecution intends to rely in the committal proceeding including—
 - 10 (i) a copy of any statement relevant to the charge signed by the accused, or a record of interview of the accused, that is in the possession of the informant; and
 - 15 (ii) a copy, or a transcript, of any audio-recording or audiovisual recording required to be made under Subdivision (30A) of Division 1 of Part III of the **Crimes Act 1958**; and
 - 20 (iii) a copy or statement of any other evidentiary material that is in the possession of the informant relating to a confession or admission made by the accused relevant to the charge; and
 - 25 (iv) a list of the persons who have made statements that the informant intends to tender at the committal hearing, together with copies of those statements; and
 - 30 (v) if a person has been examined under section 106 and the informant intends to tender a record of that examination at the committal hearing, a transcript of the recording of the examination; and
 - 35 (vi) if the committal proceeding relates (wholly or partly) to a charge for—
 - (A) a sexual offence; or

(B) an offence which involves an assault on, or injury or a threat of injury to, a person—

a transcript of any audio or video recording of a kind referred to in section 37B(2) of the **Evidence Act 1958** if the informant intends to tender the transcript at the committal hearing; and

(vii) a legible copy of any document which the prosecution intends to produce as evidence; and

(viii) a list of any things the prosecution intends to tender as exhibits; and

(ix) a clear photograph, or a clear copy of such a photograph, of any proposed exhibit that cannot be described in detail in the list; and

(x) a description of any forensic procedure, examination or test that has not yet been completed and on which the prosecution intends to rely as tending to establish the guilt of the accused; and

(e) any other information, document or thing in the possession of the prosecution that is relevant to the alleged offence including—

(i) a list of the persons (including experts) who have made statements relevant to the alleged offence which the prosecution does not intend to tender at the committal hearing; and

(ii) a copy of every statement referred to in subparagraph (i) made by each of those persons or, if the person has not made a statement, a written summary of the substance of any evidence likely to be

given by that person or a list of those statements or written summaries; and

(iii) a copy of every document relevant to the alleged offence that the prosecution does not intend to tender as an exhibit or a list of those documents; and

(iv) a list containing descriptions of any things relevant to the alleged offence that the prosecution does not intend to tender as exhibits; and

(v) a clear photograph, or a clear copy of such a photograph, of any thing relevant to the alleged offence that cannot be described in detail in the list; and

(vi) a copy of—

(A) records of any medical examination of the accused; and

(B) reports of any forensic procedure or forensic examination conducted on the accused; and

(C) the results of any tests—

carried out on behalf of the prosecution and relevant to the alleged offence but on which the prosecution does not intend to rely; and

(f) if the committal proceeding relates (wholly or partly) to a charge for a sexual offence, a copy of every statement made by the complainant to any member of the police force that relates to the alleged offence and contains an acknowledgment of its truthfulness; and

s. 111

Part 4.4—Pre-hearing Disclosure of Prosecution Case

- (g) a copy of, or a list of, any other information, documents or things required by the rules of court to be included in a hand-up brief.

Note

See section 363 as to the prosecution's general obligation of disclosure.

111 Continuing obligation of disclosure

- (1) This section applies to any information, document or thing that—

(a) comes into the informant's possession or comes to the informant's notice after the service of the hand-up brief; and

(b) would have been required to be listed, or a copy of which would have been required to be served, in the hand-up brief.

- (2) The informant must—

(a) serve on the accused a copy of the document or list; and

(b) file a copy with the registrar; and

(c) if the DPP is conducting the committal proceeding, forward another copy to the DPP—

as soon as practicable after the information, document or thing comes into the informant's possession or comes to the informant's notice.

- (3) This section does not apply to a plea brief.

Note

See section 363 as to the prosecution's general obligation of disclosure.

112 Rules with respect to statements

- (1) A statement that the informant intends to tender in a committal proceeding must be—

(a) in the form of an affidavit; or

(b) signed by the person making the statement and must contain an acknowledgment signed by that person in the presence of a person referred to in Schedule 3 that the statement is true and correct and is made in the belief that a person making a false statement in the circumstances is liable to the penalties of perjury; or

(c) in a form, and attested to in a manner, prescribed by the rules of court.

(2) If a person under the age of 18 years makes a statement that the informant intends to tender in a committal proceeding, the statement must include the person's age.

(3) If a person who cannot read makes a statement that the informant intends to tender in a committal proceeding—

(a) the statement must be read to the person before he or she signs it; and

(b) the acknowledgment must state that the statement was read to the person before he or she signed it.

(4) A person who acknowledges a statement that the informant intends to tender in a committal proceeding and that the person knows at the time to be false is liable to the penalties of perjury.

113 Rules with respect to recordings

(1) A transcript of an audio or video recording of an examination under section 106 or of the evidence-in-chief of a witness under section 37B of the **Evidence Act 1958** must be accompanied by an affidavit sworn by the person who asked the questions, or made the recording, attesting to the accuracy of the recording.

s. 114

Part 4.4—Pre-hearing Disclosure of Prosecution Case

- (2) A person who acknowledges the contents of a recording referred to in subsection (1) that the person knows at the time to be false may be dealt with as if the contents of the recording had been evidence given in court.

114 Disclosure of address or telephone number of witness

- (1) The informant must not disclose the address or telephone number (including a private, business or official address or telephone number) of any person in any information, document or thing provided to the accused under this Part unless—
- (a) the informant believes that—
 - (i) the information, document or thing does not identify the address or telephone number as that of any particular person; or
 - (ii) the address or telephone number is relevant to the offence charged and disclosure is not likely to present a reasonably ascertainable risk to the welfare or physical safety of any person; or
 - (b) the Magistrates' Court permits the disclosure in accordance with subsection (3) on application made by the informant or the accused.
- (2) For the purposes of subsection (1), the informant may delete, or render illegible, an address or telephone number included in the information, document or thing before service on the accused.
- (3) The Magistrates' Court may grant an application made under subsection (1)(b) if the court is satisfied that—

(a) the address or telephone number is relevant to the offence charged; and

(b) one of the following applies—

(i) disclosure is not likely to present a reasonably ascertainable risk to the welfare or physical safety of any person; or

(ii) having regard to the matters referred to in subsection (4), the interests of justice outweigh any risk referred to in subparagraph (i).

(4) For the purposes of subsection (3)(b)(ii), the Magistrates' Court must have regard to—

(a) the right to privacy of the witness; and

(b) the right of the accused to prepare properly for the hearing.

(5) Compliance, or a failure to comply, with subsection (1) does not affect the admissibility of a statement.

Note

See section 14 of the **Victims' Charter Act 2006** as to victims' privacy.

115 Inspection of exhibits

The accused may inspect the exhibits at a time and place agreed between the accused and the informant.

116 Informant may serve and file plea brief

(1) At any time before service of a hand-up brief, the informant may serve on the accused a plea brief that complies with section 117 if consent is given under subsection (2).

s. 117

Part 4.4—Pre-hearing Disclosure of Prosecution Case

(2) A plea brief may only be served if the accused, or a legal practitioner representing the accused, gives written consent to the service of a plea brief to—

(a) the informant; and

(b) if the DPP is conducting the committal proceeding, the DPP.

(3) A plea brief must be served on the accused in accordance with section 342 (ordinary service).

(4) Within 7 days after service of the plea brief on the accused, the informant must—

(a) file a copy of a plea brief with the registrar; and

(b) if the DPP is conducting the committal proceeding, forward another copy to the DPP.

Note

Section 142 provides for determination of a committal proceeding where a plea brief is used.

117 Contents of plea brief

(1) A plea brief must contain—

(a) a copy of the charge-sheet relating to the offence; and

(b) a statement of the material facts relevant to the charge; and

(c) a copy of any statement relevant to the charge signed by the accused, or a record of interview of the accused, that is in the possession of the informant; and

(d) a copy, or a transcript, of any audio-recording or audiovisual recording required to be made under Subdivision (30A) of Division 1 of Part III of the **Crimes Act 1958**; and

(e) a copy or statement of any other evidentiary material that is in the possession of the informant relating to a confession or admission made by the accused relevant to the charge.

(2) The informant must include in a plea brief a copy of any statement made by an alleged victim of an offence to which the committal proceeding relates if the statement—

(a) concerns the circumstances of the offence; and

(b) would be admissible in evidence; and

(c) is in the possession of the informant.

(3) The informant may include in a plea brief any other statement relevant to the charge.

(4) Sections 112 and 114 apply to a statement included in a plea brief.

PART 4.5—CASE DIRECTION

118 Case direction notice

- (1) If a hand-up brief is served under section 107, the
accused and the DPP or, if the DPP is not
conducting the committal proceeding, the
informant, must jointly file with the registrar a
case direction notice at least 7 days before the
committal mention hearing.
- (2) If the accused is not represented by a legal
practitioner and does not sign a case direction
notice, the DPP or, if the DPP is not conducting
the committal proceeding, the informant must file
the case direction notice, despite—
- (a) it not being signed by or on behalf of the
accused; and
 - (b) the accused not having participated in any
discussion or other activity connected with
its preparation.
- (3) If the Magistrates' Court at any time fixes another
date for a committal mention hearing, the court
may—
- (a) direct that another case direction notice is to
be jointly filed with the registrar by the
accused and the DPP or, if the DPP is not
conducting the committal proceeding, the
informant, at least 7 days before that date or
within any other period that is fixed by the
court; and
 - (b) give any direction that it considers
appropriate as to the matters to be dealt with
by that case direction notice.

119 Contents of case direction notice

A case direction notice—

- (a) must be in the form prescribed by the rules of court;
- (b) must specify the procedure by which it is proposed that the matter be dealt with or indicate whether an adjournment of the committal mention hearing would assist the parties in determining how the matter should be dealt with;
- (c) must state the names of any witnesses that the accused intends to seek leave to cross-examine and specify in respect of each of those witnesses whether the informant consents to or opposes leave being granted;
- (d) if the informant opposes leave being granted to cross-examine a specified witness, must state—
 - (i) any issue identified by the accused to which the proposed questioning relates and any reason provided by the accused as to why the evidence of the witness is relevant to that issue; and
 - (ii) why cross-examination of the witness on that issue is justified; and
 - (iii) why the informant opposes leave being granted;
- (e) may include a statement that the accused requires—
 - (i) specified items listed in the hand-up brief to be produced for inspection or a copy given to the accused on or before the committal mention hearing;

(ii) a copy of any information, document or thing specified by the accused that the accused considers ought to have been included in the hand-up brief;

(iii) particulars of previous convictions of any witness on whose evidence the prosecution intends to rely in the committal proceeding;

(f) may include a statement that the accused is prepared, or is not prepared, to proceed or proceed further with the committal hearing while a forensic procedure, examination or test described in the hand-up brief remains uncompleted;

(g) must be signed by or on behalf of the accused and the DPP or, if the DPP is not conducting the committal proceeding, the informant.

120 Late application for leave to cross-examine witness

(1) The Magistrates' Court may permit an accused to apply for leave to cross-examine a witness after the expiry of the period for filing a case direction notice if the court is satisfied that it is in the interests of justice to do so, having regard to the reason why the application was not made before the expiry of the period.

(2) If the Magistrates' Court allows an accused to apply for leave to cross-examine a witness in the circumstances referred to in subsection (1), the accused and the DPP or, if the DPP is not conducting the committal proceeding, the informant, must jointly file with the registrar another case direction notice—

(a) at least 7 days before the next committal mention hearing; or

(b) within any other period that is fixed by the court.

(3) Section 119(b) does not apply to a case direction notice required to be filed under subsection (2).

121 Adjournment without appearance of parties

(1) If the parties have indicated in a case direction notice under section 118 that an adjournment of the committal mention hearing would assist them in determining how the matter should be dealt with, the Magistrates' Court may, without requiring the appearance of the informant or the accused, if satisfied that it is in the interests of justice to do so—

(a) adjourn the hearing for up to 14 days and fix another date for a committal mention hearing; and

(b) if the accused has been granted bail in respect of the committal proceeding—

(i) excuse the accused from attending on the date on which the accused was bailed to attend; and

(ii) extend the bail of the accused to the date fixed under paragraph (a).

(2) If the Magistrates' Court adjourns a committal mention hearing under subsection (1), it must give to the prosecution and the accused written notice of the date to which the hearing is adjourned.

(3) If the Magistrates' Court extends bail under subsection (1)(b)(ii) it must give to the accused and the surety or sureties, if any, written notice of—

(a) the extension of bail by the court in the absence of the accused and the surety; and

- (b) the date, time and place at which the accused is bound to attend; and
- (c) the consequences of failure to attend on that date at that time and place.

122 Compliance with request to copy or inspect items or disclose previous convictions of witness

(1) Subject to subsection (2), the informant must comply with any reasonable request referred to in section 119(e)(i) or (ii) for a copy of an item but, if the informant considers that it is not reasonable to copy the item owing to its size or nature, the informant must allow the accused to inspect it on or before the committal mention hearing.

(2) The informant may object to the production of an item requested under section 119(e)(i) or (ii) on any ground referred to in section 45 or 114.

(3) The informant may object to the disclosure of the particulars of any previous conviction of any witness requested under section 119(e)(iii) if the previous conviction is, because of its character, irrelevant to the proceeding but the informant must advise the accused of the existence of any undisclosed previous convictions.

Note

See section 14 of the **Victims' Charter Act 2006** as to victims' privacy.

(4) Nothing in this section—

- (a) prevents the accused applying for the issue of a witness summons in respect of an item listed in the hand-up brief; or
- (b) requires the informant to produce an item listed in the hand-up brief if its production is not requested under section 119(e)(i) or a witness summons is not issued in respect of

it, unless the Magistrates' Court otherwise orders; or

- (c) prevents the Magistrates' Court or the informant proceeding, or proceeding further, with the committal hearing, irrespective of any statement included by the accused in the notice under section 119(f).

Note

At a committal mention hearing the Magistrates' Court may hear and determine any objection to disclosure of material: section 125(1)(e).

123 No cross-examination of certain witnesses in sexual offence cases

Despite anything to the contrary in this Part, the Magistrates' Court must not grant leave to cross-examine a witness who—

- (a) is a complainant in a proceeding that relates (wholly or partly) to a charge for a sexual offence; and
- (b) was a child or a person with a cognitive impairment when the criminal proceeding was commenced; and
- (c) made a statement a copy of which was served in the hand-up brief or whose evidence-in-chief or examination at a compulsory examination hearing was recorded and a transcript of the recording was served in the hand-up brief.

124 Leave required to cross-examine other witnesses

- (1) A witness (other than a witness referred to in section 123) cannot be cross-examined without leave being granted under this section.

(2) If the informant consents to leave to cross-examine a witness being granted, the Magistrates' Court must grant leave unless the court considers that it is inappropriate to do so.

(3) If the informant does not consent to leave to cross-examine a witness being granted, the Magistrates' Court must not grant leave unless the court is satisfied that—

(a) the accused has identified an issue to which the proposed questioning relates and has provided a reason why the evidence of the witness is relevant to that issue; and

(b) cross-examination of the witness on that issue is justified.

(4) In determining whether cross-examination is justified, the Magistrates' Court must have regard to the need to ensure that—

(a) the prosecution case is adequately disclosed; and

(b) the issues are adequately defined; and

(c) the evidence is of sufficient weight to support a conviction for the offence with which the accused is charged; and

(d) a fair trial will take place if the matter proceeds to trial, including that the accused is able adequately to prepare and present a defence; and

(e) matters relevant to a potential plea of guilty are clarified; and

(f) matters relevant to a potential discontinuance of prosecution under section 177 are clarified; and

- (g) trivial, vexatious or oppressive cross-examination is not permitted; and
- (h) the interests of justice are otherwise served.

5 (5) In addition to the requirements of subsection (4), if the witness is under 18 years of age, the Magistrates' Court must have regard to—

- (a) the need to minimise the trauma that might be experienced by the witness in giving evidence; and
- 10 (b) any relevant condition or characteristic of the witness, including age, culture, personality, education and level of understanding; and
- (c) any mental, intellectual or physical disability to which the witness is or appears to be
- 15 subject and of which the court is aware; and
- (d) the importance of the witness to the case for the prosecution; and
- (e) the existence or lack of evidence that corroborates the proposed evidence of the
- 20 witness; and
- (f) the extent of any proposed admissions; and
- (g) the probative value of the proposed evidence of the witness; and
- (h) the issues in dispute; and
- 25 (i) the weight of the proposed evidence of the witness; and
- (j) any statements of other witnesses that contradict the proposed evidence of the witness.

**PART 4.6—COMMITTAL MENTION AND CASE
CONFERENCE**

125 Committal mention hearing

(1) At a committal mention hearing, the Magistrates'
Court may—

- (a) immediately determine the committal proceeding in accordance with section 141 or 142;
- (b) offer a summary hearing or determine an application for a summary hearing in accordance with section 30;
- (c) hear and determine an application for leave to cross-examine a witness;
- (d) fix a date for a committal hearing;
- (e) hear and determine any objection to disclosure of material;
- (f) fix another date for a committal mention hearing;
- (g) make any other order or give any direction that the court considers appropriate.

(2) In considering whether to fix another date for a committal mention hearing to enable the accused to obtain legal representation, the Magistrates' Court must have regard to whether the accused has made reasonable attempts to obtain legal representation.

126 Time for holding committal mention hearing

(1) A committal mention hearing must be held—

- (a) in the case of a sexual offence, within 3 months after the commencement of the criminal proceeding for the offence; or

(b) in the case of any other offence, within
6 months after the commencement of the
criminal proceeding for the offence—

or any other period fixed by the Magistrates' Court
under subsection (2).

Note

Section 6(1) sets out how a criminal proceeding is
commenced.

(2) The Magistrates' Court may fix a longer period for
the holding of a committal mention hearing if the
court is satisfied that it is in the interests of justice
that another period should be fixed having regard
to—

(a) the seriousness of the offence; and

(b) the reason a longer period is required.

(3) Subsection (1) does not apply—

(a) if the accused has failed to attend in
accordance with the conditions of his or her
bail; or

(b) if a warrant to arrest the accused has been
issued and at the end of the period referred to
in subsection (1)(a) or (b) (as the case
requires) the accused has not been arrested;
or

(c) if the accused requests that a committal
mention hearing be held after the period
referred to in subsection (1)(a) or (b) (as the
case requires) and the Magistrates' Court is
satisfied that in the interests of justice the
request should be granted.

- (4) If a committal mention hearing has not been held before the expiry of the period referred to in subsection (1)(a) or (b) (as the case requires), or any longer period fixed under subsection (2), the Magistrates' Court, on the application of the accused, may order the accused to be discharged.

127 Committal case conference

- (1) The Magistrates' Court may direct the parties to a committal proceeding to appear at a committal case conference to be conducted by a magistrate.
- (2) Wherever practicable, a committal case conference should be conducted on the date of the committal mention hearing.

- (3) Evidence of—

- (a) anything said or done in the course of a committal case conference; or
- (b) any document prepared solely for the purposes of a committal case conference—

is not admissible in any proceeding before any court or tribunal or in any inquiry in which evidence is or may be given before any court or person acting judicially, unless all parties to the committal case conference agree to the giving of the evidence.

PART 4.7—COMMITTAL HEARING

128 Committal hearing

At a committal hearing, the Magistrates' Court—

- (a) may offer a summary hearing or determine an application for a summary hearing in accordance with section 30;
- (b) may hear evidence in accordance with section 130;
- (c) if the committal hearing proceeds, must determine, in accordance with section 141, whether there is evidence of sufficient weight to support a conviction;
- (d) may make any order or give any direction that the court considers appropriate.

129 Attendance of witnesses

- (1) If leave is granted to cross-examine a witness referred to in section 124 or to call such a witness to give oral evidence-in-chief, the witness must attend on the date to which the committal hearing is adjourned for the witness to give evidence.
- (2) The informant must ensure that the witness attends at the time and place fixed for the giving of evidence by the witness.
- (3) A witness who is required to attend a committal hearing must attend on any date to which the hearing is adjourned unless excused from attendance by the Magistrates' Court.

Note

See section 134 for powers of the Magistrates' Court and inadmissibility of statement etc. when a witness who is required to attend a committal hearing fails to do so.

130 Giving of evidence by witnesses

(1) In this section—

recording means an audio or video recording of—

(a) the evidence-in-chief of a witness; or

(b) the compulsory examination of a person under section 106—

a transcript of which was served in the hand-up brief;

statement means a statement of a witness, a copy of which was served in the hand-up brief.

(2) A witness may be called to give evidence at a committal hearing if—

(a) the Magistrates' Court grants leave under section 124 for the cross-examination of the witness; or

(b) having regard to the interests of justice, the Magistrates' Court grants leave to the prosecution to call the witness to give oral evidence-in-chief.

(3) If the Magistrates' Court grants leave under section 124 to cross-examine a witness, the evidence-in-chief of the witness must be confined to the witness identifying himself or herself (in a manner consistent with section 131) and attesting to the truthfulness of the statement or the contents of the recording, unless the Magistrates' Court gives leave under subsection (4) or (5).

(4) If it is in the interests of justice, the Magistrates' Court may give leave for a witness referred to in subsection (3) to give oral evidence-in-chief supplementary to the statement or recording.

(5) If exceptional circumstances exist, the Magistrates' Court may give leave for a witness referred to in subsection (3) to give the whole of his or her evidence-in-chief orally.

(6) On application by a party, the Magistrates' Court may permit a statement or the transcript of a recording to be read aloud before the witness is asked to attest to its truthfulness or is cross-examined.

(7) Subject to section 124, a witness who gives evidence-in-chief may be cross-examined and re-examined.

(8) Evidence given at a committal hearing must be recorded in accordance with Part VI of the **Evidence Act 1958**.

131 Disclosure of address or telephone number of witness

(1) A witness whose address or telephone number was not disclosed in material provided to the accused under Part 4.4 must not disclose that information to the Magistrates' Court unless the court permits the disclosure in accordance with subsection (2) on application by the informant or the accused.

(2) The Magistrates' Court may only grant an application under subsection (1) if the court is satisfied that—

(a) the address or telephone number is relevant to the offence charged; and

(b) one of the following applies—

(i) disclosure is not likely to present a reasonably ascertainable risk to the welfare or physical safety of any person; or

- (ii) having regard to the matters referred to in subsection (3), the interests of justice outweigh any risk referred to in subparagraph (i).

- (3) For the purposes of subsection (2)(b)(ii), the Magistrates' Court must have regard to—

- (a) the right to privacy of the witness; and
- (b) the right of the accused to prepare properly for the hearing.

132 Cross-examination of witnesses

- (1) Subject to this section, an accused who obtains leave to cross-examine a witness is not limited to cross-examining the witness on the issue with respect to which leave was obtained.

- (2) Without limiting any other power that it has to forbid or disallow questions, the Magistrates' Court may disallow any question asked of a witness in the course of cross-examination in a committal hearing if it appears to the court that—

- (a) the accused has not identified an issue to which the question relates and has not provided a reason why the evidence of the witness is relevant to that issue; or
- (b) the question is not justified.

- (3) In determining whether a question is justified, the Magistrates' Court must have regard to the matters referred to in section 124(4) and (5).

133 Special rules applicable to sexual offences

- (1) This section applies to a committal hearing relating to a charge for a sexual offence, whether or not the committal hearing relates to any other charge against the same or any other person and whether or not it is alleged that there are aggravating circumstances.

- (2) The informant must be represented by a legal practitioner.
- (3) While the complainant is giving evidence or a recording of the evidence of the complainant or of his or her examination under section 106 is being played, only the following persons may be present—
- (a) the informant;
 - (b) the accused;
 - (c) a person whom the complainant wishes to have present for the purpose of providing emotional support to him or her and who is available and approved by the court to be present;
 - (d) the legal practitioners representing the prosecution and the accused and not more than one assistant for each legal practitioner;
 - (e) the court officials whose presence is required;
 - (f) authorized officers within the meaning of the **Court Security Act 1980** whose presence is required for court security purposes;
 - (g) any person recording the evidence in accordance with Part VI of the **Evidence Act 1958**;
 - (h) any other person who has been authorised by the Magistrates' Court to be present.
- (4) The Magistrates' Court must give reasons for authorising a person to be present under subsection (3)(h).

134 Failure of witness to attend committal hearing

(1) If a witness who is required to attend a committal hearing does not attend, the Magistrates' Court may—

- (a) adjourn the hearing; or
- (b) cause a warrant to arrest or summons to be issued to compel the attendance of the witness; or
- (c) continue the committal hearing in the absence of the witness if satisfied that it would not be unfair to the accused to do so.

(2) If the Magistrates' Court continues the committal hearing in the absence of the witness referred to in subsection (1), the statement or recorded evidence or examination of the witness is inadmissible in evidence in the committal hearing.

135 Court may permit accused to be absent from committal hearing

(1) Before or during a committal hearing, an accused may apply to the Magistrates' Court for permission to be absent from the committal hearing for a specified period.

(2) On application made under subsection (1), the Magistrates' Court may permit an accused to be absent from the committal hearing for a period, and subject to any conditions, specified by the court if the court—

- (a) is satisfied that there are special circumstances in respect of the accused; and
- (b) considers that the committal hearing cannot be postponed without undue prejudice or inconvenience to the prosecution or any other accused or any witness.

(3) If the Magistrates' Court permits an accused to be absent from a committal hearing, the court may continue the committal hearing in the absence of the accused.

(4) The power under section 330(3) to excuse the attendance of an accused does not apply to this section.

136 Accused who absconds etc. during a committal hearing

If, during a committal hearing, an accused—

- (a) absconds; or
- (b) behaves in a manner necessitating the removal of the accused from the courtroom and the Magistrates' Court orders the accused to be removed; or
- (c) is absent for any other reason without the permission of the court—

the Magistrates' Court may continue the committal hearing in the absence of the accused if the court considers that the committal hearing cannot be postponed without undue prejudice or inconvenience to the prosecution or any other accused or any witness.

137 Accused (natural person) absent at close of prosecution case

If—

- (a) a committal hearing is continued in the absence of an accused who is a natural person; and
- (b) the accused is not present when the evidence for the prosecution is concluded—

the Magistrates' Court must, unless it makes an order under section 141(4)(a) for the accused to be discharged—

- (c) postpone the committal hearing until the accused is present; or
- (d) if any other accused is present, postpone the committal hearing in respect of the charge against the absent accused.

138 Procedure on accused's attendance after absence

If an accused—

- (a) has been absent from a committal hearing; and
- (b) was not represented by a legal practitioner during the absence—

then, on the accused's attendance, the Magistrates' Court—

- (c) must direct that—
 - (i) the record of evidence be played or read in the presence of the accused; or
 - (ii) the accused be supplied with a transcript of the evidence; and
- (d) may, on the application of the accused and subject to section 124, recall for further examination any witness who gave oral evidence during the accused's absence.

PART 4.8—EVIDENCE IN COMMITTAL PROCEEDING

139 Admissibility of non-oral evidence

- (1) Subject to subsections (2) and (3), on proof of their service on the accused in accordance with Part 4.4, the following are admissible as if their contents were a record of evidence given orally—
- (a) any statement the truthfulness of which has been attested to, other than a statement that is inadmissible under section 134(2);
 - (b) any exhibit or document referred to in a statement which is admissible;
 - (c) any recording the truthfulness of the contents of which has been attested to, other than a recording that is inadmissible under section 134(2);
 - (d) any other recording a transcript of which has been served in the hand-up brief, other than a recording that is inadmissible under section 134(2).
- (2) The Magistrates' Court may rule as inadmissible the whole or any part of—
- (a) a statement; or
 - (b) any exhibit or document referred to in a statement; or
 - (c) the contents of a recording.
- (3) A recording, a transcript of which has been served in the hand-up brief, is only admissible if it is proved that the accused and his or her legal practitioner were given a reasonable opportunity to listen to and, in the case of a video recording, view the recording.

140 Procedure if accused makes admission of relevant fact or matter

- 5 (1) If under section 184 of the **Evidence Act 2008** an accused makes, during a committal proceeding, an admission of any fact or matter that is relevant in the proceeding, the Magistrates' Court must cause the admission to be included in the record of the proceeding.
- 10 (2) An admission made by an accused during a committal proceeding may be used in evidence at the subsequent trial.
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**PART 4.9—DETERMINATION OF COMMITTAL
PROCEEDING**

**141 Determination of committal proceeding where
hand-up brief used**

- (1) After the evidence for the prosecution is concluded, the Magistrates' Court must enquire whether the accused intends to call any witness or make any submission.
- (2) If the accused is not represented by a legal practitioner, the Magistrates' Court must inform the accused, in a manner likely to be understood by the accused, that—
- (a) the accused has the right to answer the charge and must choose either—
- (i) to give sworn evidence, that is, to enter the witness box, take the oath or make an affirmation and say what the accused wants to say in answer to the charge and then to respond to any questions from the prosecution or the court about the evidence of the accused; or
- (ii) to say nothing in answer to the charge; and
- (b) in either case, the accused may call any witnesses to give sworn evidence for the accused.
- (3) After giving the information referred to in subsection (2), the Magistrates' Court must ask the accused what the accused wants to do.

(4) At the conclusion of all of the evidence and submissions, if any, the Magistrates' Court must—

(a) if in its opinion the evidence is not of sufficient weight to support a conviction for any indictable offence, discharge the accused; or

(b) if in its opinion the evidence is of sufficient weight to support a conviction for the offence with which the accused is charged, commit the accused for trial in accordance with section 144; or

(c) if in its opinion the evidence is of sufficient weight to support a conviction for an indictable offence other than the offence with which the accused is charged, adjourn the committal proceeding to enable the informant to file a charge-sheet in respect of that other offence and, if a charge-sheet is filed, must commit the accused for trial in accordance with section 144.

(5) If the informant does not file a charge-sheet for the other offence within the period of an adjournment under subsection (4)(c), the Magistrates' Court must discharge the accused.

142 Determination of committal proceeding where plea brief used

(1) If a plea brief is served, the Magistrates' Court, at the committal mention hearing, must—

(a) ask how the accused pleads to the charge to which the committal proceeding relates; and

(b) if the accused pleads guilty and, in the opinion of the court, the evidence is of sufficient weight to support a conviction for the offence with which the accused is charged, commit the accused for trial in accordance with section 144.

- (2) If the accused does not plead guilty to the charge to which the committal proceeding relates, the Magistrates' Court must direct the informant to prepare and serve a hand-up brief.

143 Determination of committal proceeding where accused elects to stand trial

- (1) Any time after the service on an accused of a hand-up brief, the accused may elect to stand trial.

- (2) An election is made by—

(a) filing with the registrar a notice in the form prescribed by the rules of court and signed by the accused; and

(b) serving a copy of the notice on the informant in accordance with section 340.

- (3) As soon as practicable after a notice is filed with the registrar under this section, the Magistrates' Court must—

(a) if the accused is in custody, direct that the accused be brought before the court; or

(b) if the accused is not in custody, direct that a summons to attend or warrant to arrest be issued.

- (4) On the attendance of the accused before the Magistrates' Court, if the court considers that the accused understands the nature and consequence of the election, the court must commit the accused for trial in accordance with section 144.

144 Procedure before and on committing accused for trial

- (1) Before committing an accused for trial, the Magistrates' Court must, in the manner prescribed by the rules of court, if any—

(a) ask the accused whether the accused pleads guilty or not guilty to the charge; and

- (b) inform the accused that the sentencing court may take into account a plea of guilty and the stage in the proceeding at which the plea or an intention to plead guilty is indicated.

5 (2) On committing an accused for trial, the Magistrates' Court must—

- (a) if the accused was not represented by a legal practitioner in the committal proceeding—

10 (i) explain to the accused the importance of obtaining legal representation for the trial; and

(ii) advise that the accused has the right, if eligible, to legal aid under the **Legal Aid Act 1978**; and

15 (iii) warn the accused that, if the accused wishes to be legally aided, it is the accused's responsibility to make application to Victoria Legal Aid as soon as possible; and

- 20 (b) explain to the accused, in a manner likely to be understood by the accused—

(i) the provisions of section 190 (alibi evidence), if relevant; and

25 (ii) Rules (5) to (5C) in section 37A(1) of the **Evidence Act 1958**, if relevant; and

(iii) any other information required to be given by the rules of court; and

- 30 (c) if the accused is a natural person, remand the accused in custody, or grant bail, until trial or a date before trial fixed by the court; and

Note

See section 333 where accused is undergoing a sentence of detention in a youth justice centre.

- (d) in the case of a corporate accused, order the accused to appear, by a representative or a legal practitioner, on the day on which the trial of the accused is listed to commence or on any other day specified by the court.

Note

See section 252 (offence for corporate accused to fail to appear on day trial listed to commence etc.).

PART 4.10—PROCEDURE AFTER COMMITTAL**145 Transfer of summary offences that are related offences on or after committal**

(1) Subject to subsection (3), on committal for trial of an accused charged with an indictable offence, the Magistrates' Court must order that all proceedings in respect of charges against the accused for summary offences that are related offences are transferred to the court to which the accused has been committed for trial.

(2) If—

(a) an accused charged with an indictable offence is committed for trial; and

(b) before trial of the indictable offence, the accused is charged with a summary offence that is a related offence—

the Magistrates' Court must, subject to subsection (3), order that the proceeding for the summary offence is transferred to the court to which the accused has been committed for trial.

(3) If the informant to a charge for a summary offence that is a related offence and the accused agree, the Magistrates' Court may order that the proceeding for that charge is not transferred under this section.

Notes

- 1 See the definition of *related offences* in section 3.
- 2 Section 242 enables the Supreme Court or the County Court to hear and determine a charge for a related summary offence.

146 Documents to be forwarded to DPP

After committal the registrar must forward to the DPP—

(a) the depositions; and

- (b) all exhibits which have remained in the custody of the Magistrates' Court; and
- (c) all recordings referred to in section 139 admitted in evidence in the committal proceeding; and
- (d) copies of all process filed in the Magistrates' Court in the proceeding; and
- (e) copies of all bail undertakings in the proceeding.

147 Accused entitled to copies of depositions and exhibits

An accused committed for trial is entitled as soon as possible after being committed—

- (a) to receive free of charge from the DPP—
 - (i) a copy of the depositions; and
 - (ii) a transcript of any recording admitted in evidence, if a transcript has not previously been supplied to the accused; and
- (b) to examine any exhibits.

148 Absent corporate accused to be notified of committal

If a corporate accused does not appear at its committal proceeding and is committed for trial in its absence, the DPP or, if the DPP did not conduct the committal proceeding, the informant must serve on the accused in accordance with section 341 within 14 days after the committal a notice stating—

- (a) that the accused has been committed for trial on a specified charge or specified charges; and

- 5 (b) that the Magistrates' Court has ordered the
accused to appear, by a representative or a
legal practitioner, on the day on which the
trial of the accused is listed to commence or
on any other day specified by the court and
that it is an offence not to comply with that
order; and
- 10 (c) the date and time specified in the order at
which the accused must appear, by a
representative or a legal practitioner; and
- (d) that if the accused does not appear on the
date and time specified in the order the court
may, in its absence, proceed to hear and
determine the charge.
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**PART 4.11—TAKING EVIDENCE AFTER ACCUSED
COMMITTED FOR TRIAL**

**149 Application for order that evidence be taken after
committal**

- (1) If an accused has been committed for trial, the accused may apply to the Magistrates' Court for an order that the evidence of a person be taken at a time and place fixed by the court.
- (2) An applicant for an order under subsection (1) must give notice of the application, in the form prescribed by the rules of court, to the DPP and the co-accused, if any, at least 14 days before the hearing of the application or any shorter period that is agreed to by the DPP.

150 Determination of application

- (1) Subject to this section, after an accused has been committed for trial the Magistrates' Court may order that the evidence of a person be taken at a time and place fixed by the court.
- (2) The Magistrates' Court must not make an order under subsection (1) in respect of a person who—
- (a) was examined as a witness at the committal hearing; or
 - (b) made a statement the contents of which were admitted as a record of evidence in the committal proceeding under section 139(1)(a); or
 - (c) gave evidence-in-chief in accordance with section 37B of the **Evidence Act 1958** and the contents of the recording were admitted as a record of evidence in the committal proceeding under section 139(1)(c)—

s. 151

Part 4.11—Taking Evidence After Accused Committed for Trial

unless the person subsequently makes a statement or a supplementary statement the truthfulness of which has been attested to.

(3) The Magistrates' Court must not make an order under subsection (1) unless it is satisfied that in relation to the statement or supplementary statement of the person—

(a) there is an issue to which the evidence proposed to be taken relates; and

(b) there is a reason as to why the evidence of the person is relevant to that issue; and

(c) taking of evidence from the person is justified.

(4) In determining whether the taking of evidence from the person is justified, the Magistrates' Court must have regard to the matters referred to in section 124(4) (other than paragraph (c)) and 124(5).

151 Attendance of witness

(1) If the accused obtains an order under section 150(1) with respect to the examination of a prosecution witness, the informant must ensure that the witness attends at a time and place fixed by the Magistrates' Court for examination.

(2) A witness who is required to attend for examination in accordance with an order under section 150(1) must attend on any day to which the hearing is adjourned unless excused from attendance by the Magistrates' Court.

(3) If a witness who is required to attend for examination in accordance with an order under section 150(1) does not attend, the Magistrates' Court may cause a warrant to arrest or summons to be issued to compel the attendance of the witness.

152 Taking of evidence after committal

- (1) If the accused obtains an order under section 150(1), the DPP may appear at the hearing at which evidence is taken and address the Magistrates' Court.
- (2) On making an order under section 150(1) or at the hearing at which evidence is taken, the Magistrates' Court may make any order with respect to the examination or cross-examination of the person giving evidence under this section if the court considers that it is in the interests of justice to do so.
- (3) A witness referred to in section 123 must not be cross-examined when giving evidence under this section.
- (4) A person cross-examining a witness giving evidence under this section is not limited to cross-examining on the issue with respect to which the order was made under section 150(1).
- (5) Section 132 applies in relation to the cross-examination of a person giving evidence under this section as if the person were a witness in the course of cross-examination in a committal hearing.
- (6) Section 133 applies as if a reference to a committal hearing were a reference to a hearing at which evidence is given under this section.
- (7) The evidence of a person given under this section must be given and recorded in the same manner as evidence at a committal hearing.
- (8) The record of the evidence of any person given under this section—
 - (a) must be forwarded as soon as possible to the DPP by the registrar; and

Criminal Procedure Bill 2008

s. 152

Part 4.11—Taking Evidence After Accused Committed for Trial

- (b) has effect and must be treated as if it were a record of evidence given at the committal hearing.
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PART 4.12—GENERAL

153 Special mention hearing

At a special mention hearing, the Magistrates' Court may—

- (a) change the date fixed by the court for any hearing in a committal proceeding;
- (b) make any order or give any direction that the court considers appropriate for the management of the committal proceeding;
- (c) if the court considers it appropriate to do so, immediately conduct a committal mention hearing and determine a committal proceeding in accordance with section 142.

154 Non-appearance of corporate accused

(1) If a corporate accused does not appear in answer to a summons to answer to a charge for an indictable offence, the Magistrates' Court may conduct a committal proceeding in the absence of the accused if—

- (a) the court is satisfied that the charge and the date of the committal mention hearing in relation to it have been brought to the notice of the accused; and
- (b) the court considers that it is appropriate to do so.

(2) If the Magistrates' Court conducts a committal proceeding in the absence of a corporate accused, the court may dispense with or vary any requirement imposed by or under this Chapter.

155 Nature of committal proceeding

Nothing in this Act alters the nature of a committal proceeding from that existing immediately before the commencement of this section.

156 Nothing in Chapter affects certain powers of DPP

Nothing in this Chapter affects the power of the DPP—

- (a) to file an indictment against a person for an offence if, on a committal proceeding conducted in relation to a charge for that offence, the Magistrates' Court ordered the person to be discharged on the charge; or
- (b) to discontinue a prosecution under section 177, or not to take within the period prescribed by section 163 any step mentioned in that section, in relation to a charge on which a person was committed for trial.

157 DPP may give directions for release of property tendered in evidence

- (1) If property is tendered in evidence during a committal proceeding and an accused is committed for trial for an offence with respect to the property, a person may apply in writing to the DPP for the release of the property.
- (2) On receipt of an application under subsection (1), the DPP may give directions in writing that the property be released to the applicant.
- (3) The release of property under subsection (2) may be subject to a condition that the property released must be produced at the trial and to any other conditions that the DPP considers appropriate.

(4) The DPP may require a person to whom property is released under this section to give an undertaking to comply with the conditions to which the release is subject.

(5) A person must not fail, without reasonable cause, to comply with an undertaking given by the person under subsection (4).

Penalty: Level 10 fine (10 penalty units maximum).

(6) Directions given under subsection (2) do not affect the legal title to the property or any legal right to possession of the property.

(7) The DPP is not liable for or with respect to any direction given by the DPP under subsection (2).

Note

Chapter 8 contains general provisions that apply to all criminal proceedings.

CHAPTER 5—TRIAL ON INDICTMENT

PART 5.1—INTRODUCTION

158 Application of Chapter

This Chapter applies if—

- (a) an accused is committed for trial under Chapter 4; or
 - (b) a direct indictment is filed against an accused.
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5

PART 5.2—INDICTMENT AND PLACE OF TRIAL

159 DPP or Crown Prosecutor may file an indictment

(1) Subject to the **Public Prosecutions Act 1994**, the DPP or a Crown Prosecutor in the name of the DPP may file an indictment.

(2) An indictment may be filed at any time, except where otherwise provided by or under this or any other Act.

Note

Section 163 provides time limits for the filing of certain indictments.

(3) An indictment must—

(a) be in writing; and

(b) be signed by the DPP or a Crown Prosecutor in the name of the DPP; and

(c) comply with Schedule 1.

Notes

1 Section 253 abolishes the common law procedure of calling a grand jury.

2 Section 172 permits the DPP to nominate an address for service of documents. That information may be included on an indictment.

160 Choice of Supreme Court or County Court for filing an indictment

(1) An indictment may be filed in—

(a) the Supreme Court; or

(b) the County Court, if all of the indictable offences alleged in the indictment are within the jurisdiction of that court.

Note

See section 36A of the **County Court Act 1958** for the criminal jurisdiction of the County Court.

(2) In determining whether to file an indictment in the Supreme Court or in the County Court, the DPP or a Crown Prosecutor must have regard to—

- (a) the complexity of the case; and
- (b) the seriousness of the alleged offence; and
- (c) any particular importance attaching to the case; and
- (d) any other consideration that the DPP or Crown Prosecutor considers relevant.

161 Direct indictment commences criminal proceeding

The filing of a direct indictment commences a criminal proceeding.

Notes

- 1 See the definition of *direct indictment* in section 3. This includes an indictment filed after the Magistrates' Court declines to commit an accused for trial in respect of the offence charged in the indictment or a related offence.
- 2 A criminal proceeding may also be commenced—
 - (a) in accordance with section 6; or
 - (b) by a direction under section 362 that a person be tried for perjury.

162 Filing of any other indictment does not commence criminal proceeding

The filing of an indictment other than a direct indictment does not commence a new criminal proceeding against the accused.

163 Time limits for filing certain indictments

- (1) If a person is committed for trial in respect of an offence other than a sexual offence, the DPP or a Crown Prosecutor may file an indictment against the person—
 - (a) within 6 months after the date of committal; or

(b) if the period referred to in paragraph (a) or any extension of that period is extended under section 247, within the extended period.

(2) If a person is committed for trial in respect of a sexual offence in which the complainant was a child or a person with a cognitive impairment when the criminal proceeding was commenced, the DPP or a Crown Prosecutor may file an indictment against the person—

(a) within 14 days after the date of committal; or

(b) if the period referred to in paragraph (a) or any extension of that period is extended under section 247, within the extended period.

(3) If a person is committed for trial in respect of a sexual offence other than one referred to in subsection (2), the DPP or a Crown Prosecutor may file an indictment against the person—

(a) at least 28 days before the day on which the trial is listed to commence; or

(b) if the period referred to in paragraph (a), or any extension or abridgment of that period, is extended or abridged under section 247, within the extended or abridged period.

164 Filing of fresh indictment

(1) In this section—

fresh indictment means an indictment which includes a charge for the same offence as an offence charged in an indictment previously filed in court against that accused or a related offence.

(2) Nothing in section 163 prevents the filing of a fresh indictment.

- (3) The filing of a fresh indictment does not commence a new criminal proceeding.
- (4) On the filing of a fresh indictment against an accused, proceedings in relation to a charge for the same offence or a related offence in an indictment previously filed in court against that accused are discontinued.

Note

See the definition of *related offences* in section 3.

165 Order for amendment of indictment

- (1) The court at any time may order that an indictment be amended in any manner that the court thinks necessary, unless the required amendment cannot be made without injustice to the accused.
- (2) If an indictment is amended by order under this section, the indictment is to be treated as having been filed in the amended form for the purposes of the trial and all proceedings connected with the trial.

166 Errors etc. in indictment

- (1) An indictment is not invalid by reason only of a failure to comply with Schedule 1.
- (2) A charge on an indictment is not invalid by reason only of—
- (a) omitting to state the time at which the offence was committed unless time is an essential element of the offence; or
 - (b) incorrectly stating the time at which the offence was committed; or
 - (c) stating the offence to have been committed on an impossible day or on a day that never happened.

**167 Supreme Court may order that accused be tried in
County Court or Supreme Court**

(1) If—

(a) an indictment against an accused is filed in
the Supreme Court; and

(b) the offence charged in the indictment may be
tried by the County Court—

the Supreme Court may order that the accused be
tried at a sitting of the County Court specified in
the order.

(2) If an indictment against an accused is filed in the
County Court, the Supreme Court may order that
the accused be tried at a sitting of the Supreme
Court specified in the order.

**168 Court may transfer certain charges to Magistrates'
Court**

(1) At any time except during trial, the Supreme
Court or the County Court may order that a
proceeding for a charge for an indictable offence
that may be heard and determined summarily be
transferred to the Magistrates' Court if—

(a) the accused consents to the transfer; and

(b) the court considers that the charge is
appropriate to be determined summarily,
having regard to the matters in section 29(2).

Note

See section 28 for indictable offences that may be heard and
determined summarily.

(2) The court must not transfer a charge that the
Magistrates' Court has refused to hear and
determine summarily unless there has been a
significant change in the charges against the
accused or in the prosecution case against the
accused.

- (3) If an order is made under this section, the transferred charge must be heard and determined summarily.

169 Place of hearing of criminal trial

- (1) A criminal trial in the Supreme Court or the County Court is to be held in the court sitting at the place that is nearest to the place where the offence is alleged to have been committed, unless an order is made under section 192.
- (2) A criminal trial is not invalid only because it was conducted at a place other than the place referred to in subsection (1).

170 Multiple charges or multiple accused on single indictment

- (1) If an indictment contains more than one charge, the charges must be heard together unless an order is made under section 193 or 195.
- (2) If an indictment names more than one accused, whether in the same charge or separate charges, the charge or charges against all accused must be tried together unless an order is made under section 193.

PART 5.3—NOTIFYING ACCUSED OF INDICTMENT

171 Copy indictment to be served

- (1) The DPP must, as soon as practicable after an indictment is filed, serve on the accused—
- (a) a copy of the indictment; and
 - (b) if the DPP does not have notice that the accused is represented by a legal practitioner, a notice in the form prescribed by the rules of court—
 - (i) advising that legal representation should be sought and that the accused has the right, if eligible, to legal aid under the **Legal Aid Act 1978**; and
 - (ii) providing details of how to contact Victoria Legal Aid.
- (2) If a direct indictment is filed, the copy indictment referred to in subsection (1)(a) must be served personally on the accused in accordance with section 339.

172 DPP may nominate address etc. for service of documents

- (1) The DPP may nominate in writing a business address, email address or fax number for service on the DPP of documents in relation to a charge.
- (2) A nomination under subsection (1) may be included on an indictment or any other document served on the accused.

173 Extra notice for corporate accused

If a corporate accused—

(a) is to be served with a copy of an indictment under section 171(1); and

(b) has not been served with a notice in relation to that offence under section 148—

the DPP must serve with the copy indictment a notice stating—

(c) the date and time specified in the order under section 144(2)(d) at which the accused must appear, by a representative or a legal practitioner; and

(d) that if the accused does not appear on the date and time specified in the order, the court may, in its absence—

(i) proceed with the trial; and

(ii) if applicable, proceed to hear and determine a summary offence under Division 1 of Part 5.8.

174 Compelling attendance when direct indictment filed

(1) On the filing in court of a direct indictment against an accused, the DPP may apply to the court for the issue of a summons or a warrant to arrest in order to compel the attendance of the accused.

(2) On an application under subsection (1), the court, if satisfied that the charge discloses an offence known to law, must issue—

(a) a summons requiring the accused to attend at the court on a specified date and at a specified time to answer to the indictment; or

(b) subject to subsection (3), a warrant to arrest.

(3) The court must not issue in the first instance a warrant to arrest unless satisfied by sworn evidence, whether oral or by affidavit, that—

(a) it is probable that the accused will not answer a summons; or

(b) the accused has absconded, is likely to abscond or is avoiding service of a summons that has been issued; or

(c) a warrant is required or authorised by any other Act or for other good cause.

(4) If the accused fails to attend before the court on the date and at the time specified in the summons, the court, on the application of the DPP, may issue a warrant to arrest the accused.

Note

Section 359 provides that an arrested person must, if practicable, be brought before the court which issued the warrant.

175 Service of summons

(1) The DPP must serve a summons issued under section 174 by personal service on the accused in accordance with section 339 at least 14 days before the date specified in the summons.

(2) A summons served on the accused must be accompanied by—

(a) a copy of the indictment; and

(b) if applicable, a notice required by section 171(1); and

(c) in the case of a corporate accused, a notice stating that, if the accused does not appear in answer to the summons, the court may, in its absence—

(i) proceed with the trial; and

- (ii) if applicable, proceed to hear and determine a summary offence under Division 1 of Part 5.8.

176 Warrant to be accompanied by indictment and notice

On execution of a warrant issued under section 174, the warrant must be accompanied by a copy of the indictment and, if applicable, a notice required by section 171(1).

PART 5.4—DISCONTINUING A PROSECUTION

177 DPP may discontinue a prosecution without adjudication

- (1) The DPP may discontinue a prosecution for an offence against an accused by—
 - (a) announcing the discontinuance in court; or
 - (b) filing in court written notice of the discontinuance, signed by the DPP personally.
- (2) A prosecution may be discontinued—
 - (a) at any time except during trial;
 - (b) whether or not an indictment against the accused has been filed.
- (3) If an indictment has not been filed against the accused, the written notice referred to in subsection (1)(b) must be filed in the court to which the accused has been committed for trial.
- (4) If a discontinuance of prosecution is announced in court, written notice of the discontinuance, signed by the DPP personally, must be filed in court as soon as practicable after the announcement.
- (5) The DPP must serve a copy of a written notice of discontinuance that has been filed in court under subsection (1)(b) or (4) on—
 - (a) the accused; or
 - (b) if the accused is dead, on—
 - (i) the legal practitioner who last represented the accused, if that legal practitioner can reasonably be identified; or
 - (ii) the next of kin of the accused, if that person can reasonably be identified.

(6) A discontinuance of prosecution does not amount to an acquittal.

(7) An accused may be indicted on a charge in respect of which an earlier prosecution has been discontinued.

178 Release from custody on discontinuance of prosecution

(1) If—

(a) a prosecution for a charge against a person is discontinued under section 177; and

(b) the person is in custody in relation to that charge, irrespective of whether the person is in custody for any other reason—

the DPP must immediately notify the person who has legal custody of the person that the prosecution has been discontinued.

(2) On notification being given under subsection (1), the person in custody is to be released, if the person is not in custody for any other reason.

Note

See Part 1A of the **Corrections Act 1986** and section 483 of the **Children, Youth and Families Act 2005** as to who has legal custody.

PART 5.5—PRE-TRIAL PROCEDURE

Division 1—Directions hearings

179 Directions hearing

At any time except during trial, the court may conduct one or more directions hearings.

Note

Section 210 sets out when a trial commences.

180 Accused may be arraigned at a directions hearing

- (1) The accused may be arraigned at a directions hearing, if an indictment has been filed against the accused.

Notes

- 1 Section 215 sets out how and when arraignment occurs.
- 2 Arraignment at a directions hearing does not commence a trial: see section 210.
- (2) Despite subsection (1), if the accused pleads not guilty to one or more charges in the indictment and indicates an intention to plead not guilty to one or more remaining charges, it is not necessary for those remaining charges to be read to the accused and the accused must be taken to have pleaded not guilty to those charges.

181 Powers of court at directions hearing

- (1) At a directions hearing, the court may make or vary any direction or order, or require a party to do anything that the court considers necessary, for the fair and efficient conduct of the proceeding.

(2) Without limiting subsection (1), the court may—

(a) require the accused to advise whether the accused is legally represented and has funding for continued legal representation up to and including the trial;

(b) without being limited by section 200, require the parties to notify the court of any pre-trial issues that the parties intend to raise or any orders under section 199(1) that the parties intend to seek;

(c) without being limited by section 200, set a timetable for the hearing of pre-trial issues or applications for orders under Division 3 or 4;

(d) in the case of a trial for a sexual offence in which the complainant was a child or a person with a cognitive impairment when the criminal proceeding was commenced, require the prosecutor to advise as to the availability of the complainant, and the accused to advise as to his or her own availability, for the special hearing to be held under section 41G of the **Evidence Act 1958**;

Note

See section 5 as to the commencement of a criminal proceeding.

(e) require the parties to provide an estimate of the length of the trial;

(f) require the parties to advise as to the estimated number and the availability of witnesses (other than the accused) and any relevant requirements of witnesses and interpreters;

(g) order a party to make, file in court or serve (as the case requires) any written or oral material required by the court for the purposes of the proceeding;

(h) order the prosecution to file in court and serve on the accused a copy of any material on which the prosecution intends to rely at the trial;

(i) determine any objection relating to the disclosure of information or material by the prosecution;

(j) allow a party to amend a document that has been prepared by or on behalf of that party for the purposes of the proceeding;

(k) determine an application for a sentence indication.

(3) At a directions hearing, the court may make any order or other decision that can be made or decided before trial by or under this or any other Act.

Note

Section 199(1) indicates the issues that may be decided before trial under this Act.

Division 2—Pre-trial disclosure

182 Summary of prosecution opening and notice of pre-trial admissions

(1) Unless the court otherwise directs, at least 28 days before the day on which the trial of the accused is listed to commence, the DPP must serve on the accused and file in court—

(a) a summary of the prosecution opening; and

(b) a notice of pre-trial admissions.

- (2) The summary of the prosecution opening must outline—
- (a) the manner in which the prosecution will put the case against the accused; and
 - (b) the acts, facts, matters and circumstances being relied on to support a finding of guilt.
- (3) The notice of pre-trial admissions must identify the statements of the witnesses whose evidence, in the opinion of the DPP, ought to be admitted as evidence without further proof, including evidence that is directed solely to formal matters including—
- (a) continuity; or
 - (b) a person's age; or
 - (c) proving the accuracy of a plan, or that photographs were taken in a certain manner or at a certain time.
- (4) If an accused has not received, under section 147, a copy of a statement identified in a notice of pre-trial admissions, the notice must contain a copy of the statement.

183 Response of accused to summary of prosecution opening and notice of pre-trial admissions

- (1) After being served with a copy of the documents referred to in section 182, the accused must serve on the prosecution in accordance with section 340 and file in court, at least 14 days before the day on which the trial of the accused is listed to commence—
- (a) a copy of the response of the accused to the summary of the prosecution opening; and
 - (b) a copy of the response of the accused to the notice of pre-trial admissions.

(2) The response of the accused to the summary of the prosecution opening must identify the acts, facts, matters and circumstances with which issue is taken and the basis on which issue is taken.

(3) The response of the accused to the notice of pre-trial admissions must indicate what evidence, as set out in the notice of pre-trial admissions, is agreed to be admitted as evidence without further proof and what evidence is in issue and, if issue is taken, the basis on which issue is taken.

(4) Despite subsections (2) and (3), the accused is not required to state—

(a) the identity of any witness (other than an expert witness) to be called by the accused; or

(b) whether the accused will give evidence.

184 Intention to depart at trial from document filed and served

If a party intends to depart substantially at trial from a matter set out in a document served and filed by that party under this Division, the party—

(a) must so inform the court and the other party in advance of the trial; and

(b) if the court so orders, must inform the court and the other party of the details of the proposed departure.

185 Continuing obligation of disclosure

(1) This section applies to any information, document or thing that—

(a) comes into the possession of the prosecution after an accused is committed for trial; or

(b) is in the possession of the prosecution when, or comes into the possession of the prosecution after, a direct indictment is filed against an accused—

and would have been required to be listed, or a copy of which would have been required to be served, in the hand-up brief.

Note

See section 110 for the contents of a hand-up brief.

(2) Subject to subsection (4), the prosecution must serve on the accused a copy of the document or list as soon as practicable after—

(a) the information, document or thing comes into the possession of the prosecution; or

(b) the direct indictment is filed against the accused—

as the case requires.

(3) If the information, document or thing cannot reasonably be copied, the prosecution must advise the accused of the existence of the information, document or thing and make it available for inspection at a time and place agreed between the accused and the prosecution.

(4) The prosecution need not provide any information, document or thing under this section if it has already been provided to the accused by the prosecution.

Notes

1 Sections 188 requires the prosecution to serve a notice if additional evidence is to be given at trial.

2 See section 363 as to the prosecution's general obligation of disclosure.

186 Disclosure of address or telephone number of witness

5 (1) The prosecution must not disclose the address or telephone number (including a private, business or official address or telephone number) of any person in any information, document or thing provided to the accused under this Division unless—

(a) the prosecutor believes that—

10 (i) the information, document or thing does not identify the address or telephone number as that of any particular person; or

15 (ii) the address or telephone number is relevant to the offence charged and disclosure is not likely to present a reasonably ascertainable risk to the welfare or physical safety of any person; or

20 (b) the court permits the disclosure in accordance with subsection (3) on application made by the prosecutor or the accused.

25 (2) For the purposes of subsection (1), the prosecution may delete, or render illegible, an address or telephone number included in the information, document or thing before service on the accused.

(3) The court may grant an application made under subsection (1)(b) if the court is satisfied that—

30 (a) the address or telephone number is relevant to the offence charged; and

(b) one of the following applies—

(i) disclosure is not likely to present a reasonably ascertainable risk to the welfare or physical safety of any person; or

(ii) having regard to the matters referred to in subsection (4), the interests of justice outweigh any risk referred to in subparagraph (i).

(4) For the purposes of subsection (3)(b)(ii), the court must have regard to—

(a) the right to privacy of the witness; and

(b) the right of the accused to prepare properly for the trial.

Note

See section 14 of the **Victims' Charter Act 2006** as to victims' privacy.

187 Previous convictions of witness

(1) The accused may request the prosecutor to provide particulars of previous convictions of any witness who the prosecution intends to call at the trial.

(2) A request under subsection (1) does not require the prosecutor to give to the accused particulars of any previous conviction of any witness if the previous conviction is, because of its character, irrelevant to the proceeding but the prosecutor must advise the accused of the existence of any undisclosed previous convictions.

Notes

1 See section 14 of the **Victims' Charter Act 2006** as to victims' privacy.

2 At a directions hearing the court may hear and determine any objection to disclosure of any information, document or thing: section 181(2)(i).

188 Prosecution notice of additional evidence

(1) In this section—

additional evidence means any evidence that is not included in the depositions in the proceeding.

(2) If the DPP intends to call a witness at trial to give additional evidence, the DPP must serve on the accused and file in court—

(a) a notice of intention to call additional evidence; and

(b) a copy of the statement of the proposed witness containing the additional evidence or an outline of the additional evidence that the witness is expected to give.

Notes

- 1 See the definition of *depositions* in section 3.
- 2 Section 185 (Continuing obligation of disclosure) requires the prosecution to serve a copy of a document as soon as practicable after the document comes into the possession of the prosecution.

189 Expert evidence

(1) If the accused intends to call a person as an expert witness at the trial, the accused must serve on the prosecution in accordance with section 340 and file in court a copy of the statement of the expert witness in accordance with subsection (2)—

(a) at least 14 days before the day on which the trial of the accused is listed to commence; or

(b) if the statement is not then in existence, as soon as possible after it comes into existence.

(2) The statement must—

- (a) contain the name and business address of the witness;
- (b) describe the qualifications of the witness to give evidence as an expert;
- (c) set out the substance of the evidence it is proposed to adduce from the witness as an expert, including the opinion of the witness and the acts, facts, matters and circumstances on which the opinion is formed.

Note

Section 177 of the **Evidence Act 2008** provides for certificates of expert evidence.

190 Alibi evidence

(1) An accused must not, without leave of the court—

- (a) give evidence personally; or
- (b) adduce evidence from another witness—

in support of an alibi unless the accused has given notice of alibi within the period referred to in subsection (2).

(2) A notice of alibi must be given by serving the notice on the DPP within 14 days after—

- (a) the day on which the accused was committed for trial on the charge to which the alibi relates; or
- (b) if paragraph (a) does not apply, the day on which the accused received a copy of the indictment.

(3) A notice of alibi must be served in accordance with section 340.

(4) A notice of alibi must contain—

(a) particulars as to time and place of the alibi;
and

(b) the name and last known address of any
witness to the alibi; and

(c) if the name and address of a witness are not
known, any information which might be of
material assistance in finding the witness.

(5) If the name and address of a witness are not
included in a notice of alibi, the accused must not
call that person to give evidence in support of the
alibi unless the court is satisfied that the accused
took reasonable steps to ensure that the name and
address would be ascertained.

(6) If the accused is notified by the DPP that a
witness named or referred to in a notice of alibi
has not been traced, the accused must give written
notice to the DPP, without delay, of any further
information which might be of material assistance
in finding the witness.

(7) The court must not refuse leave under
subsection (1) if it appears to the court that the
accused was not informed of the requirements of
this section.

(8) If—

(a) an accused gives notice of alibi under this
section; and

(b) the DPP requests an adjournment—

the court must grant an adjournment for a period
that appears to the court to be necessary to enable
investigation of the alibi unless it appears that to
do so would prejudice the proper presentation of
the case of the accused.

191 Offence to communicate with alibi witness

(1) If a person (other than a person referred to in subsection (2)) has been named or referred to as a proposed witness in a notice of alibi given under section 190—

- (a) a person acting for the prosecution; or
- (b) a member of the police force—

must not communicate with that person directly or indirectly with respect to the charge or any related matter before the conclusion of the proceeding, including any new trial or rehearing, without the consent and presence during the communication of—

- (c) the legal practitioner representing the accused; or
- (d) if not legally represented, the accused.

Penalty: Level 8 imprisonment (1 year maximum)

(2) Subsection (1) does not apply to a person who the accused has been notified may be called as a witness for the prosecution at the trial.

Division 3—Orders

192 Power to change place of trial

If a court considers that—

- (a) a fair trial in a criminal proceeding cannot otherwise be had; or
- (b) for any other reason it is appropriate to do so—

the court may order that the trial be held at any other place that the court considers appropriate.

193 Order for separate trial

- (1) If an indictment contains more than one charge, the court may order that any one or more of the charges be tried separately.
- 5 (2) If an indictment names more than one accused, the court may order that charges against a specified accused be tried separately.
- (3) The court may make an order under subsection (1) or (2) if the court considers that—
- 10 (a) the case of an accused may be prejudiced because the accused is charged with more than one offence in the same indictment; or
- (b) a trial with the co-accused would prejudice the fair trial of the accused; or
- 15 (c) for any other reason it is appropriate to do so.
- (4) The court may make an order under subsection (1) or (2) or under section 195 before trial or during a trial.
- 20 (5) If the court makes an order under subsection (1) or (2) or under section 195, the prosecutor may elect which charge is to be tried first.
- (6) If an order under subsection (1) or (2) or under section 195 is made after a jury is empanelled, the court may order that the jury be discharged from giving a verdict on the indictment.
- 25 (7) The procedure on the separate trial of a charge is the same in all respects as if the charge had been set out in a separate indictment.
- 30 (8) If the court makes an order for a separate trial under subsection (1) or (2) or under section 195, the court may make any order for or in relation to the bail of the accused that the court considers appropriate.
-

194 Order for separate trial—sexual offences

(1) In this section—

sexual offence includes an offence to which
clause 1 of Schedule 1 to the **Sentencing Act**
1991 applies.

(2) Despite section 193 and any rule of law to the
contrary (other than the Charter of Human Rights
and Responsibilities), if in accordance with this
Act 2 or more charges for sexual offences are
joined in the same indictment, it is presumed that
those charges are to be tried together.

(3) The presumption created by subsection (2) is not
rebutted merely because evidence on one charge is
inadmissible on another charge.

195 Order for separate trial—conspiracy

Despite section 193, if an indictment contains a
charge of conspiracy to commit an offence and
another charge alleging the commission of that
offence, the court must order that the charge of
conspiracy be tried separately from the other
charge, unless the court considers that it would be
in the interests of justice to try those charges
together.

196 Other powers of court not affected

Any power of the court under section 165, 193 or
195 is in addition to any other power of the court
for the same or similar purposes.

197 Order for legal representation for accused

(1) In this section—

private law practice has the same meaning as in
the **Legal Aid Act 1978**;

private legal practitioner has the same meaning as
in the **Legal Aid Act 1978**.

(2) Subject to subsection (3) and despite any rule of law to the contrary (other than the Charter of Human Rights and Responsibilities), the fact that an accused has been refused legal assistance in respect of a trial is not a ground for an adjournment or stay of the trial.

(3) If a court is satisfied at any time that—

(a) it will be unable to ensure that the accused will receive a fair trial unless the accused is legally represented in the trial; and

(b) the accused is in need of legal representation because the accused is unable to afford the full cost of obtaining from a private law practice or private legal practitioner legal representation in the trial—

the court may order Victoria Legal Aid to provide legal representation to the accused, on any conditions specified by the court, and may adjourn the trial until that legal representation has been provided.

(4) Despite anything in the **Legal Aid Act 1978**, Victoria Legal Aid must provide legal representation in accordance with an order under subsection (3).

(5) Despite anything to the contrary in subsection (3)—

(a) if the court is satisfied that, in relation to the trial, the accused has engaged in vexatious or unreasonable conduct that has contributed to the accused's inability to afford the full cost of obtaining from a private law practice or private legal practitioner legal representation in the trial, the court may refuse to make an order under subsection (3);

(b) the legal burden of proof for the purposes of subsection (3)(b) that the accused is unable to afford the full cost of obtaining legal representation rests on the accused;

(c) for the purposes of proving under subsection (3)(b) that the accused is unable to afford the full cost of obtaining legal representation, regard must be had to property—

(i) that is subject to the effective control of the accused (whether or not the accused has an interest in it); or

(ii) in which the accused has an interest—
as determined in accordance with section 9 or 10 of the **Confiscation Act 1997**;

(d) the conditions that may be specified by the court under subsection (3) do not include conditions relating to the identity, number or remuneration of persons representing the accused.

(6) A court must give Victoria Legal Aid an opportunity to appear and be heard before an order is made under subsection (3).

(7) Despite anything to the contrary in section 17A of the **Supreme Court Act 1986**, Victoria Legal Aid may appeal to the Court of Appeal, if the Court of Appeal gives leave to do so, from an order under subsection (3) made by the Trial Division of the Supreme Court constituted by a Judge.

198 Order for taking evidence from a witness before trial

(1) At any time except during trial, a party to a criminal proceeding may apply to the court for an order that the evidence (including cross-examination and re-examination) of a person be taken at a time and place fixed by the court.

(2) An application may be made under subsection (1) only if—

(a) the person was not available to be examined as a witness at the committal hearing; or

(b) a statement or transcript from the person was not included in a hand-up brief served on the accused under Part 4.4; or

(c) it is reasonably anticipated that the person will be unavailable to give evidence at the trial of the accused; or

(d) the parties agree that the evidence of the person should be taken before the trial of the accused; or

(e) for any other reason the court considers that it is appropriate that the evidence of the person should be taken before the trial of the accused.

(3) An application under subsection (1) must state the grounds on which an order is sought.

(4) The court must not make an order referred to in subsection (1) unless it is satisfied that it is in the interests of justice that the evidence of the witness be taken.

(5) An order referred to in subsection (1) may include a direction that the evidence of the person is to be given or recorded in a specified manner in accordance with the **Evidence Act 1958**.

Note

Part VI of the **Evidence Act 1958** provides for the recording of evidence.

Division 4—Procedure for pre-trial orders and other decisions

199 Court may make orders and other decisions before trial

- 5 (1) At any time before trial, the court may hear and decide any issue with respect to the trial that the court considers appropriate, including—
- 10 (a) an issue of law or procedure that arises or is anticipated to arise in the trial, including an issue as to admissibility of evidence;
- (b) an issue of fact, or mixed law and fact, that may be determined lawfully by a judge alone without a jury, including an issue as to admissibility of evidence;
- 15 (c) an application for an order that may be made in relation to the trial under this or any other Act or at common law, including an application to quash a charge in the indictment;
- 20 (d) any other issue with respect to the trial.
- (2) Subsection (1) applies despite sections 181, 183, 184 and 200.
- 25 (3) An order or other decision made at a directions hearing or other pre-trial hearing has the same effect as if it had been made after the commencement of the trial.
- 30 (4) Nothing in this section limits the power of the court to make any order or other decision that it has power to make otherwise than under subsection (1).

Note

Section 192A of the **Evidence Act 2008** provides for advance rulings in relation to evidence proposed to be adduced in a proceeding.

200 Disclosure of pre-trial issues

(1) If a party intends to raise an issue referred to in section 199(1)(a), (b), (c) or (d), whether before or during trial, the party must—

5 (a) first, notify the other party of the issue or the order sought, in order to ascertain whether the issue will be in dispute or the order will be opposed; and

10 (b) secondly, notify the court of the issue or the order sought.

(2) Notification under subsection (1)(b) must include—

15 (a) confirmation that the other party has been notified of the issue or the order sought; and

 (b) information, if available, as to whether the issue is in dispute or the order is opposed.

(3) Notification under subsection (1) must occur—

20 (a) as soon as possible after the party becomes aware of the issue and at least 14 days before the day on which the trial of the accused is listed to commence; or

25 (b) if the party is not aware of the issue within the period referred to in paragraph (a), as soon as possible after the party becomes aware of it.

201 Court may decide pre-trial issue without a hearing

(1) If—

30 (a) the court is notified of an issue under section 200(1) at least 14 days before the day on which the trial of the accused is listed to commence; and

(b) all the parties to the proceeding agree—
the court may decide the issue entirely on the
basis of written submissions, without the
appearance of the parties.

(2) If the parties agree to have the issue decided on
the basis of written submissions, at least 10 days
before the day on which the trial of the accused is
listed to commence, the party who raised the issue
must file in court and serve on all other parties a
copy of that party's submission.

(3) Within 5 days after a party is served with a copy
of a submission under subsection (2), that party
must file in court and serve on all other parties a
copy of a written submission in reply.

(4) Within 3 days after a party is served with a written
submission in reply under subsection (3), that
party must file in court and serve on all other
parties a copy of a written submission in response
to the reply.

(5) If an issue could be decided in accordance with
subsection (1) but the parties do not agree to do
so, at least 10 days before the day on which the
trial of the accused is listed to commence, the
party who raised the issue must—

(a) notify the court that agreement has not been
reached; and

(b) request the court to conduct a directions
hearing.

202 Hearing of application for exclusion of evidence

On the hearing of an application by the accused
for the exclusion of evidence, the court may hear
evidence called on behalf of the accused before it
hears evidence called on behalf of the prosecution.

203 Judge at pre-trial hearing need not be trial judge

The judge who constitutes the court at a directions hearing or other pre-trial hearing held in connection with the trial of an accused need not be the trial judge on the trial of the accused.

204 Pre-trial orders and other decisions generally binding on trial judge

An order or other decision made at a directions hearing or other pre-trial hearing by a judge who is not the trial judge is binding on the trial judge unless the trial judge considers that it would not be in the interests of justice for the order or other decision to be binding.

205 Pre-trial orders and other decisions may be applied in new trial

- (1) If a new trial is held, the court may treat any order or other decision made at a directions hearing or other pre-trial hearing held in connection with the earlier trial as if it had been made at a directions hearing or other pre-trial hearing held in connection with the new trial.
- (2) Despite subsection (1), the court need not treat an order or other decision in the manner set out in subsection (1) if the court considers that to do so—
 - (a) would be inconsistent with any order or decision made or direction given on an appeal; or
 - (b) would otherwise not be in the interests of justice.

206 Procedure if prosecution proposes not to lead evidence

- 5 (1) This section applies if, before the trial of an accused commences, the accused is arraigned and pleads not guilty to a charge in respect of which the prosecution proposes not to lead evidence.
- (2) The prosecution must inform the court that the prosecution proposes not to lead evidence on the charge.
- 10 (3) The court must direct that an entry of not guilty be made on the record in respect of the charge.
- (4) An entry of not guilty under subsection (3) has the same effect as if it were the verdict of a jury on the trial of the accused on that charge.
- 15 (5) This section does not limit the power to discontinue a prosecution under section 177.
-

PART 5.6—SENTENCE INDICATION

207 Court may give sentence indication

At any time after the indictment is filed, the court may indicate that, if the accused pleads guilty to the charge on the indictment at that time or another charge, the court would or would not (as the case may be) be likely to impose on the accused a sentence of imprisonment that commences immediately.

Note

Section 18 of the **Supreme Court Act 1986** and section 80 of the **County Court Act 1958** enable the court to close a proceeding to the public.

208 Application for sentence indication

- (1) A sentence indication under section 207—
 - (a) may be given only on the application of the accused; and
 - (b) may be given only once during the proceeding, unless the prosecutor otherwise consents.
- (2) An application under subsection (1)(a) may be made only with the consent of the prosecutor.
- (3) If an application under subsection (1)(a) is made in respect of a charge that is not on the indictment, the accused must specify the charge in the application.
- (4) The court may refuse to give a sentence indication under section 207.

209 Effect of sentence indication

(1) If—

(a) the court indicates that it would not be likely to impose on the accused a sentence of imprisonment that commences immediately; and

(b) the accused pleads guilty to the charge for the offence at the first available opportunity—

the court, when sentencing the accused for the offence, must not impose a sentence of imprisonment that commences immediately.

(2) If—

(a) the court gives a sentence indication under section 207; and

(b) the accused does not plead guilty to the charge for the offence at the first available opportunity—

at trial the court must be constituted by a different judge, unless all the parties otherwise agree.

(3) A sentence indication does not bind the court on any hearing before the court constituted by a different judge.

(4) A decision to give or not to give a sentence indication is final and conclusive.

(5) An application for a sentence indication and the determination of the application are not admissible in evidence against the accused in any proceeding.

(6) This section does not affect any right to appeal against sentence.

PART 5.7—TRIAL

Division 1—Preliminary

210 When trial commences

- (1) A trial commences when the accused pleads not guilty on arraignment in the presence of the jury panel in accordance with section 217.
- (2) If a jury panel is split into 2 or more parts under section 30(5) of the **Juries Act 2000**, the trial commences when the accused pleads not guilty on arraignment in the presence of the first part of the jury panel that is present in court.

Note

Section 215 sets out how and when arraignment occurs.

211 Time limit for commencing trial for offences other than sexual offences

The trial of a person for an offence (other than a sexual offence) must commence—

- (a) within 12 months after the day on which the person is committed for trial in respect of the offence; or
- (b) if no committal proceeding in respect of the offence is held, within 12 months after the day on which the indictment against the person is filed; or
- (c) if a new trial is ordered by the Court of Appeal, within 6 months after the day on which the order is made; or
- (d) if the period referred to in paragraph (a), (b) or (c) or any extension of that period is extended under section 247, within the extended period.

212 Time limits for commencing trials for sexual offences

The trial of a person for a sexual offence must commence—

- (a) within 3 months after the day on which the person is committed for trial in respect of the offence; or
- (b) if no committal proceeding in respect of the offence is held, within 3 months after the day on which the indictment against the person is filed; or
- (c) if a new trial is ordered by the Court of Appeal, within 3 months after the day on which the order is made; or
- (d) if the period referred to in paragraph (a), (b) or (c), or any extension of that period is extended under section 247, within the extended period.

213 Powers of trial judge not affected

- (1) Subject to section 204, a trial judge may make any order or other decision during trial that could have been made under Division 3 or 4 of Part 5.5.
- (2) Nothing in this Act removes or limits any powers of a trial judge that existed immediately before the commencement of this Act.

214 Non-appearance of corporate accused at trial

- (1) If a corporate accused does not appear on the date and at the time specified in an order under section 144(2)(d), the court, may, in its absence, proceed with the trial and, if applicable, proceed to hear and determine a summary offence under Division 1 of Part 5.8 if—

(a) the court is satisfied that a notice under section 148 or 173 has been served on the accused; and

(b) the court considers that it is appropriate to do so.

(2) If the court conducts a trial in the absence of a corporate accused, the court may dispense with or vary any requirement imposed by or under this Part.

Division 2—Arraignment

215 Arraignment

(1) An accused is arraigned when the court—

(a) asks the accused whether the accused is the person named on the indictment; and

(b) reads out each charge on the indictment and asks the accused whether the accused pleads guilty or not guilty to the charge.

(2) An accused may be arraigned or re-arraigned at any time.

216 Written pleas of guilty may be accepted

(1) If an accused pleads guilty to one or more charges in the indictment and indicates an intention to plead guilty to one or more remaining charges—

(a) it is not necessary for those remaining charges to be read to the accused; and

(b) the court may accept pleas of guilty to the remaining charges in the indictment by written notice signed by the accused.

(2) A court must not accept pleas of guilty under subsection (1)(b) unless—

(a) the prosecution consents; and

(b) the court considers that it is appropriate to do so, having regard to the number of charges in the indictment.

(3) A plea of guilty accepted under this section has the same effect as if it were entered on arraignment.

217 Arraignment in presence of jury panel

If an accused has not pleaded guilty to all of the charges on an indictment—

(a) the accused must be arraigned in the presence of the jury panel or, if a jury panel is split into 2 or more parts under section 30(5) of the **Juries Act 2000**, the first part of the jury panel that is present in court; and

(b) a jury for the trial must be empanelled from that jury panel.

Notes

1 A trial commences when arraignment under this section occurs: see section 210.

2 The **Juries Act 2000** sets out the process for empanelling a jury.

218 Special pleas in addition to plea of not guilty

On arraignment, an accused may enter a special plea in addition to pleading not guilty.

219 Plea of guilty to alternative offence

(1) On arraignment, an accused may plead not guilty to the offence charged but guilty to another offence of which the accused might be found guilty.

(2) The consequences of pleading guilty to another offence under subsection (1) are the same as if the other offence had been charged in the indictment.

220 Form of plea of previous conviction or previous acquittal

- (1) In a plea of previous conviction, it is sufficient for an accused to state that the accused has been lawfully convicted of the offence charged in the indictment.
- (2) In a plea of previous acquittal, it is sufficient for an accused to state that the accused has been lawfully acquitted of the offence charged in the indictment.
- (3) The rules of common law with respect to autrefois convict and autrefois acquit continue in force in respect of pleas of previous conviction and previous acquittal, respectively.

221 Refusal to plead

- (1) If, on arraignment, an accused will not answer directly to a charge on the indictment, the court may order that a plea of not guilty be entered on behalf of the accused.
- (2) A plea of not guilty entered under subsection (1) has the same effect as if the accused in fact had pleaded not guilty.

Note

See the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997** when an accused is or may be unfit to stand trial.

Division 3—Assisting the jury

222 Judge may address jury

At any time during a trial, the trial judge may address the jury on—

- (a) the issues that are expected to arise or have arisen in the trial;

(b) the relevance to the conduct of the trial of any admissions made, directions given or matters determined prior to the commencement of the trial;

(c) any other matter relevant to the jury in the performance of its functions and its understanding of the trial process, including giving a direction to the jury as to any issue of law, evidence or procedure.

223 Jury documents

(1) For the purpose of helping the jury to understand the issues or the evidence, the trial judge may order, at any time during the trial, that copies of any of the following are to be given to the jury in any form that the trial judge considers appropriate—

- (a) the indictment;
- (b) the summary of the prosecution opening;
- (c) the response of the accused to the summary of the prosecution opening and the response of the accused to the notice of pre-trial admissions of the prosecution;
- (d) any document admitted as evidence;
- (e) any statement of facts;
- (f) the opening and closing addresses of the prosecution and the accused;
- (g) any address of the trial judge to the jury under section 222;
- (h) any schedules, chronologies, charts, diagrams, summaries or other explanatory material;

Note

See sections 29(4) and 50 of the **Evidence Act 2008**.

- 5
- (i) transcripts of evidence or audio or audiovisual recordings of evidence;
 - (j) transcripts of any audio or audiovisual recordings;
 - (k) the trial judge's directions to the jury under section 238;
 - (l) any other document that the trial judge considers appropriate.
- 10
- (2) The trial judge may specify in an order under subsection (1) when any material is to be given to the jury.

Division 4—Opening addresses

224 Opening address by prosecutor

- 15
- (1) The prosecutor must give an opening address to the jury on the prosecution case against the accused before any evidence is given in the trial.
- 20
- (2) If documents have been served and filed by the prosecution under Part 5.5, the prosecutor must restrict himself or herself to the matters set out in those documents when opening the prosecution case, unless the trial judge considers that there are exceptional circumstances.
- 25
- (3) For the purposes of subsection (2), a change of legal practitioner does not constitute exceptional circumstances.
- 30
- (4) Despite subsection (2), the prosecutor is not restricted to a verbatim presentation of the summary of the prosecution opening as served and filed under Part 5.5.
 - (5) The trial judge may limit the length of the prosecution opening.

225 Response of accused to prosecution opening

(1) In all trials before a jury, immediately after the prosecutor's opening, the accused—

(a) if represented by a legal practitioner, must present;

(b) if not represented by a legal practitioner, may present—

to the jury the response of the accused to the prosecution opening prepared in accordance with Part 5.5.

(2) If documents have been served and filed by the defence under Part 5.5, the accused is restricted to the matters set out in those documents when presenting the response of the accused to the prosecution opening, unless the trial judge considers that there are exceptional circumstances.

(3) For the purposes of subsection (2), a change of legal practitioner does not constitute exceptional circumstances.

(4) Despite subsection (2), the accused is not restricted to a verbatim presentation of the response of the accused to the summary of the prosecution opening as served and filed under Part 5.5.

(5) The trial judge may limit the length of the response of the accused.

Division 5—Case for the accused

226 Accused entitled to respond after close of prosecution case

After the close of the case for the prosecution, an accused is entitled—

(a) to make a submission that there is no case for the accused to answer;

(b) to answer the charge by choosing to give evidence or call other witnesses to give evidence or both;

(c) not to give evidence or call any witnesses.

227 Election when accused is legally represented

If the accused is represented by a legal practitioner, at the close of the case for the prosecution, the trial judge may question the legal practitioner to determine which of the options referred to in section 226 the accused elects to take.

228 Election when accused is not legally represented

(1) If an accused is not represented by a legal practitioner, immediately after the close of the case for the prosecution and in the absence of the jury, the trial judge must inform the accused, in a manner that is likely to be understood by the accused, that—

(a) the accused has the right to answer the charge and must choose either—

(i) to give sworn evidence, that is, to enter the witness box, take the oath or make an affirmation and say what the accused wants to say in answer to the charge and then to respond to any questions from the prosecution or the court about the evidence of the accused; or

(ii) to say nothing in answer to the charge; and

(b) in either case, the accused may call any witnesses to give evidence at the trial.

(2) After giving the information referred to in subsection (1), the trial judge must ask the accused what the accused wants to do.

229 Procedure for joint trials if no-case submission made

- (1) This section applies to a trial in which 2 or more accused are named on the indictment.
- (2) After the close of the case for the prosecution, an accused who wishes to make a submission that there is no case for the accused to answer must do so at that time.
- (3) If, after the trial judge has ruled on all no case submissions, 2 or more accused remain on trial, the accused named first on the indictment must advise the trial judge, in response to questioning under section 227 or 228, which of the options referred to in section 226(b) or (c) the accused elects to take.
- (4) Each accused named subsequently on the indictment is not required to advise the trial judge of the election of that accused until the close of the case for the previously named accused.
- (5) The cases of all accused must proceed according to the order in which the accused are named on the indictment, unless the trial judge otherwise orders.

230 Questioning to determine proper course of proceeding

- (1) If the accused intends to call witnesses to give evidence at the trial, the accused must indicate, when called on by the trial judge to do so—
 - (a) the names of those witnesses (other than the accused); and
 - (b) the order in which those witnesses are to be called.

- (2) The accused must not present the case of the accused differently to the way indicated to the trial judge under subsection (1) without the leave of the trial judge.

231 Opening address of accused

- (1) If the accused intends to give evidence, or to call other witnesses on behalf of the accused, or both, the accused is entitled to give an opening address to the jury outlining the evidence that the accused proposes to give or call.
- (2) If the accused gives an opening address, it must be given before the accused gives evidence or calls any other witnesses.
- (3) The trial judge may limit the length of the opening address of the accused.
- (4) The accused is not required to give evidence before any other witness is called on behalf of the accused.

Division 6—Giving of evidence

232 Manner of giving evidence

- (1) The trial judge may permit a person to give evidence—
- (a) with the consent of the parties, by the witness reading from the statement of the witness prepared in advance of giving evidence;
- (b) if the person is called in his or her capacity as an expert witness, by the presentation of audio or audiovisual material;
- (c) by means of playing an audio or audiovisual recording;
- (d) in any other manner that the trial judge considers may be of assistance.

(2) Nothing in subsection (1) precludes—

(a) in the case of subsection (1)(b), the questioning of an expert witness by cross-examination or otherwise before, during or after a presentation; or

(b) in the case of subsection (1)(c), if unanticipated issues arise during the trial, the trial judge making an order that the witness attend before the court.

(3) Nothing in this section affects the operation of section 41G and Part IIA of the **Evidence Act 1958** and sections 29 and 50 of the **Evidence Act 2008**.

233 Introduction of evidence not previously disclosed

(1) If the trial judge gives leave to do so, the prosecutor or the accused may introduce at the trial evidence which was not disclosed in accordance with Part 5.5 and which represents—

(a) in the case of the prosecutor, a substantial departure from the summary of the prosecution opening, if any, as served on the accused and filed in court; or

(b) in the case of the accused, a substantial departure from—

(i) the response of the accused to the summary of the prosecution opening; or

(ii) the response of the accused to the notice of pre-trial admissions—

if any, as served on the prosecution and filed in court.

(2) If, after the close of the prosecution case, the accused gives evidence which could not reasonably have been foreseen by the prosecution having regard to—

(a) the response of the accused to the summary of the prosecution opening; and

(b) the response of the accused to the notice of pre-trial admissions—

as served on the prosecution and filed in court, the trial judge may allow the prosecutor to call evidence in reply.

(3) Nothing in this section limits any other power of the trial judge to allow the prosecutor to call evidence after the prosecutor has closed the prosecution case.

Division 7—Closing addresses and judge's directions to the jury

234 Prosecution closing address

(1) The prosecution is entitled to address the jury for the purpose of summing up the evidence—

(a) after the close of all evidence; and

(b) before the closing address of the accused, if any, under section 235.

(2) Subject to section 236, the prosecution is not entitled to any further or other right to address the jury following the close of evidence.

(3) The trial judge may limit the length of the closing address of the prosecution.

235 Closing address of the accused

- (1) The accused is entitled to address the jury for the purpose of summing up the evidence—
- (a) after the close of all evidence; and
 - (b) after the closing address of the prosecution, if any, under section 234.
- (2) The trial judge may limit the length of the closing address of the accused.

236 Supplementary prosecution address

- (1) If, in the closing address of the accused under section 235, the accused asserts facts which are not supported by any evidence that is before the jury, the trial judge may grant leave to the prosecution to make a supplementary address to the jury.
- (2) A supplementary address must be confined to replying to the assertion referred to in subsection (1).
- (3) The trial judge may limit the length of a supplementary address.

237 Comment on departure or failure

- (1) Subject to subsections (2) and (3), the trial judge or, with the leave of the trial judge, a party may make any comment that the trial judge thinks appropriate on—
- (a) a departure referred to in section 233(1); or
 - (b) a failure by a party to comply with a requirement of this Chapter or an order made under this Chapter.
- (2) The trial judge may grant leave to a party to comment on a departure or failure only if satisfied that—
- (a) the proposed comment is relevant; and

(b) the proposed comment is not likely to produce a miscarriage of justice.

(3) A comment made by the trial judge or a party must not—

(a) in the case of a departure, suggest that an inference of guilt may be drawn from the departure except in those circumstances in which an inference of guilt might be drawn from a lie told by an accused; and

(b) in the case of a failure—

(i) suggest that an inference of guilt may be drawn from the failure except in those circumstances in which an inference of guilt might be drawn from the failure of an accused to adduce evidence from a particular witness; or

(ii) suggest that the failure may be taken into account in considering the probative value of the prosecution evidence except in those circumstances in which a failure of an accused to give evidence or adduce evidence from a particular witness might be taken into account for that purpose.

238 Judge's directions to the jury

At the conclusion of the closing address of the prosecution, the closing address of the accused and any supplementary prosecution address, the trial judge must give directions to the jury so as to enable the jury to properly consider its verdict.

Division 8—Alternative verdicts and discharge of jury from delivering verdict

239 Alternative verdicts on charges other than treason or murder

5 (1) On a trial on indictment for an offence other than treason or murder, if the jury finds the accused not guilty of the offence charged but the allegations in the indictment amount to or include, whether

10 expressly or impliedly, an allegation of another offence that is within the jurisdiction of the court, the jury may find the accused guilty of that other offence.

15 (2) For the purposes of subsection (1), an allegation of an offence includes an allegation of an attempt to commit the offence.

240 Judge may order that guilt in respect of alternative offences is not to be determined

20 Despite section 421(1) of the **Crimes Act 1958** and section 239, if the trial judge considers that it is in the interests of justice to do so, the judge may order that the guilt of the accused in respect of all or any of the other offences of which the accused may be found guilty is not to be determined at the trial.

25 **Note**

The **Crimes Act 1958** contains other provisions concerning alternative verdicts.

241 When judge may enter finding of guilty or not guilty

30 (1) If, during trial, an accused is re-arraigned and pleads guilty to a charge on the indictment, the trial judge may discharge the jury from delivering a verdict on the charge and instead direct that an entry of guilty be made on the record in respect of that charge.

(2) If—

(a) during trial the prosecution informs the trial judge that the prosecution proposes not to lead evidence on a charge on the indictment;
or

(b) at the close of the case for the prosecution, the trial judge decides that there is no case for the accused to answer in respect of a charge on the indictment—

the trial judge may discharge the jury from delivering a verdict on the charge and instead direct that an entry of not guilty be made on the record in respect of that charge.

(3) An entry of guilty under subsection (1) or an entry of not guilty under subsection (2) has the same effect as if it were the verdict of a jury on the trial of the accused on that charge.

PART 5.8—GENERAL

Division 1—Hearing of charges for related and unrelated summary offences

242 Summary offence related to indictable offence

- 5 (1) If an accused before the Supreme Court or the County Court—
- (a) pleads guilty to an indictable offence; or
- (b) is found guilty or not guilty of an indictable offence—

10 the court may hear and determine a charge for a related summary offence before sentencing or otherwise dealing with the accused.

- 15 (2) The court must hear and determine a charge for a related summary offence without a jury and in accordance with Part 3.3, as far as practicable.

- 20 (3) Without affecting the admissibility of any evidence which might be given apart from this subsection, on the hearing of a charge against an accused for a related summary offence, the court may admit as evidence in relation to the charge—

- (a) evidence given during the trial of the accused in respect of the indictable offence;
- 25 (b) in the case of a plea of guilty to the indictable offence, the depositions and all exhibits and all recordings referred to in section 139 that were admitted in evidence in the committal proceeding in relation to the indictable offence.

- 30 (4) A party may adduce further evidence only with the leave of the court.

(5) If the court considers it appropriate to do so, the court may transfer a proceeding for a related summary offence back to the Magistrates' Court for hearing and determination.

(6) The court may impose any sentence in respect of a related summary offence that could be made by the Magistrates' Court.

Notes

1 See the definition of *related summary offence* in section 3.

2 See the definitions of *originating court* and *original jurisdiction* in section 3 in relation to rights of appeal under Part 6.3.

243 Unrelated summary offence

(1) The Supreme Court or the County Court may hear and determine a charge against an accused for a summary offence that is not a related summary offence if the accused—

(a) is before the court in respect of an indictable offence; and

(b) consents to the court hearing and determining the charge for the summary offence; and

(c) states an intention to plead guilty to the charge for the summary offence.

(2) If the accused consents to the court hearing and determining a charge for a summary offence that is not a related summary offence, the proceeding in respect of the charge is transferred from the Magistrates' Court to the Supreme Court or the County Court, as the case may be.

Note

A charge-sheet for a summary offence may only be filed in the Magistrates' Court. See section 6.

(3) The court must hear and determine the charge for the summary offence without a jury and in accordance with Part 3.3, as far as practicable.

(4) If the accused—

(a) does not plead guilty to the charge for the summary offence; or

(b) states an intention to plead not guilty to the charge for the summary offence—

the court is to direct that the charge be transferred to the Magistrates' Court for hearing and determination.

(5) The court may impose any sentence in respect of the summary offence that could be imposed by the Magistrates' Court.

Note

See the definitions of *originating court* and *original jurisdiction* in section 3 in relation to rights of appeal under Part 6.3.

Division 2—Criminal record

244 Criminal record

(1) A criminal record must contain, in relation to each previous conviction—

(a) the date of the previous conviction; and

(b) the court in which the previous conviction took place; and

(c) the place of sitting of that court; and

(d) the offence committed; and

(e) the sentence imposed.

(2) If other offences were taken into account when a sentence was imposed in respect of a previous conviction, a criminal record may contain a statement to that effect and the offences taken into account, including the number of offences.

(3) A criminal record is inadmissible as evidence against the person to whom it relates in a proceeding for an offence unless the criminal record is signed by—

- (a) a member of the police force; or
- (b) a Crown Prosecutor; or
- (c) a member of staff of the Office of Public Prosecutions who is a legal practitioner; or
- (d) in the case of a proceeding commenced by an informant—
 - (i) a person who is entitled to represent the informant and is a legal practitioner; or
 - (ii) a public official.

245 Proof of previous convictions by criminal record

- (1) If the prosecution intends to allege, in the event of a finding of guilt against a person, that the person has previous convictions, the prosecution may file the criminal record of the person in court at any time after the indictment is filed and before the sentencing hearing commences.
- (2) If the criminal record of the person is not available before the sentencing hearing commences, the prosecution may file it in court at any time before sentencing, if the court considers that it is in the interests of justice to do so.
- (3) If a person is found guilty of an offence and the criminal record of the person has been filed in court, the court must ask the person whether the person admits the previous convictions set out in the criminal record.
- (4) A person may admit, orally or in writing on the criminal record, all or any of the previous convictions set out in the criminal record.

- (5) If the person admits to a previous conviction, the court may sentence the person accordingly.
- (6) If the person does not admit to a previous conviction, the prosecution may lead evidence to prove the previous conviction.

Note

Section 178 of the **Evidence Act 2008** provides for proof of previous convictions by the filing of a certificate.

Division 3—Powers and obligations

246 Attendance of accused at hearings

An accused must attend all hearings conducted under this Chapter in the criminal proceeding against the accused unless excused under section 330.

247 Power to extend or abridge time

- (1) The court, by order, may extend or abridge any time fixed—
- (a) by or under this Chapter; or
 - (b) by any order extending or abridging time made under this section—
- if the court considers that it is in the interests of justice to do so.
- (2) An extension of the time for commencement of a trial for a sexual offence must not exceed 3 months.
- (3) It is not necessary that an order be made under subsection (1) if a ruling made, or direction given, by the court provides for the extension or abridgment of time.
- (4) The court may extend time under subsection (1) before or after the time expires.

- (5) More than one extension of time may be granted under subsection (1).
- (6) Unless the court otherwise orders, no material in support of an order under subsection (1) need be filed.

248 Parties must inform Juries Commissioner of certain events

If a party to a criminal proceeding listed for trial before a jury becomes aware of any event that affects—

- (a) whether or not a jury will be required for the trial; or
- (b) when a jury will be required for the trial; or
- (c) the dates on which persons will be required to attend for jury service—

the party must inform the Juries Commissioner as soon as practicable after the party becomes aware of the event.

249 Counsel required to retain brief for trial

- (1) A legal practitioner who has been briefed or otherwise agreed to appear for an accused at a trial must, at least 7 days before the day on which the trial is due to commence, advise the court of his or her intention to appear for the accused.
- (2) A legal practitioner may only relinquish a brief to appear or withdraw from an agreement to appear for an accused within 7 days before the day on which the trial is due to commence with the leave of the court.
- (3) On an application for leave under subsection (2), the court may make an order as to costs to be paid personally by the legal practitioner if the court considers that in the circumstances of the case—

(a) the agreement to appear at trial for the accused or the acceptance of a brief to appear for the accused at trial is unreasonable; or

(b) the withdrawal from an agreement to appear for the accused at trial or the relinquishment of a brief to appear for the accused at trial is unreasonable.

250 Complaints about legal practitioners

If a court considers that a legal practitioner for a party has failed to comply with—

(a) a requirement of Part 5.5 or an order made under Part 5.5, including an order or requirement under section 181; or

(b) an order under section 352 or 358—

the court may make a complaint about the legal practitioner's conduct to the Legal Services Commissioner under Chapter 4 of the **Legal Profession Act 2004**.

251 Judge at earlier trial not prevented from presiding at later trial

(1) This section applies if an offence charged in an indictment and an offence that was tried at an earlier trial are the same or related offences.

(2) The trial judge at an earlier trial, or a judge who conducted a directions hearing or other pre-trial hearing in relation to the earlier trial, is not prevented from being the trial judge at the later trial merely because the judge made a decision in relation to the earlier trial on any issue of law or procedure that, in his or her opinion, is likely to be contentious in the later trial.

Note

See the definition of *related offences* in section 3.

252 Offence for corporate accused to fail to appear

- (1) A corporate accused must comply with an order made under section 144(2)(d).

Penalty: 240 penalty units.

- (2) If the court orders a corporate accused to appear at any other hearing, the corporate accused must not, without reasonable excuse, fail to appear, by a representative or a legal practitioner, at the hearing.

Penalty: 240 penalty units.

253 Abolition of grand jury procedure

The common law procedure of calling a grand jury to determine, on evidence called by the applicant for a grand jury, whether a person charged with an indictable offence ought to be put on trial before an ordinary jury is abolished.

Note

Chapter 8 contains general provisions that apply to all criminal proceedings.

CHAPTER 6—APPEALS AND CASES STATED

PART 6.1—APPEAL FROM MAGISTRATES' COURT TO COUNTY COURT

Division 1—Appeal by offender

254 Right of appeal

A person convicted of an offence by the Magistrates' Court in a criminal proceeding conducted in accordance with Part 3.3 may appeal to the County Court against—

- (a) the conviction and sentence imposed by the court; or
- (b) sentence alone.

Note

See the definitions of *conviction* and *sentence* in section 3.

255 How appeal is commenced

- (1) An appeal under section 254 is commenced by filing a notice of appeal with a registrar of the Magistrates' Court at any venue of the Magistrates' Court within 28 days after the day on which the sentence of the Magistrates' Court is imposed.
- (2) A copy of the notice of appeal must be served on the respondent in accordance with section 340 within 7 days after the day on which the notice is filed.
- (3) A notice of appeal must—
 - (a) state whether the appeal is against conviction and sentence, or sentence alone; and
 - (b) be in the form prescribed by the rules of the County Court.

(4) A notice of appeal must include a statement in the form prescribed by the rules of the County Court and signed by the appellant to the effect that the appellant is aware that on the appeal the County Court may impose a sentence more severe than that sought to be appealed.

(5) A notice of appeal must also include an undertaking signed by the appellant in the manner prescribed by the rules of the County Court—

(a) to appear at the County Court to proceed with the appeal at a place and on a day fixed or to be fixed by the registrar of the County Court and to appear at the County Court for the duration of the appeal; and

(b) to give written notice without delay to the registrar of the County Court of any change of address of the appellant from that appearing in the notice of appeal.

(6) Before accepting a notice of appeal, a registrar of the Magistrates' Court must—

(a) give to the person seeking to file the notice of appeal a notice in the form prescribed by the rules of the County Court to the effect that on the appeal the County Court may impose a sentence more severe than that sought to be appealed against; and

(b) if the person seeking to file the notice of appeal is not the proposed appellant, be satisfied that the proposed appellant has signed the statement required to be included in the notice of appeal by subsection (4).

(7) A notice of appeal filed under this section must be transmitted to the County Court.

s. 256

Part 6.1—Appeal from Magistrates' Court to County Court

256 Determination of appeal

(1) An appeal under section 254 must be conducted as a rehearing and the appellant is not bound by the plea entered in the Magistrates' Court.

(2) On the hearing of an appeal under section 254, the County Court—

(a) must set aside the sentence of the Magistrates' Court; and

(b) may impose any sentence which the County Court considers appropriate and which the Magistrates' Court imposed or could have imposed; and

(c) may exercise any power which the Magistrates' Court exercised or could have exercised.

(3) On the hearing of an appeal under section 254, the County Court must warn the appellant, as early as possible during the hearing, that the appellant faces the possibility that a more severe sentence may be imposed than that imposed by the Magistrates' Court.

(4) The County Court may backdate a sentence imposed under subsection (2) to a date not earlier than the date of the sentence of the Magistrates' Court that was set aside on the appeal.

(5) A sentence imposed under subsection (2) is for all purposes to be regarded as a sentence of the County Court.

Division 2—Appeal by DPP against sentence

257 DPP's right of appeal against sentence

(1) The DPP may appeal to the County Court against a sentence imposed by the Magistrates' Court in a criminal proceeding conducted in accordance with

Part 3.3 if satisfied that an appeal should be brought in the public interest.

- (2) The DPP must not bring a further appeal against a sentence imposed by the County Court.

258 How appeal is commenced

- (1) An appeal under section 257 is commenced by filing a notice of appeal with a registrar of the Magistrates' Court at any venue of the Magistrates' Court within 28 days after the day on which the sentence of the Magistrates' Court is imposed.

- (2) A copy of the notice of appeal must be served personally on the respondent in accordance with section 339 within 7 days after the day on which the notice is filed.

- (3) A notice of appeal must—
- (a) state the general grounds of appeal; and
 - (b) be in the form prescribed by the rules of the County Court.

- (4) The DPP must provide a copy of the notice of appeal to the legal practitioner who last represented the respondent in the criminal proceeding to which the appeal relates, if that legal practitioner can reasonably be identified.

- (5) A notice of appeal filed under this section must be transmitted to the County Court.

259 Determination of DPP's appeal

- (1) An appeal under section 257 must be conducted as a rehearing and the respondent is not bound by the plea entered in the Magistrates' Court.

- (2) On the hearing of an appeal under section 257, the County Court—

s. 260

Part 6.1—Appeal from Magistrates' Court to County Court

- (a) must set aside the sentence of the Magistrates' Court; and
- (b) may impose any sentence which the County Court considers appropriate and which the Magistrates' Court imposed or could have imposed; and
- (c) may exercise any power which the Magistrates' Court exercised or could have exercised.

(3) In imposing a sentence under subsection (2), the County Court must not take into account the element of double jeopardy involved in the respondent being sentenced again, in order to impose a less severe sentence than the court would otherwise consider appropriate.

(4) The County Court may backdate a sentence imposed under subsection (2) to a date not earlier than the date of the sentence of the Magistrates' Court that was set aside on the appeal.

(5) A sentence imposed under subsection (2) is for all purposes to be regarded as a sentence of the County Court.

Division 3—Appeal by DPP—Failure to fulfil undertaking

260 DPP's right of appeal—failure to fulfil undertaking

(1) Without limiting any right of appeal under section 257, the DPP may appeal to the County Court against a sentence imposed on a person convicted of an indictable offence that was heard and determined summarily by the Magistrates' Court if—

- (a) the sentence was less severe because of an undertaking given by the person to assist, after sentencing, law enforcement authorities in the investigation or prosecution of an

offence, whether or not proceedings for that offence had commenced at the time of sentencing; and

(b) the DPP considers that the person has failed, wholly or partly, to fulfil the undertaking.

(2) The DPP may bring an appeal under this section at any time, whether or not the sentence has been served.

261 How appeal is commenced

(1) An appeal under section 260 is commenced by filing a notice of appeal, signed by the DPP personally, with a registrar of the Magistrates' Court at any venue of the Magistrates' Court.

(2) A copy of the notice of appeal must be served personally on the respondent in accordance with section 339 within 14 days after the day on which the notice is filed.

(3) A notice of appeal must be in the form prescribed by the rules of the County Court.

(4) The DPP must provide a copy of the notice of appeal to the legal practitioner who last represented the respondent in the criminal proceeding to which the appeal relates, if that legal practitioner can reasonably be identified.

(5) A notice of appeal filed under this section must be transmitted to the County Court.

262 Determination of DPP's appeal—failure to fulfil undertaking

(1) An appeal under section 260 must not be conducted as a rehearing.

(2) On an appeal under section 260, if the County Court considers that the respondent has failed, wholly or partly, to fulfil the undertaking referred to in section 260(1)(a), the County Court may—

s. 263

Part 6.1—Appeal from Magistrates' Court to County Court

- (a) set aside the sentence imposed by the Magistrates' Court; and
- (b) impose the sentence that it considers appropriate, having regard to the failure of the respondent to fulfil the undertaking.

- (3) In imposing a sentence under subsection (2), the County Court must not take into account the element of double jeopardy involved in the respondent being sentenced again, in order to impose a less severe sentence than the court would otherwise consider appropriate.

Division 4—Procedure

263 Late notice of appeal deemed to be application for leave to appeal

- (1) A notice of appeal filed after the end of the period referred to in section 255(1) or 258 is deemed to be an application for leave to appeal on the grounds stated in the notice.
- (2) The County Court may grant leave to appeal under subsection (1) and the appellant may proceed with the appeal if—
 - (a) the court considers that the failure to file a notice of appeal within the period referred to in section 255(1) or 258 was due to exceptional circumstances; and
 - (b) the court is satisfied that the respondent's case would not be materially prejudiced because of the delay.

264 Stay of order

- (1) If an appellant appeals against sentence and is not in custody because of that sentence, the appeal operates as a stay of the sentence (but not a conviction in respect of the sentence) when the

appellant files the notice of appeal and signs the undertaking referred to in section 255(5).

(2) If an appellant appeals against sentence and is in custody because of that sentence, the appeal operates as a stay of the sentence (but not a conviction in respect of the sentence) when—

(a) the appellant files the notice of appeal and signs the undertaking referred to in section 255(5); and

(b) the appellant enters bail, if bail is granted under section 265.

(3) This section is subject to section 29 of the **Road Safety Act 1986**.

265 Bail pending appeal

(1) If an appellant is in custody because of the sentence appealed against and wishes to be released pending the appeal, the appellant—

(a) may apply to the Magistrates' Court to be released on bail; and

(b) if he or she makes an application under paragraph (a), must give reasonable notice of the application to the respondent to the appeal.

(2) If an application is made under subsection (1), the Magistrates' Court must either grant or refuse bail as if the appellant were accused of an offence and were being held in custody in relation to that offence and, for this purpose, the **Bail Act 1977** (with any necessary modifications) applies.

266 Abandonment of appeal

(1) Subject to this section, an appeal to the County Court may be abandoned in accordance with the rules of the County Court.

5 (2) If an appellant appeals against both conviction and sentence but does not pursue the appeal against conviction, the appellant must give written notice to the court and the respondent that the appeal against conviction is abandoned.

(3) An appellant may abandon an appeal against a sentence under which a term of imprisonment or detention was imposed—

10 (a) if the appellant is not in custody, by surrendering to the registrar of the County Court and immediately filing with the registrar a notice in the form prescribed by the rules of the County Court; or

15 (b) if the appellant is in custody, by filing with the registrar of the County Court a notice referred to in paragraph (a).

20 (4) If an appellant abandons an appeal in accordance with subsection (2) or the rules of the County Court, the County Court must strike out the appeal.

(5) If an appeal is struck out under subsection (4)—

25 (a) the order of the Magistrates' Court may be enforced as if an appeal had not been made but, for the purposes of the enforcement of any penalty, time is deemed not to have run during the period of any stay; and

30 (b) the registrar of the County Court must give to the respondent or to the respondent's legal practitioner a copy of the order striking out the appeal; and

(c) the making of an order striking out an appeal discharges the undertaking of the appellant to proceed with the appeal.

267 Appellant's failure to appear

(1) If an appellant (other than the DPP) fails to appear at the time listed for the hearing of the appeal, the County Court may—

- (a) strike out the appeal; or
- (b) adjourn the proceeding on any terms that it considers appropriate.

(2) If an appeal is struck out under subsection (1)(a)—

(a) the order of the Magistrates' Court may be enforced as if an appeal had not been commenced but, for the purposes of the enforcement of any penalty, time is deemed not to have run during the period of any stay; and

(b) the registrar of the County Court must give to the respondent or to the respondent's legal practitioner a copy of the order striking out the appeal; and

(c) the making of an order striking out an appeal discharges the undertaking of the appellant to proceed with the appeal.

(3) The County Court, at any time, may set aside an order striking out an appeal because of the failure of the appellant to appear, if the appellant satisfies the court that the failure to appear was not due to fault or neglect on the part of the appellant.

(4) An application under subsection (3) to set aside an order may be made at any time on notice in writing to the respondent served a reasonable time before the making of the application.

(5) Notice under subsection (4) must be served in the same way as a notice of appeal.

s. 268

Part 6.1—Appeal from Magistrates' Court to County Court

(6) If the County Court grants an application under subsection (3), the court—

- (a) must order the reinstatement of the appeal subject to the payment of any costs that the court considers appropriate; and
- (b) may require the appellant to give a further undertaking to proceed with the appeal.

268 Respondent's failure to appear on appeal by DPP

(1) If a respondent to an appeal under section 257 by the DPP fails to appear at the time listed for the hearing of the appeal, the County Court—

- (a) may adjourn the proceeding on any terms that it considers appropriate; or
- (b) if satisfied that notice of the appeal has been given in accordance with section 258, may hear and determine the appeal in the absence of the respondent.

Note

The County Court cannot impose a sentence that requires the consent of the respondent, for example a community-based order, in the absence of the respondent.

(2) If the County Court adjourns the proceeding and is satisfied that notice of the appeal has been given in accordance with section 258, the court may issue a warrant to arrest the respondent and to bring the respondent before the judge who issued the warrant or any other judge of the court.

269 One notice of appeal for 2 or more sentences

If 2 or more sentences are imposed in respect of charges that have been heard together, the appellant may give one notice of appeal for all or any of those sentences.

270 Appeal against aggregate sentence

On sentencing a person where the sentence appealed against is an aggregate sentence of imprisonment imposed in accordance with section 9(1) of the **Sentencing Act 1991** or an aggregate fine imposed in accordance with section 51 of that Act, the County Court may rely on any agreed statement of facts (however derived) relevant to any charge contained in the original charge-sheet.

271 Appeal to County Court authorised by other Acts

If a person is authorised by or under any other Act to appeal from an order of the Magistrates' Court to the County Court, subject to that Act, the provisions of this Act with respect to appeals to the County Court apply.

Note

Section 283 gives a further right of appeal from the County Court to the Court of Appeal in certain circumstances.

**PART 6.2—APPEAL FROM MAGISTRATES' COURT TO
SUPREME COURT ON A QUESTION OF LAW**

272 Appeal to Supreme Court on a question of law

- 5 (1) A party to a criminal proceeding (other than a
committal proceeding) in the Magistrates' Court
may appeal to the Supreme Court on a question of
law, from a final order of the Magistrates' Court in
that proceeding.
- 10 (2) If an informant who is a member of the police
force wishes to appeal under subsection (1), the
appeal may be brought only by the DPP on behalf
of the informant.
- 15 (3) An appeal under subsection (1) is commenced by
filing a notice of appeal in accordance with the
rules of the Supreme Court within 28 days after
the day on which the order complained of was
made.
- 20 (4) A copy of the notice of appeal must be served on
the respondent in accordance with subsection (5)
within 7 days after the day on which the notice of
appeal was filed.
- (5) A copy notice of appeal must be served—
- 25 (a) personally on a respondent who was the
accused in accordance with section 339; or
- (b) on a respondent who was the informant in
accordance with section 340.
- (6) An appeal under subsection (1) does not operate
as a stay of any order made by the Magistrates'
Court unless the Supreme Court otherwise orders.
- 30 (7) An appeal commenced after the end of the period
referred to in subsection (3) is deemed to be
an application for leave to appeal under
subsection (1).

(8) The Supreme Court may grant leave under subsection (7) and the appellant may proceed with the appeal if the Supreme Court—

(a) is of the opinion that the failure to commence the appeal within the period referred to in subsection (3) was due to exceptional circumstances; and

(b) is satisfied that the case of any other party to the appeal would not be materially prejudiced because of the delay.

(9) After hearing and determining the appeal, the Supreme Court may make any order that it thinks appropriate, including an order remitting the case for rehearing to the Magistrates' Court with or without any direction in law.

(10) An order made by the Supreme Court on an appeal under subsection (1), other than an order remitting the case for rehearing to the Magistrates' Court, may be enforced as an order of the Supreme Court.

(11) The Supreme Court may provide for a stay of the order or for admitting any person to bail as it considers appropriate.

273 Appeal on question of law precludes appeal to County Court

If a person appeals under this Part to the Supreme Court on a question of law, that person abandons finally and conclusively any right under this or any other Act to appeal to the County Court in relation to that proceeding.

**PART 6.3—APPEAL AND CASE STATED FROM COUNTY
COURT OR TRIAL DIVISION OF SUPREME COURT TO
COURT OF APPEAL**

Division 1—Appeal against conviction

274 Right of appeal against conviction

A person convicted of an offence by an
originating court may appeal to the Court of
Appeal against the conviction on any ground of
appeal if the Court of Appeal gives the person
leave to appeal.

Note

See the definitions of *conviction*, *originating court* and
original jurisdiction in section 3.

275 How appeal is commenced

- (1) An application for leave to appeal under
section 274 is commenced by filing a notice of
application for leave to appeal in accordance with
the rules of court within 28 days after the day on
which the person is sentenced or any extension of
that period granted under section 313.
- (2) The Registrar of Criminal Appeals of the Supreme
Court must provide to the respondent a copy of
the notice of application for leave to appeal within
7 days after the day on which the notice of
application is filed.

276 Determination of appeal against conviction

- (1) On an appeal under section 274, the Court of
Appeal must allow the appeal against conviction if
the appellant satisfies the court that—
 - (a) the verdict of the jury is unreasonable or
cannot be supported having regard to the
evidence; or

(b) as the result of an error or an irregularity in,
or in relation to, the trial there has been a
substantial miscarriage of justice; or

(c) for any other reason there has been a
substantial miscarriage of justice.

(2) In any other case, the Court of Appeal must
dismiss an appeal under section 274.

277 Orders etc. on successful appeal

(1) If the Court of Appeal allows an appeal under
section 274, it must set aside the conviction of the
offence (*offence A*) and must—

(a) order a new trial of offence A; or

(b) enter a judgment of acquittal of offence A; or

(c) if—

(i) the appellant could have been found
guilty of some other offence
(*offence B*) instead of offence A; and

(ii) the court is satisfied that the jury must
have been satisfied of facts that prove
the appellant was guilty of offence B—

enter a judgment of conviction of offence B
and impose a sentence for offence B that is
no more severe than the sentence that was
imposed for offence A; or

(d) if the appellant could have been found guilty
of some other offence (*offence B*) instead of
offence A and the court is not satisfied as
required by paragraph (c)(ii), order a new
trial for offence B;

(e) if the court is satisfied that the appellant
should have been found not guilty of
offence A because of mental impairment,
enter a finding of not guilty because of
mental impairment and make an order or

declaration under section 23 of the **Crimes
(Mental Impairment and Unfitness to be
Tried) Act 1997**; or

(f) if the appellant could have been found guilty
of some other offence (*offence B*) instead of
offence A and the court is satisfied—

(i) that the jury must have been satisfied of
facts that prove the appellant did the
acts or made the omissions that
constitute offence B; and

(ii) that the appellant should have been
found not guilty of offence B because
of mental impairment—

enter a finding of not guilty of offence B
because of mental impairment and make an
order or declaration under section 23 of the
**Crimes (Mental Impairment and
Unfitness to be Tried) Act 1997**.

(2) If the Court of Appeal orders a new trial, the court
must order that the appellant appear on a specified
date before the court in which the new trial will be
conducted.

(3) If the Court of Appeal sets aside the conviction of
offence A, it may vary a sentence that—

(a) was imposed for an offence other than
offence A at or after the time when the
appellant was sentenced for offence A; and

(b) took into account the sentence for offence A.

(4) A power of the Court of Appeal under this section
to impose a sentence in substitution for the
sentence imposed by the originating court may
still be exercised even if the sentence imposed by
the originating court is an aggregate sentence of
imprisonment.

(5) If at the conclusion of an appeal the appellant remains convicted of more than one offence, the Court of Appeal may either—

- (a) impose a separate sentence in respect of each offence; or
- (b) impose an aggregate sentence of imprisonment in respect of all offences or any 2 or more offences.

Division 2—Appeal by offender against sentence

278 Right of appeal against sentence imposed by originating court

A person sentenced for an offence by an originating court may appeal to the Court of Appeal against the sentence imposed if the Court of Appeal gives the person leave to appeal.

Note

See the definitions of *originating court* and *original jurisdiction* in section 3.

279 How appeal is commenced

- (1) An application for leave to appeal under section 278 is commenced by filing a notice of application for leave to appeal in accordance with the rules of court within 28 days after the day on which the person is sentenced or any extension of that period granted under section 313.
- (2) The Registrar of Criminal Appeals of the Supreme Court must provide to the respondent a copy of the notice of application for leave to appeal within 7 days after the day on which the notice of application is filed.

s. 280

Part 6.3—Appeal and Case Stated from County Court or Trial Division of
Supreme Court to Court of Appeal

280 Determination of application for leave to appeal

- (1) This section applies to an application for leave to appeal under section 278 that is heard by a single Judge of Appeal under section 315(1).
- (2) An application for leave to appeal under section 278 may be refused if there is no reasonable prospect that the Court of Appeal would impose a less severe sentence than the sentence first imposed.
- (3) An application may be refused under subsection (2) even if the Judge of Appeal considers that there may be a reasonably arguable ground of appeal.

Note

Section 315(2) entitles an unsuccessful applicant to have the application determined by the Court of Appeal.

281 Determination of appeal

- (1) On an appeal under section 278, the Court of Appeal must allow the appeal if the appellant satisfies the court that—
- (a) there is an error in the sentence first imposed; and
- (b) a different sentence should be imposed.
- (2) In any other case, the Court of Appeal must dismiss an appeal under section 278.
- (3) If the Court of Appeal is considering imposing a more severe sentence than the sentence first imposed, the Court of Appeal must warn the appellant, as early as possible during the hearing of the appeal, that the appellant faces the possibility that a more severe sentence may be imposed than that first imposed.

282 Orders etc. on successful appeal

(1) If the Court of Appeal allows an appeal under section 278, it must set aside the sentence imposed by the originating court and either—

- (a) impose the sentence, whether more or less severe, that it considers appropriate; or
- (b) remit the matter to the originating court.

(2) If the Court of Appeal imposes a sentence under subsection (1)(a), it may make any other order that it considers ought to be made.

(3) If the Court of Appeal remits a matter to the originating court under subsection (1)(b)—

- (a) it may give directions concerning the manner and scope of the further hearing by the originating court, including a direction as to whether the hearing is to be conducted by the same judge or a different judge; and
- (b) the originating court, whether constituted by the same judge or a different judge, must hear and determine the matter in accordance with the directions, if any.

283 Right of appeal against sentence of imprisonment imposed by County Court on appeal from Magistrates' Court

(1) In this section—

imprisonment includes detention in a youth justice centre or youth residential centre but does not include imprisonment in default of payment of a fine.

(2) A person sentenced to a term of imprisonment by the County Court under section 256, 259 or 262 may appeal to the Court of Appeal against the sentence if—

s. 284

Part 6.3—Appeal and Case Stated from County Court or Trial Division of
Supreme Court to Court of Appeal

- (a) in the proceeding that is the subject of the appeal, the Magistrates' Court had not ordered that the person be imprisoned; and
- (b) the Court of Appeal gives the person leave to appeal.

284 How appeal is commenced

- (1) An application for leave to appeal under section 283 is commenced by filing a notice of application for leave to appeal in accordance with the rules of court within 28 days after the day on which the person is sentenced by the County Court or any extension of that period granted under section 313.
- (2) The Registrar of Criminal Appeals of the Supreme Court must provide to the respondent a copy of the notice of application for leave to appeal within 7 days after the day on which the notice of application is filed.

285 Determination of appeal

- (1) On an appeal under section 283, the Court of Appeal must allow the appeal if the appellant satisfies the court that—
- (a) there is an error in the sentence imposed; and
- (b) a different sentence should be imposed.
- (2) In any other case, the Court of Appeal must dismiss an appeal under section 283.
- (3) If the Court of Appeal is considering imposing a more severe sentence than the sentence imposed by the County Court, the Court of Appeal must warn the appellant, as early as possible during the hearing of the appeal, that the appellant faces the possibility that a more severe sentence may be imposed than that imposed by the County Court.

286 Orders etc. on successful appeal

(1) If the Court of Appeal allows an appeal under section 283, it must set aside the sentence imposed by the County Court and either—

- (a) impose the sentence, whether more or less severe, that it considers appropriate; or
- (b) remit the matter to the County Court.

(2) If the Court of Appeal remits a matter to the County Court under subsection (1)(b)—

- (a) it may give directions concerning the manner and scope of the further hearing by the County Court, including a direction as to whether the hearing is to be conducted by the same judge or a different judge; and
- (b) the County Court, whether constituted by the same judge or a different judge, must hear and determine the matter in accordance with the directions, if any.

Division 3—Crown appeal against sentence

287 Right of appeal—inadequate sentence

The DPP may appeal to the Court of Appeal against a sentence imposed by an originating court if the DPP—

- (a) considers that there is an error in the sentence imposed and that a different sentence should be imposed; and
- (b) is satisfied that an appeal should be brought in the public interest.

s. 288

Part 6.3—Appeal and Case Stated from County Court or Trial Division of
Supreme Court to Court of Appeal

288 How appeal is commenced

- (1) An appeal under section 287 is commenced by filing a notice of appeal in accordance with the rules of court within 28 days after the day on which the sentence is imposed or any extension of that period granted under section 313.
- (2) A notice of appeal under subsection (1) must be signed by the DPP personally.
- (3) A copy of the notice of appeal must be served personally on the respondent in accordance with section 339 within 7 days after the day on which the notice of appeal is filed.
- (4) The DPP must provide a copy of the notice of appeal to the legal practitioner who last represented the respondent in the criminal proceeding to which the appeal relates, if that legal practitioner can reasonably be identified.

289 Determination of Crown appeal

- (1) On an appeal under section 287, the Court of Appeal must allow the appeal if the DPP satisfies the court that—
- (a) there is an error in the sentence first imposed; and
- (b) a different sentence should be imposed.
- (2) In considering whether there is an error in the sentence imposed, the Court of Appeal must not take into account any element of double jeopardy involved in the respondent being sentenced again, if the appeal is allowed.
- (3) In any other case, the Court of Appeal must dismiss an appeal under section 287.

290 Orders etc. on successful appeal

- (1) If the Court of Appeal allows an appeal under section 287, it must set aside the sentence imposed by the originating court and impose the sentence, whether more or less severe, that it considers appropriate.
- (2) If the Court of Appeal imposes a sentence under subsection (1), it may make any other order that it considers ought to be made.
- (3) In imposing a sentence under subsection (1), the Court of Appeal must not take into account the element of double jeopardy involved in the respondent being sentenced again, in order to impose a less severe sentence than the court would otherwise consider appropriate.

291 Right of appeal—failure to fulfil undertaking

Without limiting any right of appeal under section 287, the DPP may appeal to the Court of Appeal against a sentence imposed on a person by an originating court if—

- (a) the sentence was less severe because of an undertaking given by the person to assist, after sentencing, law enforcement authorities in the investigation or prosecution of an offence, whether or not proceedings for that offence had commenced at the time of sentencing; and
- (b) the DPP considers that the person has failed, wholly or partly, to fulfil the undertaking.

292 How appeal is commenced

- (1) An appeal under section 291 is commenced by filing a notice of appeal in accordance with the rules of court.
- (2) A notice of appeal under subsection (1) must be signed by the DPP personally.

s. 293

Part 6.3—Appeal and Case Stated from County Court or Trial Division of
Supreme Court to Court of Appeal

(3) A copy of the notice of appeal must be served personally on the respondent in accordance with section 339 within 14 days after the day on which the notice of appeal is filed.

(4) The DPP must provide a copy of the notice of appeal to the legal practitioner who last represented the respondent in the criminal proceeding to which the appeal relates, if that legal practitioner can reasonably be identified.

293 Determination of Crown appeal—failure to fulfil undertaking

On an appeal under section 291, if the Court of Appeal considers that the respondent has failed, wholly or partly, to fulfil the undertaking referred to in section 291(a), the Court of Appeal may allow the appeal.

294 Powers of Court of Appeal on successful appeal

(1) If the Court of Appeal allows an appeal under section 291, it may—

- (a) set aside the sentence imposed by the originating court; and
- (b) impose the sentence that it considers appropriate, having regard to the failure of the respondent to fulfil the undertaking.

(2) In imposing a sentence under subsection (1), the Court of Appeal must not take into account the element of double jeopardy involved in the respondent being sentenced again, in order to impose a less severe sentence than the court would otherwise consider appropriate.

(3) Section 321 does not apply to the Court of Appeal in imposing a sentence under subsection (1).

Division 4—Interlocutory appeal

295 Right of appeal against interlocutory decision

- (1) This section applies to a proceeding in the County Court or the Trial Division of the Supreme Court for the prosecution of an indictable offence.
- (2) Subject to this section, a party to a proceeding referred to in subsection (1) may appeal to the Court of Appeal against an interlocutory decision made in the proceeding if the Court of Appeal gives the party leave to appeal.

Note

See the definition of *interlocutory decision* in section 3.

- (3) A party may not seek leave to appeal unless the judge who made the interlocutory decision certifies—
- (a) if the interlocutory decision concerns the admissibility of evidence, that the evidence, if ruled inadmissible, would eliminate or substantially weaken the prosecution case; and
- (b) if the interlocutory decision does not concern the admissibility of evidence, that the interlocutory decision is otherwise of sufficient importance to the trial to justify it being determined on an interlocutory appeal; and
- (c) if the interlocutory decision is made after the trial commences, either—
- (i) that the issue that is the subject of the proposed appeal was not reasonably able to be identified before the trial; or
- (ii) that the party was not at fault in failing to identify the issue that is the subject of the proposed appeal.

s. 296

Part 6.3—Appeal and Case Stated from County Court or Trial Division of
Supreme Court to Court of Appeal

- (4) A request for certification under subsection (3) must be determined as soon as practicable after the request is made.

296 Review of refusal to certify

- (1) If a judge refuses to certify under section 295(3), the party which requested certification may apply to the Court of Appeal, in accordance with the rules of court, for review of the decision.

- (2) An application for review under subsection (1) is commenced by filing a notice of application for review in accordance with the rules of court—

(a) subject to paragraph (b), if the trial has not commenced when the judge refuses to certify, within 10 days after the day on which the judge refuses to certify or any extension of that period granted under section 313; or

(b) if the trial commences within 10 days after the day on which the judge refuses to certify, within 2 days after the day on which the trial commences or any extension of that period granted under section 313; or

(c) if the trial has commenced when the judge refuses to certify, within 2 days after the day on which the judge refuses to certify or any extension of that period granted under section 313.

- (3) A copy of the notice of application for review must be served on the respondent in accordance with section 340 or 342, as the case requires—

(a) subject to paragraph (b), if the trial has not commenced when the judge refuses to certify, within 2 days after the day on which the notice of application is filed; or

(b) if the trial commences within 10 days
after the day on which the judge refuses to
certify, within the period referred to in
subsection (2)(b); or

(c) if the trial has commenced when the judge
refuses to certify, within the period referred
to in subsection (2)(c).

(4) On a review under subsection (1), the Court of
Appeal—

(a) must consider the matters referred to in
section 295(3); and

(b) if satisfied as required by section 297, may
give the applicant leave to appeal against the
interlocutory decision.

297 When leave to appeal may be given

(1) Subject to subsection (2), the Court of Appeal
may give leave to appeal against an interlocutory
decision only if the court is satisfied that it is in
the interests of justice to do so, having regard to—

(a) the extent of any disruption or delay to the
trial process that may arise if leave is given;
and

(b) whether the determination of the appeal
against the interlocutory decision may—

(i) render the trial unnecessary; or
(ii) substantially reduce the time required
for the trial; or

(iii) resolve an issue of law, evidence or
procedure that is necessary for the
proper conduct of the trial; or

(iv) reduce the likelihood of a successful
appeal against conviction in the event
that the accused is convicted at trial;
and

s. 298

Part 6.3—Appeal and Case Stated from County Court or Trial Division of
Supreme Court to Court of Appeal

(c) any other matter that the court considers relevant.

(2) The Court of Appeal must not give leave to appeal after the trial has commenced, unless the reasons for doing so clearly outweigh any disruption to the trial.

(3) If the Court of Appeal refuses leave to appeal under this section, the refusal does not preclude any other appeal on the issue that was the subject of the proposed appeal.

298 How interlocutory appeal is commenced

(1) An interlocutory appeal under section 295 is commenced by filing a notice of application for leave to appeal in accordance with the rules of court—

(a) subject to paragraph (b), if the trial has not commenced when the interlocutory decision is made, within 10 days after the day on which the interlocutory decision is made or any extension of that period granted under section 313; or

(b) if the trial commences within 10 days after the day on which the interlocutory decision is made, within 2 days after the day on which the trial commences or any extension of that period granted under section 313; or

(c) if the trial has commenced when the interlocutory decision is made, within 2 days after the day on which the interlocutory decision is made or any extension of that period granted under section 313.

(2) A copy of the notice of application for leave to appeal must be served on the respondent in accordance with section 340 or 342, as the case requires—

(a) subject to paragraph (b), if the trial has not commenced when the interlocutory decision is made, within 2 days after the day on which the notice of application is filed; or

(b) if the trial commences within 10 days after the day on which the interlocutory decision is made, within the period referred to in subsection (1)(b); or

(c) if the trial has commenced when the interlocutory decision is made, within the period referred to in subsection (1)(c).

299 Adjournment of trial if leave to appeal given

If the Court of Appeal gives leave to appeal against an interlocutory decision after the trial has commenced, the trial judge must adjourn the trial without discharging the jury, if reasonably practicable, until the appeal has been determined.

300 Determination of appeal

(1) An appeal against an interlocutory decision is to be determined on the evidence, if any, given in the proceeding to which the appeal relates, unless the Court of Appeal gives leave to adduce additional evidence.

(2) On an appeal under section 295, the Court of Appeal—

(a) may affirm or set aside the interlocutory decision; and

(b) if it sets aside the interlocutory decision—

(i) may make any other decision that the Court of Appeal considers ought to have been made; or

(ii) remit the matter to the court which made the interlocutory decision for determination.

s. 301

Part 6.3—Appeal and Case Stated from County Court or Trial Division of
Supreme Court to Court of Appeal

- (3) If the Court of Appeal remits a matter under subsection (2)(b)(ii)—
- (a) it may give directions concerning the basis on which the matter is to be determined; and
 - (b) the court to which the matter is remitted must hear and determine the matter in accordance with the directions, if any.

301 Determination of interlocutory appeal to be entered on record

The Registrar of Criminal Appeals of the Supreme Court must transmit the decision of the Court of Appeal to the court which made the interlocutory decision and that court must enter the decision on the court record.

Division 5—Case stated for Court of Appeal

302 Reservation of question of law

- (1) This section applies to a proceeding in the County Court or the Trial Division of the Supreme Court for the prosecution of an indictable offence.
- (2) In a proceeding referred to in subsection (1), if a question of law arises before or during the trial, the court may reserve the question for determination by the Court of Appeal if the court is satisfied that it is in the interests of justice to do so, having regard to—
- (a) the extent of any disruption or delay to the trial process that may arise if the question of law is reserved; and
 - (b) whether the determination of the question of law may—
 - (i) render the trial unnecessary; or
 - (ii) substantially reduce the time required for the trial; or

(iii) resolve a novel question of law that is
necessary for the proper conduct of the
trial; or

(iv) reduce the likelihood of a successful
appeal against conviction in the event
that the accused is convicted at trial.

(3) The court must not reserve a question of law after
the trial has commenced, unless the reasons for
doing so clearly outweigh any disruption to the
trial.

Note

Section 33 of the **Charter of Human Rights and Responsibilities
Act 2006** also provides for the referral to the Supreme Court of
questions of law that relate to the application of the Charter or the
interpretation of a statutory provision in accordance with the
Charter.

303 Adjournment if question of law reserved

If a court reserves a question of law under
section 302 after the trial has commenced, the
court must adjourn the trial without discharging
the jury, if reasonably practicable, until the
question of law has been determined.

304 Refusal to reserve question of law

(1) If the Supreme Court or the County Court refuses
an application under section 302 to reserve a
question of law, the applicant may apply to the
Court of Appeal for an order calling on—

(a) the court which dismissed the application;
and

(b) the respondent—

to show cause why the question of law should not
be reserved for determination by the Court of
Appeal.

s. 305

Part 6.3—Appeal and Case Stated from County Court or Trial Division of
Supreme Court to Court of Appeal

(2) On an application under subsection (1), the Court of Appeal may order that the question of law be reserved for its determination or refuse the application with or without costs.

(3) If the Court of Appeal orders that the question of law be reserved, the court to which the order is directed must reserve the question for determination by the Court of Appeal.

305 Case to be stated if question of law reserved

(1) If a court reserves a question of law under section 302 or 304, it must state a case, setting out the question and the circumstances in which the question has arisen.

(2) The court must sign the case stated and transmit it within a reasonable time to the Court of Appeal.

(3) The Court of Appeal may return a case stated transmitted to it under subsection (2) for amendment and the court that stated the case must amend it as required.

306 General powers of Court of Appeal on case stated

(1) The Court of Appeal may hear and finally determine a question of law set out in a case stated.

(2) In the case of a question of law reserved under section 302 or 304, the Court of Appeal may remit the question and the determination of the Court of Appeal back to the court which reserved the question.

(3) The applicant is not required to attend the hearing under subsection (1).

307 Judgment to be entered on record

The Registrar of Criminal Appeals of the Supreme Court must transmit the judgment and order (if any) of the Court of Appeal to the court that

reserved the question of law and that court must enter the judgment and order (if any) on the court record.

308 DPP may refer point of law to Court of Appeal

- (1) If a person is acquitted in respect of all or any charges—
- (a) in a trial on indictment before the Supreme Court or the County Court; or
 - (b) on an appeal to the County Court from the Magistrates' Court—

the DPP may refer to the Court of Appeal any point of law that has arisen in the proceeding.

- (2) The Court of Appeal is to consider a point of law referred to it under subsection (1) and give its opinion on it.
- (3) An acquitted person who appears in court in person or by a legal practitioner is entitled to reasonable costs as settled by the Taxing Master of the Supreme Court.
- (4) A reference under this section does not affect the trial in relation to which the reference is made or an acquittal in that trial.

Division 6—Status of sentences and orders during appeal period

309 Sentence not stayed during appeal period

- (1) A sentence is not stayed during the appeal period unless—
- (a) this Act or any other Act otherwise provides; or
 - (b) an order is made under subsection (2).

s. 310

Part 6.3—Appeal and Case Stated from County Court or Trial Division of
Supreme Court to Court of Appeal

- (2) The trial judge or, if a notice of appeal or notice of application for leave to appeal is filed, the Court of Appeal may stay a sentence if satisfied that it is in the interests of justice to do so.

Note

See the definition of *sentence* in section 3.

310 Bail pending appeal

- (1) A prisoner within the meaning of the **Corrections Act 1986** who appeals, or applies for leave to appeal, to the Court of Appeal may apply to the Court of Appeal to be granted bail.
- (2) On an application under subsection (1), the Court of Appeal may grant the prisoner bail pending the appeal.

Note

See section 323 for bail following appeal.

311 Stay of certain orders during appeal period

- (1) This section applies to an order under section 84, 85B or 86 of the **Sentencing Act 1991** made by the Supreme Court or the County Court.

Note

See section 83G(1) of the **Sentencing Act 1991** in relation to superannuation orders.

- (2) Unless the Supreme Court or the County Court otherwise directs, an order referred to in subsection (1) is stayed during the appeal period.
- (3) If an order is stayed under subsection (2) and the conviction is quashed on appeal, the order does not take effect unless the Court of Appeal otherwise orders.
- (4) The Court of Appeal may set aside or vary an order made by the Supreme Court or the County Court under subsection (2).

- (5) Rules of court may provide for securing the safe custody during the appeal period of any property the subject of an order referred to in subsection (1).

312 Execution of order for forfeiture or destruction of property

- (1) If a court orders the forfeiture or destruction of any property in relation to an offence, the property must not be forfeited or destroyed during the appeal period unless earlier forfeiture or destruction is permitted by any other law.
- (2) This section does not apply to orders made under the **Confiscation Act 1997**.
- (3) Rules of court may provide for securing the safe custody during the appeal period of any property the subject of an order referred to in subsection (1).

Division 7—Powers and procedure

313 Extension of time for filing or serving notice of appeal or notice of application for leave to appeal

- (1) The Court of Appeal or the Registrar of Criminal Appeals of the Supreme Court at any time may extend the time within which—
- (a) a notice of appeal or notice of application for leave to appeal may be filed under this Part or under section 14A or 24AA of the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997**; or
- (b) a notice referred to in paragraph (a) may be served.
- (2) If the Registrar of Criminal Appeals of the Supreme Court refuses an application to extend time under subsection (1), the applicant is entitled

s. 314

Part 6.3—Appeal and Case Stated from County Court or Trial Division of
Supreme Court to Court of Appeal

to have the Court of Appeal determine the
application.

314 Abandonment of appeal

An appeal to the Court of Appeal may be
abandoned in accordance with the rules of court.

**315 Powers which may be exercised by a single Judge of
Appeal**

(1) The following powers of the Court of Appeal
under this Part may be exercised by a single Judge
of Appeal in the same manner as they may be
exercised by the Court of Appeal—

- (a) to give leave to appeal;
- (b) to review a refusal to certify;
- (c) to extend the time within which notice of
appeal may be given;
- (d) to extend the time within which notice of
application for leave to appeal may be given;
- (e) to grant the appellant bail;
- (f) to order stays of sentence.

(2) If a Judge of Appeal refuses an application to
exercise a power referred to in subsection (1), the
applicant is entitled to have the application
determined by the Court of Appeal.

**316 Trial judge may be required to provide report on
appeal**

(1) For the purposes of this Part, the Registrar of
Criminal Appeals of the Supreme Court may
require a trial judge to provide to the Registrar a
report on a case tried by the judge, giving the
opinion of the trial judge on the case or on any
point arising in the case.

- (2) A trial judge must comply with a requirement under subsection (1) in accordance with the rules of court.

317 Production of documents, exhibits or other things

For the purposes of this Part, the Court of Appeal may order the production of any document, exhibit or other thing connected with the proceeding if the Court of Appeal considers that it is in the interests of justice to do so.

318 Order for examination of compellable witness

- (1) For the purposes of this Part, if the Court of Appeal considers that it is in the interests of justice to do so, the Court of Appeal may order any witness who would have been a compellable witness at the trial to attend and be examined before the court, whether or not the witness was called at the trial.
- (2) If the Court of Appeal makes an order under subsection (1), it may order that the examination of the witness be conducted, in accordance with the rules of court, before any person appointed by the Court of Appeal for that purpose.
- (3) The Court of Appeal may admit as evidence any deposition of a witness taken in an examination under subsection (2).

319 Evidence of competent but not compellable witness

For the purposes of this Part, if the Court of Appeal considers that it is in the interests of justice to do so, the Court of Appeal may receive the evidence of any witness (including the appellant) who is a competent but not compellable witness.

Note

As to competence and compellability of witnesses, see Division 1 of Part 2.1 of Chapter 2 of the **Evidence Act 2008**.

s. 320

Part 6.3—Appeal and Case Stated from County Court or Trial Division of
Supreme Court to Court of Appeal

320 Reference of question to special commissioner

(1) The Court of Appeal may appoint a special commissioner to inquire into and report on any question referred to the special commissioner by the court if—

(a) the question arises on an appeal under this Part or an application for leave to appeal under this Part; and

(b) the question involves—

(i) prolonged examination of documents or accounts; or

(ii) any scientific or local investigation; and

(c) the court considers that the examination or investigation cannot conveniently be conducted before the court; and

(d) the court considers that it is in the interests of justice to do so.

(2) The Court of Appeal may act on the report of a special commissioner to the extent that the court considers appropriate to adopt the report.

(3) The Court of Appeal may determine the remuneration of a special commissioner.

321 New evidence—effect on sentence

(1) Subject to subsections (2) and (3), on an appeal under this Part, including an appeal by the DPP, the Court of Appeal must not increase a sentence by reason of any evidence that was not given at the trial or sentencing hearing.

(2) On an appeal under section 291, the Court of Appeal may increase a sentence by reason of evidence of the failure to fulfil an undertaking referred to in section 291(a).

(3) On an appeal under this Part, including an appeal by the DPP, the Court of Appeal may increase a sentence, by reason of any evidence that was not given at the trial or sentencing hearing, if the court considers that—

- (a) the originating court was misled at the sentencing hearing as to a material fact; and
- (b) an increase in sentence is necessary in the interests of justice.

322 Sentence in absence of offender

The Court of Appeal may impose a sentence on a person under this Part even though the person does not attend the hearing of an appeal or an application to the Court of Appeal.

Note

The Court of Appeal cannot impose a sentence that requires the consent of the person, for example a community-based order, in the absence of the person.

323 Bail following appeal

If on an appeal the Court of Appeal orders a new trial or remits a matter to the Trial Division of the Supreme Court or to the County Court, the Court of Appeal may remand the appellant in custody or grant the appellant bail pending the commencement of the new trial or the remitted matter.

324 Warrants

For the purposes of this Part, the Court of Appeal may issue any warrant necessary for enforcing the orders of the court.

s. 325

Part 6.3—Appeal and Case Stated from County Court or Trial Division of
Supreme Court to Court of Appeal

325 Ancillary orders of originating court

(1) In this section—

ancillary order means an order (other than the
order that is the subject of the appeal) made
by the originating court in the proceeding.

(2) On an appeal under this Part, the Court of Appeal
may set aside or vary an ancillary order, if the
court is satisfied that it is in the interests of justice
to do so.

Example

On an appeal against conviction from the County Court, the Court
of Appeal may set aside or vary an order made by the County
Court for the suppression of a name.

326 Expenses of assessors and special commissioners

Subject to any prescribed rates and scales of
payment, the Attorney-General must pay out of
money provided by Parliament all expenses of and
incidental to—

- (a) the appointment of an assessor by the Court
of Appeal under section 77 of the **Supreme
Court Act 1986** in an appeal under this Part;
- (b) a reference of a question to a special
commissioner under section 320.

Note

Chapter 8 contains general provisions that apply to all criminal
proceedings.

CHAPTER 7—REFERENCE TO COURT OF APPEAL ON PETITION FOR MERCY

327 Reference by Attorney-General

(1) If a person convicted on indictment or found unfit to stand trial or found not guilty because of mental impairment petitions for the exercise of Her Majesty's mercy in relation to the conviction or finding, or the sentence imposed on the person, the Attorney-General—

(a) may refer the whole case to the Court of Appeal; or

(b) may refer any point arising in the case to the judges of the Trial Division of the Supreme Court for their opinion.

(2) If the Attorney-General refers the whole case to the Court of Appeal, the Court of Appeal must hear and determine the case as if it were an appeal by the person.

(3) If the Attorney-General refers a question to the judges of the Trial Division of the Supreme Court, those judges or any 3 of them must consider the point and provide the Attorney-General with their opinion.

(4) Nothing in this Chapter affects the prerogative of mercy.

Note

Chapter 8 contains general provisions that apply to all criminal proceedings.

CHAPTER 8—GENERAL

PART 8.1—CONDUCT OF PROCEEDING

328 Appearance

A party to a criminal proceeding may appear—

- (a) personally; or
- (b) by a legal practitioner or other person empowered by law to appear for the party; or
- (c) in the Magistrates' Court, in the case of an informant who is a member of the police force, by a police prosecutor; or
- (d) if the proceeding was commenced by the filing, by a prescribed person or a member of a prescribed class of persons, of a charge under—
 - (i) section 18W(1), 26(1), 31(1), 47(1) or 79(1) of the **Sentencing Act 1991**; or
 - (ii) section 158 of the **Infringements Act 2006**—

by any other prescribed person or any other member of the prescribed class of persons within the meaning of the **Sentencing Act 1991** or the **Infringements Act 2006**, as the case requires.

329 When accused etc. is required to appear at hearing

- (1) An accused must appear at every hearing in the criminal proceeding against the accused, unless otherwise provided by this Act or the rules of court.

(2) A party to an appeal who was the accused in the criminal proceeding to which the appeal relates must appear at every hearing in the appeal, unless otherwise provided by this Act or the rules of court.

(3) The court may excuse a person from appearing at a hearing.

Notes

- 1 See section 328 for the ways in which an accused may appear.
- 2 Division 3 of Part IIA of the **Evidence Act 1958** permits the appearance of an accused before the court by audio visual link in certain circumstances.

330 When accused etc. is required to attend hearing

(1) An accused must attend a hearing in the criminal proceeding against the accused if—

- (a) this Act or the rules of court require the attendance of the accused at the hearing; or
- (b) the accused has been remanded in custody or granted bail to attend the hearing; or
- (c) the court requires the attendance of the accused at the hearing.

(2) A party to an appeal who was the accused in the criminal proceeding to which the appeal relates must attend a hearing in the appeal if—

- (a) this Act or the rules of court require the attendance of the party at the hearing; or
- (b) the party has been remanded in custody or granted bail to attend the hearing; or
- (c) the court requires the attendance of the party at the hearing.

(3) The court may excuse a person from attending a hearing.

(4) If a person fails to attend when required under subsection (1)(a), (1)(b), (2)(a) or (2)(b), the court may issue a warrant to arrest the person.

(5) If a person fails to attend when required under subsection (1)(c) or (2)(c), the court may issue a warrant to arrest the person if the court is satisfied that the person has had reasonable notice of the requirement to attend.

Notes

1 Section 3 defines **attend** as to be physically present in court.

2 Section 100(2) provides for the attendance of an accused at hearings in a committal proceeding.

3 Section 246 provides for the attendance of an accused at hearings conducted under Chapter 5 (Trial on Indictment).

331 Power to adjourn proceeding

(1) A court may adjourn the hearing of a criminal proceeding before the court—

(a) to any time and place; and

(b) for any purpose; and

(c) on any terms as to costs or otherwise—

that it considers appropriate.

(2) If at any time a court adjourns the hearing of a criminal proceeding, the court may—

(a) allow the accused to go at large; or

(b) remand the accused in custody; or

(c) grant the accused bail or extend his or her bail.

Note

See section 333 of this Act and section 5A of the **Bail Act 1977** where accused is undergoing a sentence of detention in a youth justice centre.

(3) If a court has adjourned the hearing of a criminal proceeding to a particular time, it may order that the hearing be held or resumed before that time.

(4) A court may only make an order under subsection (3)—

(a) with the consent of all the parties; or

(b) on the application of a party who has given reasonable notice of the application to the other parties.

(5) If a court adjourns a criminal proceeding in which a jury has been sworn, whether or not the accused is present, the court may discharge the jury from giving a verdict and order a new trial.

(6) If a court has adjourned the hearing of a criminal proceeding to a particular time and has remanded the accused in custody, the court may order that the accused be brought at any time before then—

(a) before the court; or

(b) to another place specified in the order where facilities exist to enable the accused to appear before the court by audio visual link (within the meaning of Part IIA of the **Evidence Act 1958**)—

in order that the hearing may be held or continued.

(7) The officer in charge of the prison or youth justice centre or other officer who has custody of the accused must obey an order under subsection (6).

332 Transfer of accused between place of detention and court

(1) A person who has the legal custody of an accused in detention must cause the accused to be brought to and from court whenever necessary so that the accused may be tried, sentenced or otherwise dealt with according to law.

(2) If a court considers it in the interests of justice that an accused in detention should be present in court otherwise than for trial, hearing or sentence, the court may order that the accused be brought before the court.

(3) If a court makes an order under subsection (2), the responsible person, on receiving a copy of the order, must cause the accused to be brought before the court in accordance with the order.

Note

See the definitions of *in detention* and *responsible person* in section 3.

333 Power to return accused to youth justice centre

(1) Despite anything in the **Bail Act 1977**, if—

- (a) the accused in a criminal proceeding in the Magistrates' Court is undergoing a sentence of detention in a youth justice centre; and
- (b) the Magistrates' Court adjourns the proceeding or commits the accused to stand trial—

the court may, instead of remanding the accused in custody—

- (c) direct that the accused be returned to the custody of the Secretary to the Department of Human Services until the end of the sentence of detention or the resumption of the hearing or the commencement of the trial (whichever is the sooner); and
- (d) either—
 - (i) grant the accused bail on a special condition that bail is not to be entered until the end of the sentence of detention; or

- (ii) refuse bail and direct that the accused be brought before the Magistrates' Court at a later date for it to consider the granting of bail.

- (2) For the purposes of this section, *the end of the sentence of detention* means the time when the accused is released from custody, whether on parole or otherwise.

Note

Section 5A of the **Bail Act 1977** provides equivalent powers to the Supreme Court and the County Court.

334 Proceedings against bodies corporate

- (1) In this section—

representative, in relation to a body corporate, means a person duly appointed by the body corporate to represent it for the purpose of doing any act or thing which this section authorises a representative to do.

- (2) For the purposes of this section, a representative need not be appointed under the seal of the body corporate.

- (3) For the purposes of this section, a statement in writing that—

- (a) purports to be signed by a managing director of a body corporate or by any person (by whatever name called) having, or being one of the persons having, the management of the affairs of the body corporate; and
- (b) is to the effect that the person named in the statement has been appointed as the representative of the body corporate for the purposes of this section—

is admissible in evidence and, in the absence of evidence to the contrary, is proof that the person has been so appointed.

(4) A representative may do any act or thing that a natural person may do in a criminal proceeding subject to the following—

- (a) if a body corporate is charged with an indictable offence, a representative may consent to the charge being heard and determined summarily;
- (b) if expressly authorised to do so, a representative may plead guilty on behalf of the body corporate;
- (c) if expressly authorised to do so, a representative may sign a notice of appeal referred to in section 255 and enter into an undertaking under section 255(5);
- (d) if—
 - (i) a representative appears in a proceeding against a body corporate for an offence; and
 - (ii) a provision of this Act requires something to be done in the presence of the accused, or to be said to the accused—

it is sufficient if that thing is done in the presence of the representative or said to the representative.

335 Interpreter

If—

- (a) a person is charged with an offence punishable by imprisonment; and
- (b) the court is satisfied that the person does not have a knowledge of the English language that is sufficient to enable the person to

understand, or participate in, the
proceeding—

the court must not hear and determine the
proceeding without a competent interpreter
interpreting it.

336 Subpoenas and witness summonses

A party to a criminal proceeding may apply for
the issue of a subpoena in accordance with the
rules of court or a witness summons in accordance
with the **Magistrates' Court Act 1989**, as the
case requires.

337 Court may act on application or on own motion

Unless the context otherwise requires, a power or
discretion conferred on a court by or under this
Act may be exercised by the court on the
application of a party or on its own motion.

PART 8.2—SERVICE OF DOCUMENTS

338 General rules as to service

Unless this Act or any other Act or the rules of court otherwise provide—

- (a) if a document is to be served personally, it must be served in accordance with section 339;
- (b) if a document is to be served on the informant or the prosecution, it must be served in accordance with section 340;
- (c) if a document is to be served on a company, registered body, incorporated association or other body corporate, it must be served in accordance with section 341;
- (d) in any other case, a document may be served in accordance with section 342.

339 Personal service

(1) Unless this Act or any other Act or the rules of court otherwise provide, personal service of a document must be effected in accordance with subsection (2), (3) or (4).

(2) Personal service of a document is effected by—

- (a) giving a copy of the document to the person to be served; or
- (b) if the person does not accept the copy, by putting the copy down in the person's presence and telling the person the nature of the document; or
- (c) leaving a copy of the document for the person at the person's last known or usual place of residence with a person who appears to be of or over the age of 16 years.

- 5 (3) If the person to be served is in detention or in immigration detention within the meaning of section 5 of the Migration Act 1958 of the Commonwealth, personal service of a document on the person may be effected by sending a copy of the document by registered post addressed to the person at the place of detention.

Note

See the definition of *in detention* in section 3.

- 10 (4) If a legal practitioner has given written notice to the informant or the prosecution that the legal practitioner represents an accused and is instructed to accept personal service of documents on behalf of the accused, personal service of a document on the accused may be effected by—
- 15 (a) giving a copy of the document to the legal practitioner; or
- (b) leaving a copy of the document at the ordinary place of business of the legal practitioner with a person who appears to work there; or
- 20 (c) sending a copy of the document by registered post addressed to the legal practitioner at the ordinary business address of the legal practitioner.
- 25

340 Service on informant or DPP

- (1) In this section—

informant includes an appellant, applicant or respondent who was the informant at first instance.

- 30 (2) If the person to be served is the informant, a document may be served—
- (a) by giving a copy of the document to—
- (i) the informant; or

(ii) a person representing the informant at a hearing in relation to the charge; or

(b) by sending a copy of the document by prepaid ordinary post addressed to the informant at the business address nominated by the informant under section 18; or

(c) by sending a copy of the document by fax or email addressed to the informant at the fax number or email address nominated by the informant under section 18; or

(d) by leaving a copy of the document for the informant at the informant's business address nominated under section 18 with a person who appears to work there; or

(e) in any other manner agreed between the informant and the party serving the document.

(3) If the person to be served is the DPP, a document may be served—

(a) by giving a copy of the document to a person representing the DPP at a hearing in relation to the charge; or

(b) by leaving a copy of the document at the Office of Public Prosecutions with a person who appears to work there; or

(c) by sending a copy of the document by prepaid ordinary post addressed to the Office of Public Prosecutions at the ordinary business address of the Office of Public Prosecutions; or

(d) by sending a copy of the document by prepaid ordinary post addressed to the DPP at the business address, if any, nominated by the DPP under section 172; or

(e) by sending a copy of the document by fax or email addressed to the DPP at the fax number or email address, if any, nominated by the DPP under section 172; or

(f) in any other manner agreed between the DPP and the party serving the document.

Notes

- 1 The **Electronic Transactions (Victoria) Act 2000** applies to enable a document to be served electronically, including facsimile transmission and email, in accordance with that Act.
- 2 Section 172 provides that the DPP may nominate an address for service of documents.

341 Service on company, registered body, incorporated association or other body corporate

(1) If the person to be served is a company within the meaning of the Corporations Act, service of a document on the person may be effected in accordance with section 109X of that Act or in accordance with subsection (4).

(2) If the person to be served is a registered body within the meaning of the Corporations Act, service of a document on the person may be effected in accordance with section 601CX of that Act or in accordance with subsection (4).

(3) If the person to be served is an incorporated association within the meaning of the **Associations Incorporations Act 1981**, service of a document on the person may be effected in accordance with section 48 of that Act or in accordance with subsection (4).

(4) If the person to be served is a body corporate and service is not effected in accordance with subsection (1), (2) or (3), service of a document on the person must be effected—

- (a) by leaving a copy of the document at the registered office or principal place of business of the body corporate; or
- (b) by sending a copy of the document by prepaid ordinary post to the registered office or principal place of business of the body corporate; or
- (c) if the body corporate is represented by a legal practitioner, by sending a copy of the document by prepaid ordinary post addressed to the legal practitioner at the ordinary business address of the legal practitioner; or
- (d) by serving a copy of the document on a representative of the body corporate within the meaning of section 334 in a manner nominated in writing by the representative.

Note

The Electronic Transactions Act 1999 of the Commonwealth or the **Electronic Transactions (Victoria) Act 2000** applies to enable a document to be served electronically, including fax transmission and email, in accordance with the relevant Act.

342 Ordinary service

Unless this Act or any other Act or the rules of court otherwise provide, ordinary service of a document is effected—

- (a) by sending a copy of the document by prepaid ordinary post addressed to the person to be served at the last known place of residence or business of the person; or
- (b) if the person to be served is represented by a legal practitioner, by sending a copy of the document by prepaid ordinary post addressed to the legal practitioner at the ordinary business address of the legal practitioner; or

(c) in any other manner agreed by the parties.

Notes

- 1 See section 49 of the **Interpretation of Legislation Act 1984** as to service by post.
- 2 The **Electronic Transactions (Victoria) Act 2000** applies to enable a document to be served electronically, including fax transmission and email, in accordance with that Act.

343 Personal service satisfies ordinary service

If this Act requires or permits service of a document to be effected in accordance with section 342 or by ordinary service, the document may be served in accordance with section 339.

344 Last known place of residence or business

Rules of court may prescribe how the last known place of residence or business of an accused is to be ascertained in specified circumstances.

345 Order for substituted service

If it appears to a court by sworn evidence, whether oral or by affidavit, that service cannot be promptly effected, the court may make an order for substituted service.

346 Who may effect service

If by or under this Act a person is required or permitted to serve a document, the person may serve the document by causing it to be served by another person.

347 Proof of service

- (1) Service of a document may be proved by—
 - (a) oral sworn evidence; or
 - (b) affidavit; or
 - (c) declaration.

- (2) Evidence of service must identify the document served and state the time and manner in which service was effected.
- (3) A document purporting to be an affidavit or declaration under subsection (1)(b) or (1)(c) is admissible in evidence and, in the absence of evidence to the contrary, is proof of the statements in it.
- (4) An affidavit or declaration under subsection (1)(b) or (1)(c) must be filed in court—
- (a) in the case of service of a summons to answer to a charge for an indictable offence where a date for a filing hearing has been fixed, at least 2 days before the filing hearing;
 - (b) in the case of service of any other summons to answer to a charge, at least 7 days before the return date;
 - (c) in the case of service of any other document, a reasonable time before the hearing to which it applies.
-

PART 8.3—COSTS

Division 1—Preliminary

348 Right to be heard

- 5 (1) Subject to subsection (2), the court must not make
an order awarding costs against a person without
giving that person a reasonable opportunity to be
heard.
- 10 (2) Subsection (1) does not apply to an order for costs
made on the hearing and determination of a
charge in the absence of the accused in
accordance with Division 10 of Part 3.3.

**Division 2—Costs in summary proceedings and committal
proceedings**

349 Costs in Magistrates' Court

- 15 (1) Unless otherwise expressly provided by this or
any other Act or by the rules of court, the costs of,
and incidental to, all criminal proceedings in the
Magistrates' Court are in the discretion of the
court and the court has full power to determine by
20 whom, to whom and to what extent the costs are
to be paid.
- 25 (2) In exercising its discretion under subsection (1) in
a criminal proceeding, the Magistrates' Court may
take into account any unreasonable act or
omission by, or on behalf of, a party to the
proceeding that the court is satisfied resulted in
prolonging the proceeding.
- 30 (3) If the Magistrates' Court strikes out a charge under
section 14(3), the court may award costs against
the informant.

(4) This section and section 358 apply to a purported proceeding in the Magistrates' Court which is beyond the jurisdiction of the court as if the purported proceeding were within jurisdiction.

(5) If the Magistrates' Court determines to award costs against an informant who is a member of the police force, the order must be made against the Chief Commissioner of Police.

350 Notice to appear

If a notice to appear lapses under section 22(1) and notice is given in accordance with section 23, the member of the police force or public official who served the notice is not liable for any costs of the person served with the notice in respect of the serving or lapsing of the notice.

351 Convicted accused to pay filing fee

If—

(a) a charge-sheet containing one or more charges is filed with a registrar of the Magistrates' Court; and

(b) no filing fee is payable because of an exemption provided for in the regulations; and

(c) the accused is convicted of one or more of the alleged offences and is ordered to pay a fine—

the Magistrates' Court must order the accused to pay by way of costs, in addition to the amount of the fine and any other costs, the amount of the filing fee that, but for the exemption, would have been payable.

Division 3—Costs in trials on indictment

352 Costs in the Supreme Court and County Court

(1) If—

5 (a) the Supreme Court or the County Court is
satisfied that an act or omission by, or on
behalf of, a party before the commencement
of trial was unreasonable and resulted in
prolonging the trial; or

10 (b) there has been a departure referred to in
section 233; or

(c) a party has failed to comply with a
requirement of Part 5.5 or an order made
under that Part—

15 the court may make any order that it considers
appropriate with respect to the costs of and
incidental to the trial and, for this purpose, it has
full power to determine by whom, to whom and to
what extent those costs are to be paid.

20 (2) An order under subsection (1) may be made
against—

(a) a party, whether the Crown or the accused;
or

25 (b) a party's legal practitioner or, in the case of a
legal practitioner who is employed by a law
practice (within the meaning of the **Legal
Profession Act 2004**), the law practice.

30 (3) If the accused and the accused's legal practitioner
have complied with the requirements of Part 5.5
and any orders made under that Part and the
hearing of a criminal proceeding is—

- (a) discontinued or adjourned; and
- (b) the reason for the discontinuance or the adjournment was not attributable in any way to the act, neglect or fault of an accused or that accused's legal practitioner—

any indemnity certificate granted by the court under section 16 or 17 of the **Appeal Costs Act 1998** may include an indemnity certificate for the accused's own costs incurred in consequence of a requirement imposed on the accused under that Part.

353 Costs order

If the court determines that costs should be paid under section 352 or 358, the order must provide—

- (a) if the court is satisfied that a party or a party's legal practitioner has reasonably incurred additional costs as a consequence of any act or omission of another party, for payment of costs to the first-mentioned party or that party's legal practitioner;
- (b) in any other case, for payment of costs into court for payment into the Consolidated Fund.

Division 4—Costs on appeal

354 Costs on appeal to County Court

(1) If—

- (a) an appeal under section 254 is struck out or dismissed; and

(b) the County Court is satisfied that the appeal was brought vexatiously or frivolously or in abuse of process—

the County Court may order that the appellant pay all or a specified portion of the respondent's costs of the appeal.

(2) Nothing in subsection (1) limits any discretion as to costs of an appeal conferred on the County Court by any other provision of this Act or the **County Court Act 1958**.

(3) If the County Court is satisfied that—

(a) a copy of a notice of appeal under section 254 or 257 was served on the respondent; and

(b) the appeal was not afterwards prosecuted or the County Court has no jurisdiction to hear and determine the appeal—

the County Court may order that the appellant pay to the respondent any costs that it thinks reasonable.

(4) If an appellant under section 254—

(a) breaches an undertaking referred to in section 255(5); or

(b) abandons an appeal—

the County Court may order that the appellant pay any costs incurred as a result of the breach or abandonment.

355 Costs on abandonment of appeal to County Court

(1) Within 28 days after receiving a copy of the order striking out an appeal, the respondent may apply to the County Court for an order dealing with the respondent's costs of the appeal.

- (2) If a respondent proposes to apply to the County Court under subsection (1), the respondent must first serve notice in writing of the proposed application on the appellant.

Note

See section 342 for ordinary service.

- (3) On an application under subsection (1), the County Court may make any order that it considers just.

356 Costs on appeal from Magistrates' Court to Supreme Court on a question of law

The costs of, and incidental to, an appeal under section 272 are in the discretion of the Supreme Court and the court has full power to determine by whom and to what extent the costs are to be paid.

357 No costs on appeal to Court of Appeal or on new trial

No costs are to be allowed to a party to—

- (a) an appeal under Part 6.3; or
- (b) a new trial; or
- (c) a proceeding preliminary or incidental to an appeal or new trial.

Division 5—Legal practitioners

358 Costs liability of legal practitioner

- (1) If a legal practitioner for a party to—
- (a) a criminal proceeding in the Magistrates' Court; or
 - (b) a criminal proceeding in the Supreme Court or the County Court before the commencement of trial—

whether personally or through a servant or agent,
has caused costs to be incurred improperly or
without reasonable cause or to be wasted by
undue delay or negligence or by any other
misconduct or default, the court may make an
order that—

(c) all or any of the costs between the legal
practitioner and the client be disallowed or
that the legal practitioner repay to the client
the whole or part of any money paid on
account of costs; or

(d) the legal practitioner pay to the client all or
any of the costs which the client has been
ordered to pay to any party; or

(e) the legal practitioner pay all or any of the
costs payable by any party other than the
client.

(2) Without limiting subsection (1), a legal
practitioner is in default for the purposes of that
subsection if a proceeding cannot conveniently be
heard or proceed, or fails or is adjourned without
any useful progress being made, because the legal
practitioner failed to—

(a) attend in person or by a proper
representative; or

(b) file any document which ought to have been
filed; or

(c) file any document in court which ought to
have been filed; or

(d) lodge or deliver any document for the use of
the court which ought to have been lodged or
delivered; or

(e) be prepared with any proper evidence or
account; or

(f) otherwise proceed.

Criminal Procedure Bill 2008

s. 358

Part 8.3—Costs

- (3) The court may order that notice of a proceeding or order against a legal practitioner under this section may be given to the client in any manner that the court directs.
-

PART 8.4—MISCELLANEOUS

359 Issue of warrant to arrest

(1) A warrant to arrest authorised to be issued under this Act is to be issued in accordance with Division 3 of Part 4 of the **Magistrates' Court Act 1989** and that Division applies to such a warrant with any necessary modifications.

(2) Despite anything to the contrary in the **Magistrates' Court Act 1989**, if a warrant to arrest is issued under this Act by a court other than the Magistrates' Court, a person arrested on the warrant must, if practicable, be brought before the court which issued the warrant.

Note

Division 3 of Part IIA of the **Evidence Act 1958** permits the appearance of an accused before the court by audio visual link in certain circumstances.

(3) If it is not practicable to bring an arrested person before the court which issued the warrant within a reasonable period of time after arrest, the person must be brought before a bail justice or the Magistrates' Court.

(4) If an arrested person is brought before a bail justice or the Magistrates' Court in accordance with subsection (3), the bail justice or the Magistrates' Court must remand the arrested person in custody or grant the arrested person bail to appear before the court which issued the warrant.

360 Power to amend when there is a defect or error

For the purpose of correcting any defect or error in substance or in form, a court may amend any summons, warrant, plea, judgment or order.

361 Transfer of charge to court with jurisdiction

If, as a result of error, a charge is before a court which does not have jurisdiction to hear it, the court may order that the charge be transferred to the appropriate court, if the court is satisfied that it is in the interests of justice to do so.

362 Court may direct that a person be prosecuted for perjury

(1) A court may direct that a person be tried for perjury if it appears to the court that the person has committed perjury in—

(a) any evidence given orally before the court; or

(b) an affidavit, deposition, examination or other proceeding made or taken before the court.

(2) If a court directs that a person be tried for perjury, the court may remand the person in custody or grant the person bail pending the trial.

363 Disclosure of material by prosecution

(1) Nothing in this Act derogates from a duty otherwise imposed on the prosecution to disclose to the accused material relevant to a charge.

(2) Nothing in this Act requires the prosecution to disclose to the accused material which the prosecution is required or permitted to withhold under this or any other Act or any rule of law.

364 Court fees not payable by accused

It is not lawful to receive—

(a) any court fees for the issuing of any process on behalf of an accused; or

(b) a fee from an accused for taking or discharging a recognisance of bail or issuing a writ or recording an appearance or plea.

365 Supreme Court—limitation of jurisdiction

It is the intention of sections 61(4) and 209(4) to alter or vary section 85 of the **Constitution Act 1975**.

366 Rules of court

(1) Rules of court made by the authority having for the time being power to make rules regulating the practice and procedure of a court may include rules for or with respect to any matter for which provision is to be made under this Act or under the **Crimes (Mental Impairment or Unfitness to be Tried) Act 1997** by rules of court.

(2) Rules of court made under this Act may regulate generally the practice and procedure under this Act.

367 Regulations

(1) The Governor in Council may make regulations for or with respect to—

(a) prescribing by scale or otherwise the costs of and incidental to proceedings in the County Court on an appeal under section 254, 257 or 260; and

(b) prescribing by scale or otherwise the costs of and incidental to proceedings in the Supreme Court or the County Court on an appeal under section 424 of the **Children, Youth and Families Act 2005**; and

(c) prescribing allowances and expenses to be paid to prosecution witnesses and interpreters—

(i) in criminal trials and criminal appeal proceedings in the Supreme Court and in criminal trials in the County Court;

-
- (ii) in criminal proceedings in the Magistrates' Court and in appeal proceedings in the County Court;
- (d) prescribing allowances and expenses to be paid to witnesses and interpreters—
- (i) attending on the order of the Court of Appeal or examined in a proceeding incidental to a criminal appeal or new trial;
- (ii) attending for examination by a person appointed by the Court of Appeal for the purposes of criminal appeal proceedings;
- (e) prescribing allowances and expenses to be paid to a special commissioner appointed by the Court of Appeal to examine a question arising on criminal appeal proceedings;
- (f) any other matter or thing required or permitted by this Act to be prescribed or necessary to be prescribed to give effect to this Act.
- (2) The regulations—
- (a) may be of general or limited application; and
- (b) may differ according to differences in time, place or circumstances; and
- (c) may confer a discretionary authority or impose a duty on a specified person or body or class of persons or bodies; and
- (d) may leave any matter or thing to be from time to time determined, applied, dispensed with or regulated by a specified person; and
- (e) may provide in a specified case or class of cases for the exemption of persons or things or a class of persons or things from any of

the provisions of the regulations whether unconditionally or on specified conditions and either wholly or to any extent that is specified.

CHAPTER 9—REPEALS AND CONSEQUENTIAL AND OTHER AMENDMENTS

PART 9.1—CRIMES (CRIMINAL TRIALS) ACT 1999

368 Repeal

5

See:
Act No.
35/1999.
Reprint No. 1
as at
1 July 2008
and
amending
Act No.
8/2008.
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www.
legislation.
vic.gov.au

The **Crimes (Criminal Trials) Act 1999** is
repealed.

PART 9.2—CRIMES ACT 1958

369 Amendment of the Crimes Act 1958

- (1) Section 186(5) of the **Crimes Act 1958** is **repealed**.
- (2) In Division 1 of Part III of the **Crimes Act 1958**—
 - (a) Subdivisions (1), (2), (4) (except section 359AA), (5), (6), (8), (9), (10), (11), (12), (13), (15), (16), (17), (20), (21), (22), (23), (24), (25), (26), (27), (28) and (29) are **repealed**;
 - (b) in Subdivision (14), sections 398, 399A, 399B, 401, 402, 409, 412 and 414 are **repealed**;
 - (c) in Subdivision (19), section 421(2), (3) and (4) are **repealed**;
- (3) Section 359AA of the **Crimes Act 1958** is **repealed**.
- (4) Part VI of the **Crimes Act 1958** is **repealed**.
- (5) The Third Schedule to the **Crimes Act 1958** is **repealed**.
- (6) Schedule 4 to the **Crimes Act 1958** is **repealed**.
- (7) The Sixth Schedule to the **Crimes Act 1958** is **repealed**.

See:
Act No.
6231.
Reprint No. 20
as at
1 July 2008
and
amending
Act Nos
16/2004,
9/2008,
12/2008,
24/2008,
34/2008,
46/2008,
52/2008,
58/2008 and
68/2008.
LawToday:
www.
legislation.
vic.gov.au

**PART 9.3—CRIMES (MENTAL IMPAIRMENT AND
UNFITNESS TO BE TRIED) ACT 1997**

370 New section 14A inserted

See:
Act No.
65/1997.
Reprint No. 3
as at
1 January
2007
and
amending
Act Nos
97/2005,
23/2006 and
12/2008.
LawToday:
www.
legislation.
vic.gov.au

After section 14 of the **Crimes (Mental
Impairment and Unfitness to be Tried) Act
1997** insert—

"14A Appeal in relation to fitness to plead

- (1) In a criminal proceeding in the County Court or the Trial Division of the Supreme Court, if the question has arisen whether an accused is unfit to stand trial and on an investigation under this Part a jury finds that the accused is unfit to stand trial, the accused may appeal to the Court of Appeal against the finding on any ground of appeal, with the leave of the Court of Appeal.
- (2) An application for leave to appeal under subsection (1) is commenced by filing a notice of application for leave to appeal in accordance with the rules of court within 28 days after the day on which the finding is made or any extension of that period granted under section 313 of the **Criminal Procedure Act 2008**.
- (3) The Registrar of Criminal Appeals of the Supreme Court must provide to the respondent a copy of the notice of application for leave to appeal within 7 days after the day on which the notice of application is filed.
- (4) On an appeal under subsection (1), the Court of Appeal must allow the appeal if the appellant satisfies the court that—

- 5
- (a) the finding of unfitness to stand trial is unreasonable or cannot be supported having regard to the evidence; or
- (b) the trial judge made a material error of law; or
- (c) for any other reason the court considers that the finding should not stand.
- 10
- (5) In any other case, the Court of Appeal must dismiss an appeal under subsection (1).
- (6) If the Court of Appeal allows an appeal under subsection (1), it must set aside the finding of unfitness to stand trial and either—
- 15
- (a) refer the matter to the Trial Division of the Supreme Court or to the County Court for trial and the accused may be tried for the offence charged against the accused; or
- 20
- (b) remit the matter for a rehearing of the investigation under this Part as to whether the accused is fit to stand trial.
- 25
- (7) Despite subsection (6), if the Court of Appeal allows an appeal under subsection (1) but considers that the accused is unfit to stand trial, it may affirm the finding and refer the matter to the Trial Division of the Supreme Court or to the County Court.
- 30
- (8) If the Court of Appeal remits a matter under subsection (6)(b)—
- 35
- (a) it may give directions concerning the manner and scope of the rehearing, including a direction as to whether the rehearing is to be conducted by the same judge or a different judge; and

s. 371

Part 9.3—Crimes (Mental Impairment and Unfitness to be Tried) Act 1997

(b) the court conducting the rehearing, whether constituted by the same judge or a different judge, must hear and determine the matter in accordance with the directions, if any.

(9) On remitting or referring a matter under this section, the Court of Appeal may remand the accused in custody or grant bail to the accused or make any other order that the court considers appropriate for the safe custody of the accused."

371 New section 24AA inserted

After section 24 of the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997** insert—

"24AA Appeal against mental impairment verdict

(1) In a criminal proceeding in the County Court or the Trial Division of the Supreme Court, if a verdict of not guilty because of mental impairment is recorded against an accused, the accused may appeal to the Court of Appeal against the verdict on any ground of appeal, with the leave of the Court of Appeal.

(2) An application for leave to appeal under subsection (1) is commenced by filing a notice of application for leave to appeal in accordance with the rules of court within 28 days after the day on which the verdict is recorded or any extension of that period granted under section 313 of the **Criminal Procedure Act 2008**.

- 5 (3) The Registrar of Criminal Appeals of the Supreme Court must provide to the respondent a copy of the notice of application for leave to appeal within 7 days after the day on which the notice of application is filed.
- 10 (4) On an appeal under subsection (1), the Court of Appeal must allow the appeal if the appellant satisfies the court that—
- 15 (a) the verdict of the jury is unreasonable or cannot be supported having regard to the evidence; or
- (b) as a result of an error or an irregularity in, or in relation to, the trial there has been a substantial miscarriage of justice; or
- 20 (c) for any other reason there has been a substantial miscarriage of justice.
- (5) Despite subsection (4), the Court of Appeal may dismiss an appeal that would otherwise be allowed under that subsection if—
- 25 (a) none of the grounds for allowing the appeal relates to the issue of the mental impairment of the accused; and
- (b) the court considers that, but for the mental impairment of the accused, the proper verdict would have been that the accused was guilty of an offence other than the offence charged.
- 30 (6) In any other case, the Court of Appeal must dismiss an appeal under subsection (1).

(7) If the Court of Appeal—

(a) allows an appeal under subsection (1) on a ground that the verdict of not guilty because of mental impairment ought not to stand; and

(b) considers that the proper verdict would have been guilty of an offence, whether the offence charged or an offence available as an alternative verdict—

the Court of Appeal must substitute for the verdict a verdict of guilty of that offence and may make any order, or exercise any power, that the court from which the appeal was brought could have made or exercised.

(8) Subject to subsection (7), if the Court of Appeal allows an appeal under subsection (1), it must set aside the verdict and either—

(a) enter a judgment and verdict of acquittal; or

(b) order a new trial.

(9) If the Court of Appeal orders a new trial, it may make any order referred to in section 24(1)(a), (b), (c) or (e) pending the new trial."

372 Consequential amendments

In the Crimes (Mental Impairment and Unfitness to be Tried) Act 1997—

(a) in section 9(4), for "sections 353(3) and 359A of the **Crimes Act 1958**" substitute "sections 211 and 212 of the **Criminal Procedure Act 2008**";

(b) in section 14(7), for "section 353(5) or 359A(2) of the **Crimes Act 1958**" substitute "section 211 or 212 of the **Criminal Procedure Act 2008**";

5

(c) at the foot of section 18(2) insert—

"Note

Section 24AA provides for appeals against a verdict of not guilty because of mental impairment.";

10

(d) in section 76B(1), for "19A," substitute "14A, 19A, 24AA,".

PART 9.4—MAGISTRATES' COURT ACT 1989

373 Joint committals

See:
Act No.
51/1989.
Reprint No. 14
as at
21 August
2008
and
amending
Act Nos
77/2004,
51/2006,
12/2008,
34/2008,
38/2008,
52/2008,
68/2008,
72/2008 and
74/2008.
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After section 25(2) of the **Magistrates' Court Act 1989** insert—

"(3) In a particular case, the jurisdiction given by subsection (1)(c) may be exercised concurrently with the jurisdiction of the Children's Court to conduct a committal proceeding if—

- (a) the charges against each defendant could properly be joined in the same indictment; and
- (b) the defendant who is a child—
 - (i) is of or over the age of 15 years at the time the proceeding against the child for the offence is commenced; and
 - (ii) is charged with murder, attempted murder, manslaughter, an offence against section 197A of the **Crimes Act 1958** (arson causing death) or an offence against section 318 of the **Crimes Act 1958** (culpable driving causing death); and
- (c) the Court makes an order under subsection (4) in relation to the defendant who is not a child and the Children's Court makes an order under section 516A(2) of the **Children, Youth and Families Act 2005** in relation to the defendant who is a child.

(4) The Court may order that joint committal proceedings in relation to a particular defendant are appropriate having regard to—

- (a) the age of the child; and
- (b) the effect on victims of the offence charged if the committal proceedings were not conducted jointly; and
- (c) the estimated duration of the committal proceedings if conducted jointly; and
- (d) the number of witnesses that would be cross-examined by both defendants; and
- (e) any other matter considered relevant.

(5) The Court may make an order under subsection (4) on the application of a party or on its own motion.

(6) Each party is entitled to be present and may address the Court when the Court is considering the making of an order under subsection (4).

(7) If the Court makes an order under subsection (4), the Court may adjourn the proceeding for a period not exceeding 28 days to enable the Children's Court to determine whether joint committal proceedings are appropriate in the particular case.

(8) If joint committal proceedings are conducted under subsection (3)—

- (a) the **Children, Youth and Families Act 2005** applies as far as practicable to the child; and

(b) the **Criminal Procedure Act 2008** applies as far as practicable to the other defendant—

with any necessary modifications to ensure that the joint committal proceedings are conducted fairly and efficiently."

374 Consequential amendments

(1) In the **Magistrates' Court Act 1989**—

(a) in section 3(1), the definitions of *committal mention date*, *depositions*, *hearing date*, *informant*, *mention date*, *sentencing order* and *sexual offence* are **repealed**;

(b) in section 4F(1)(c)(iii), after "adjournment" **insert** ", under section 59 of the **Criminal Procedure Act 2008**";

(c) Division 2 (except sections 29, 43, 44, 45, 50 and 52) of Part 4 is **repealed**;

(d) Divisions 4 and 5 of Part 4 are **repealed**;

(e) in section 50(1), **omit** "charge, summons or" (where twice occurring);

(f) sections 66 and 67 are **repealed**;

(g) in section 128(1), after "proceeding" (where first occurring) **insert** "other than a criminal proceeding";

(h) section 128(2) is **repealed**;

(i) in section 128(3), after "proceeding" **insert** "other than a criminal proceeding";

(j) sections 128(5) and 128(6) are **repealed**.

(2) Schedules 2, 4, 5 and 6 to the **Magistrates' Court Act 1989** are **repealed**.

PART 9.5—CHILDREN, YOUTH AND FAMILIES ACT 2005

375 Definitions inserted

- (1) In section 3(1) of the **Children, Youth and Families Act 2005** insert the following definitions—

"authorised person means a person referred to in Schedule 3 to the **Criminal Procedure Act 2008**;

DPP has the same meaning as in the **Criminal Procedure Act 2008**;"

- (2) In section 3(1) of the **Children, Youth and Families Act 2005** in the definition of *sentencing order*—

(a) in paragraph (a), after "other than" insert "an order incidental to or preparatory to the making of the order or";

(b) after paragraph (ab) insert—

"(ac) any order made under section 11 of the **Sex Offenders Registration Act 2004**; and".

376 New Part 5.1A inserted in Chapter 5

After Part 5.1 of the **Children, Youth and Families Act 2005** insert—

"PART 5.1A—COMMENCEMENT OF PROCEEDINGS

344A Time limits for filing a charge

- (1) A proceeding against a child for a summary offence must be commenced within 6 months after the date on which the offence is alleged to have been committed except where—

See:
Act No.
96/2005.
Reprint No. 1
as at
23 April 2007
and
amending
Act Nos
97/2005,
23/2006,
24/2006,
51/2006,
81/2006,
24/2007,
28/2007,
56/2007,
7/2008, 8/2008,
9/2008,
12/2008,
52/2008 and
68/2008.
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- 5
- (a) the Court extends the time for commencement of the proceeding under section 344C; or
- (b) the child, after receiving legal advice, gives written consent, and a member of the police force of or above the rank of sergeant consents, to the proceeding being commenced after the expiry of that period.
- 10
- (2) A proceeding against a child for an indictable offence may be commenced at any time, except where otherwise provided by or under this or any other Act.
- 15
- (3) If a proceeding for a summary offence is commenced against a child after the child has given consent under subsection (1)(b) in respect of the proceeding, the Court, on the first appearance of the child before the Court, must be satisfied that the child
- 20
- obtained legal advice before giving consent under subsection (1)(b).
- (4) If the Court is not satisfied that the child obtained legal advice before giving consent under subsection (1)(b), it must—
- 25
- (a) adjourn the hearing to enable the child to obtain that legal advice; and
- (b) advise the child and, if present, a parent or guardian of the child that, after obtaining legal advice, the child may
- 30
- withdraw his or her consent to the commencement of the proceeding.

(5) After obtaining legal advice in the circumstances referred to in subsection (4)—

(a) a child; or

(b) if the child is under the age of 15 years and is not legally represented, a parent or guardian of the child—

may withdraw the consent given under subsection (1)(b).

(6) If the child withdraws consent under subsection (5), the Court must strike out the charge.

(7) If the child is under the age of 15 years, the Court may adjourn any hearing referred to in this section, or a resumed hearing, to enable a parent or guardian of the child to attend.

344B Application for extension of time for commencement of proceeding

(1) An informant may apply to the Court for an extension of the period within which a proceeding against a child for a summary offence may be commenced.

(2) An application under subsection (1) may be made within 12 months after the date on which the summary offence is alleged to have been committed.

(3) Only one application may be made under this section.

(4) At least 14 days before the hearing of the application, the applicant must file in the Court and serve, in accordance with section 594, on the child—

(a) notice of the application signed by the applicant; and

(b) notice of the charge signed by the applicant.

(5) An application must be supported by—

(a) oral sworn evidence; or

(b) affidavit; or

(c) a statement signed by the applicant and containing an acknowledgment signed by the applicant in the presence of an authorised person that the statement is true and correct and is made in the belief that a person making a false statement is liable to the penalties of perjury; or

(d) any other means that the Court considers appropriate.

344C Extension of time

(1) On the hearing of an application under section 344B, the Court may extend the period for commencing the proceeding to a date within 12 months after the date on which the summary offence is alleged to have been committed.

(2) In determining the application, the Court must have regard to—

(a) the age of the child; and

(b) the seriousness of the alleged offence and the circumstances in which it is alleged to have occurred; and

(c) whether the delay in commencing the proceeding was caused by factors beyond the control of the applicant; and

(d) the length of the delay; and

- (e) any other matter that the Court considers relevant.
- (3) The child is entitled to appear at the hearing of the application and address the Court but if the child does not appear, the Court may proceed to hear and determine the application in his or her absence.
- (4) If the Court extends the period for commencing the proceeding, the informant must file the charge-sheet without delay.
- (5) On the filing of the charge-sheet—
- (a) if the child is present before the Court and ready to proceed, the Court may hear and determine the charge; or
- (b) if the child is not present before the Court, the informant must serve, in accordance with section 594, on the child notice of the Court's determination.

344D Rehearing

- (1) If an application under section 344B is heard and determined in the absence of the child, the child may apply to the Court for an order that the determination be set aside and that the application be reheard.
- (2) On an application for a rehearing, the Court may set aside the order made under section 344C(1) if it considers it appropriate to do so and rehear the application.
- (3) A notice of intention to apply for a rehearing must—
- (a) state the reason why the child did not appear at the hearing; and

(b) be filed with the registrar at the venue of the Court at which the order was made.

(4) The applicant must serve, in accordance with section 593, on the respondent a copy of the notice and may serve it on the day on which the charge is listed for hearing."

377 New section 516A inserted

After section 516 of the **Children, Youth and Families Act 2005** insert—

"516A Joint committal proceedings

(1) Despite section 505(3), the jurisdiction given by section 516(1)(c) may be exercised concurrently with the jurisdiction of the Magistrates' Court to conduct a committal proceeding if—

(a) the charges against each defendant could properly be joined in the same indictment; and

(b) the defendant who is a child—

(i) is of or over the age of 15 years at the time the criminal proceeding against the child for the offence is commenced; and

(ii) is charged with murder, attempted murder, manslaughter, an offence against section 197A of the **Crimes Act 1958** (arson causing death) or an offence against section 318 of the **Crimes Act 1958** (culpable driving causing death); and

- 5 (c) the Court makes an order under subsection (2) in relation to the defendant who is a child and the Magistrates' Court makes an order under section 25(4) of the **Magistrates' Court Act 1989** in relation to the other defendant.
- 10 (2) The Court may order that joint committal proceedings in relation to a particular defendant are appropriate having regard to—
- 15 (a) the age of the child; and
- (b) the ability of the child to participate in the joint committal proceedings and to provide instructions to his or her legal practitioner; and
- 20 (c) the effect on victims of the offence charged if the committal proceedings were not conducted jointly; and
- (d) the estimated duration of the committal proceedings if conducted jointly; and
- 25 (e) the number of witnesses that would be cross-examined by both defendants; and
- (f) any other matter considered relevant.
- 30 (3) The Court may make an order under subsection (2) on the application of a party or on its own motion.
- (4) Each party is entitled to be present and may address the Court when the Court is considering the making of an order under subsection (2).

5 (5) If the Court makes an order under subsection (2), the Court may adjourn the proceeding for a period not exceeding 28 days to enable the Magistrates' Court to determine whether joint committal proceedings are appropriate in the particular case.

10 (6) If joint committal proceedings are conducted under subsection (1)—

(a) this Act applies as far as practicable to the child; and

(b) the **Criminal Procedure Act 2008** applies as far as practicable to the other defendant—

15 with any necessary modifications to ensure that the joint committal proceedings are conducted fairly and efficiently.".

PART 9.6—APPEAL COSTS ACT 1998

378 New sections 15A, 15B and 15C inserted

After section 15 of the **Appeal Costs Act 1998**
insert—

**"15A Application for indemnity certificate if
interlocutory appeal by accused is
successful**

(1) In this section—

interlocutory appeal means an appeal under
Division 4 of Part 6.3 of Chapter 6 of
the **Criminal Procedure Act 2008**.

(2) If an interlocutory appeal by an accused
succeeds, the accused may apply to the Court
of Appeal for, and the Court of Appeal may
grant, an indemnity certificate in respect
of—

(a) the accused's own costs of the appeal;
and

(b) if a new trial is ordered, any additional
costs that the accused will pay, or will
be ordered to pay, as a consequence of
the order for a new trial.

(3) An accused granted an indemnity certificate
under subsection (2) is entitled to be paid by
the Board, on an application made to it by
the accused in the approved form—

(a) an amount equal to the accused's own
costs of the appeal; and

(b) any additional costs that the accused
pays, or is ordered to pay, as a
consequence of the order for a new
trial—

See:
Act No.
87/1998.
Reprint No. 1
as at
12 April 2006
and
amending
Act Nos
48/2006,
80/2006 and
4/2008.
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that the Board considers to have been reasonably incurred.

15B Application for indemnity certificate by respondent if interlocutory appeal by prosecution

(1) If the prosecution appeals under section 295 of the **Criminal Procedure Act 2008**, the respondent to that appeal may apply to the Court of Appeal for, and the Court of Appeal may grant, an indemnity certificate in respect of—

(a) the respondent's own costs of the appeal; and

(b) if a new trial is ordered, any additional costs that the respondent will pay, or will be ordered to pay, as a consequence of the order for a new trial.

(2) A respondent granted an indemnity certificate under subsection (1) is entitled to be paid by the Board, on an application made to it by the accused in the approved form—

(a) an amount equal to the respondent's own costs of the appeal; and

(b) any additional costs that the accused pays, or is ordered to pay, as a consequence of the order for a new trial—

that the Board considers to have been reasonably incurred.

15C Application for indemnity certificate if case stated for Court of Appeal

(1) If a court states a case under section 305 of the **Criminal Procedure Act 2008**, the accused may apply to the Court of Appeal for, and the Court of Appeal may grant, an indemnity certificate in respect of—

(a) the accused's own costs of the hearing and determination of the question of law set out in the case stated; and

(b) if a new trial is ordered, any additional costs that the accused will pay, or will be ordered to pay, as a consequence of the order for a new trial.

(2) An accused granted an indemnity certificate under subsection (1) is entitled to be paid by the Board, on an application made to it by the accused in the approved form—

(a) an amount equal to the accused's own costs of the hearing and determination of the question of law set out in the case stated; and

(b) if a new trial is ordered, any additional costs that the accused pays, or is ordered to pay, as a consequence of the order for a new trial—

that the Board considers to have been reasonably incurred."

PART 9.7—SENTENCING ACT 1991

379 Repeal

See:
Act No.
49/1991.
Reprint No. 10
as at
23 April 2007
and
amending
Act Nos
97/2005,
23/2006,
24/2006,
56/2007,
7/2008,
8/2008,
12/2008,
18/2008,
21/2008,
46/2008,
52/2008 and
68/2008.
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Section 105 of the **Sentencing Act 1991** is
repealed.

380 New section 112A inserted

After section 112 of the **Sentencing Act 1991**
insert—

**"112A Maximum fine for indictable offence
heard and determined summarily**

- (1) If a person is found guilty by the Magistrates' Court in a summary hearing of an indictable offence, the maximum fine that the Court may impose on the person is 500 penalty units.
- (2) Subsection (1) is subject to any contrary intention in any Act other than this Act."

381 Maximum fine for body corporate

After section 113D(1) of the **Sentencing Act 1991**
insert—

5 "(1A) Despite subsection (1), if a body corporate is
found guilty by the Magistrates' Court in a
summary hearing of an indictable offence,
the maximum fine that the Court may impose
on the body corporate is 2500 penalty units.

10 (1B) Subsection (1A) is subject to any contrary
intention in any Act other than this Act."

PART 9.8—MISCELLANEOUS AMENDMENTS

382 Reclassification of certain offences

(1) In section 118 of the **Magistrates' Court Act 1989** omit "indictable".

(2) After section 10(2) of the **Wrongs Act 1958** insert—

"(3) An offence against subsection (1) or (2) is a summary offence."

(3) In section 25 of the **Trade Unions Act 1958** omit "indictable".

(4) In sections 3(1), 3(3) and 7 of the **Collusive Practices Act 1965** omit "indictable".

(5) In sections 75 and 78 of the **Goods Act 1958** omit "indictable".

(6) Sections 63(1) and 63(5) of the **Therapeutic Goods (Victoria) Act 1994** are repealed.

(7) In sections 55B(5) and 144 of the **Evidence Act 1958** omit "indictable".

(8) In section 400C of the **Mines Act 1958** omit "indictable".

383 Option of jury trial removed

Sections 53(3), 53(5) and 53(6) of the **Summary Offences Act 1966** are repealed.

384 Repeal of provisions concerning sentence indications in Supreme Court and County Court

(1) Part 5.6 is repealed.

(2) In section 365—

(a) for "sections" substitute "section"; and

(b) omit "and 209(4)".

385 Repeal of Chapter

This Chapter is **repealed** on 1 January 2012.

Note

The repeal of this Chapter does not affect the continuing operation of the amendments made by it (see section 15(1) of the **Interpretation of Legislation Act 1984**).

SCHEDULES

SCHEDULE 1

Sections 6(3), 159(3)

CHARGES ON A CHARGE-SHEET OR INDICTMENT

1 Statement of offence

A charge must—

- (a) state the offence that the accused is alleged to have committed; and
- (b) contain the particulars, in accordance with clause 2, that are necessary to give reasonable information as to the nature of the charge.

2 Statement of particulars

- (1) Subject to subclause (2), particulars of the offence charged must be set out in ordinary language and the use of technical terms is not necessary.
- (2) If a rule of law or a statute limits the particulars that are required to be given in a charge, nothing in this clause requires any more particulars than those required.

3 Statutory offence

- (1) In this clause—

statutory offence means an offence created by an Act or subordinate instrument, or by a provision of an Act or subordinate instrument.

- (2) For the purposes of clause 1(a), a statement of a statutory offence is sufficient if it—
 - (a) identifies the provision creating the offence; and

(b) describes the offence in the words of the provision creating it, or in similar words.

(3) If a statutory offence states—

(a) the offence to be committed in alternative ways; or

(b) any element or part of the offence in the alternative—

a charge may state the commission of the offence or the element or part of the offence in the alternative.

4 Exceptions, exemptions etc.

Any exception, exemption, proviso, excuse or qualification need not be specified or negated in a charge.

5 Joinder of charges

(1) A charge-sheet or indictment may contain charges for related offences, whether against the same accused or different accused.

(2) If more than one offence is charged in a charge-sheet or indictment, the particulars of each offence charged must be set out in a separate, consecutively numbered paragraph.

6 Charge against multiple accused

If an offence is alleged against more than one accused, regardless of their degree of participation in the offence, an indictment or charge-sheet may name each of those accused in the charge for the offence.

7 Descriptions generally

Subject to any other provision of this Schedule, if it is necessary to describe anything in a charge, it is sufficient to describe the thing in ordinary

Sch. 1

language in a manner that indicates with
reasonable clarity the thing referred to.

8 Description of persons

- (1) The description or designation in a charge of a
person must be reasonably sufficient to identify
the person.
- (2) If it is impracticable to comply with
subclause (1)—
- (a) a description or designation must be given
that is reasonably practicable in the
circumstances; or
- (b) the person may be described as "a person
unknown".

9 Description of document

If it is necessary to refer to a document or
instrument in a charge, it is sufficient to describe
it by any name by which it is usually known or by
its substance, without setting out a copy of it.

10 Description of property

- (1) The description of property in a charge must—
- (a) be in ordinary language; and
- (b) indicate the property with reasonable clarity.
- (2) If a description of property complies with
subclause (1), it is not necessary to name the
owner of the property or the value of the property,
unless that information is required to describe an
offence which depends on a special ownership of
property or a special value of property.
- (3) If property is vested in more than one person and
the owners of the property are referred to in a
charge, it is sufficient to describe the owners of
the property—

- (a) by naming one of those persons followed by the words "with others"; or
- (b) if the owners are a body of persons with a collective name, by using the collective name alone.

11 Statement of intent to deceive, injure or defraud

In stating an intent to deceive, injure or defraud, it is not necessary to state an intent to deceive, injure or defraud any particular person if the statute creating the offence does not make an intent to deceive, injure or defraud a particular person an element of the offence.

12 Perjury, subornation of perjury, etc.

- (1) In a charge for perjury or for an offence deemed to be perjury, it is sufficient to set out—
- (a) the substance of the offence charged; and
- (b) the court, tribunal or person before whom the accused falsely swore or falsely declared or affirmed the matter charged as false—
- without setting out the commission or authority of the court, tribunal or person.
- (2) In a charge for subornation of perjury and other similar offences where the offence of perjury has been actually committed, it is sufficient to allege the offence of the person who committed the offence of perjury in the manner referred to in subclause (1) and then to allege that the accused unlawfully caused and procured that person to commit the offence of perjury as alleged.
- (3) In a charge for subornation of perjury and other similar offences where the offence of perjury or other offence has not been actually committed, it is sufficient to set out the substance of the offence charged against the accused, without setting out any of the matters referred to in subclause (1).

Sch. 1

13 Names of witnesses to be included on indictment

The following information must be included on an indictment—

- (a) the name of every witness who gave evidence at the committal proceeding, indicating whether the prosecution proposes to call the witness at the trial; and
 - (b) the names of any other witnesses the prosecution proposes to call at the trial.
-

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SCHEDULE 2

Section 28(1)

INDICTABLE OFFENCES THAT MAY BE HEARD AND DETERMINED SUMMARILY

1 Common law

1.1 Offences at common law of conspiracy to cheat and defraud, if the amount or value of the property or the financial advantage alleged to be involved does not in the judgment of the Court exceed \$100 000.

1.2 Offences at common law of conspiracy to defraud, if the amount or value of the property or the financial advantage alleged to be involved does not in the judgment of the Court exceed \$100 000.

2 Control of Weapons Act 1990

2.1 Offences under section 5(1A) of the **Control of Weapons Act 1990**.

3 Crimes Act 1958

3.1 Offences under section 17 of the **Crimes Act 1958** (causing serious injury recklessly).

3.2 Offences under section 27 of the **Crimes Act 1958** (extortion with threat to kill).

3.3 Offences under section 54 of the **Crimes Act 1958** (occupier, etc. permitting unlawful sexual penetration).

3.4 Offences under section 74 of the **Crimes Act 1958** (theft), if—

- (a) the amount or value of the property alleged to have been stolen does not in the judgment of the Court exceed \$100 000; or

Sch. 2

(b) the property alleged to have been stolen is a motor vehicle.

3.5 Offences under section 75 of the **Crimes Act 1958** (robbery), if the amount or value of the property alleged to have been stolen does not in the judgment of the Court exceed \$100 000.

3.6 Offences under section 76 of the **Crimes Act 1958** (burglary), if the offence involves an intent to steal property the amount or value of which does not in the judgment of the Court exceed \$100 000.

3.7 Offences under section 77 of the **Crimes Act 1958** (aggravated burglary), if the offence involves an intent to steal property the amount or value of which does not in the judgment of the Court exceed \$100 000.

3.8 Offences under section 78 of the **Crimes Act 1958** (removal of articles from places open to the public), if the amount or value of the article alleged to have been removed does not in the judgment of the Court exceed \$100 000.

3.9 Offences under section 81 of the **Crimes Act 1958** (obtaining property by deception), if the amount or value of the property alleged to have been obtained does not in the judgment of the Court exceed \$100 000.

3.10 Offences under section 82 of the **Crimes Act 1958** (obtaining financial advantage by deception), if the amount or value of the financial advantage alleged to have been obtained does not in the judgment of the Court exceed \$100 000.

3.11 Offences under section 83 of the **Crimes Act 1958** (false accounting), if the amount or value of the alleged gain or loss does not in the judgment of the Court exceed \$100 000.

- 5 3.12 Offences under section 86 of the **Crimes Act 1958** (suppression, etc. of documents), if the amount or value of the alleged gain or loss does not in the judgment of the Court exceed \$100 000.
- 10 3.13 Offences under section 88 of the **Crimes Act 1958** (handling stolen goods), if—
- (a) the stolen goods alleged to have been handled are a motor vehicle; or
 - (b) in any other case, the amount or value of the stolen goods alleged to have been handled does not in the judgment of the Court exceed \$100 000.
- 15 3.14 Offences under section 176 of the **Crimes Act 1958** (receipt or solicitation of secret commission by agent), if the amount or value of the valuable consideration received, solicited, given or offered does not in the judgment of the Court exceed \$100 000.
- 20 3.15 Offences under section 178 of the **Crimes Act 1958** (giving or receiving false or misleading receipt or account), if the amount or value of the valuable consideration received or given does not in the judgment of the Court exceed \$100 000.
- 25 3.16 Offences under section 179 of the **Crimes Act 1958** (gift or receipt of secret commission in return for advice given), if the amount or value of the valuable consideration received or given does not in the judgment of the Court exceed \$100 000.
- 30 3.17 Offences under section 180 of the **Crimes Act 1958** (secret commission to trustee in return for substituted appointment), if the amount or value of the valuable consideration received or given does not in the judgment of the Court exceed \$100 000.

Sch. 2

- 5 3.18 Offences under section 181 of the **Crimes Act 1958** (aiding and abetting offences within or outside Victoria), if the amount or value of the valuable consideration received or given does not in the judgment of the Court exceed \$100 000.
- 3.19 Offences under section 191 of the **Crimes Act 1958** (fraudulently inducing persons to invest money).
- 10 3.20 Offences under section 194(1) or (2) of the **Crimes Act 1958** (dealing with proceeds of crime), if—
- (a) the property alleged to have been dealt with is a motor vehicle; or
- 15 (b) in any other case, the amount or value of the proceeds of crime alleged to have been dealt with does not in the judgment of the Court exceed \$100 000.
- 20 3.21 Offences under section 195A(1) of the **Crimes Act 1958** (dealing with property which subsequently becomes an instrument of crime), if the amount or value of the property alleged to have been dealt with does not in the judgment of the Court exceed \$100 000.
- 25 3.22 Offences under section 197(1) or (3) of the **Crimes Act 1958** (destroying or damaging property) (including offences charged as arson), if the amount or value of the property alleged to be destroyed or damaged does not in the judgment of the Court exceed \$100 000.
- 30 3.23 Offences under section 198 of the **Crimes Act 1958** (threats to destroy or damage property), if the amount or value of the property alleged to be threatened to be destroyed or damaged does not in the judgment of the Court exceed \$100 000.

3.24 Offences under section 199 of the **Crimes Act 1958** (possessing anything with intent to destroy or damage property), if the amount or value of the property alleged to be intended to be destroyed or damaged does not in the judgment of the Court exceed \$100 000.

3.25 Offences under section 247B of the **Crimes Act 1958** (computer offences), if the maximum penalty does not exceed level 5 imprisonment.

3.26 Offences under section 314 of the **Crimes Act 1958** (perjury).

3.27 Offences under section 321G of the **Crimes Act 1958** (incitement) which are alleged to have been committed in relation to an indictable offence to which section 28(1) of this Act applies.

3.28 Offences under section 321M of the **Crimes Act 1958** (attempt) which are alleged to have been committed in relation to an indictable offence to which section 28(1) of this Act applies.

3.29 Offences under section 325 of the **Crimes Act 1958** (accessories) which are alleged to have been committed in relation to a serious indictable offence (within the meaning of that section) to which section 28(1) of this Act applies.

3.30 Offences under section 326(1) of the **Crimes Act 1958** (concealing offences for benefit) which are alleged to have been committed in relation to a serious indictable offence (within the meaning of that section) to which section 28(1) of this Act applies.

4 Dangerous Goods Act 1985

4.1 Indictable offences under the **Dangerous Goods Act 1985**.

5 Drugs, Poisons and Controlled Substances Act 1981

5.1 Indictable offences under the **Drugs, Poisons and Controlled Substances Act 1981**, except for offences against sections 71, 71AA, 72 and 72A and offences against the following provisions as in force before the commencement of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2001**—

(a) section 71(1) where the alleged offence is committed in relation to a quantity of a drug of dependence that is not less than the commercial quantity applicable to that drug of dependence;

(b) section 72(1) where the alleged offence is committed in relation to a quantity of a drug of dependence, being a narcotic plant, that is not less than the commercial quantity applicable to that narcotic plant.

6 Electricity Industry Act 2000

6.1 Offences by a body corporate under section 97(7) of the **Electricity Industry Act 2000**.

6.2 Offences under section 97(11) of the **Electricity Industry Act 2000**.

7 Electricity Safety Act 1998

7.1 Offences under section 141A of the **Electricity Safety Act 1998**, but the maximum penalty that the court may impose on a body corporate is 10 000 penalty units.

8 Environment Protection Act 1970

8.1 Indictable offences under the **Environment Protection Act 1970**, but if there are 2 or more accused, one of whom is a natural person charged under section 66B of that Act, and the charges must be heard together, the maximum fine that the

Court may impose on the natural person in respect of a single offence is 2500 penalty units.

Note

See section 56 as to when charges must be heard together.

9 Equipment (Public Safety) Act 1994

9.1 Indictable offences under the **Equipment (Public Safety) Act 1994**.

10 Firearms Act 1996

10.1 Offences under section 5(1A) of the **Firearms Act 1996** (offence for prohibited person to possess, carry or use unregistered firearm).

10.2 Offences under section 7B(2) of the **Firearms Act 1996** (offence to possess, carry or use an unregistered category E handgun).

11 Food Act 1984

11.1 Indictable offences under the **Food Act 1984**.

12 Gas Industry Act 2001

12.1 Offences under section 186(9) or 210(1) of the **Gas Industry Act 2001**.

12.2 Offences by a body corporate under section 208(5) of the **Gas Industry Act 2001**.

13 Gas Safety Act 1997

13.1 Offences under section 107 of the **Gas Safety Act 1997**, but the maximum penalty that the court may impose on a body corporate is 10 000 penalty units.

14 Health Records Act 2001

14.1 Offences under section 71(1) of the **Health Records Act 2001** (non-compliance with enforcement notice—health information).

Sch. 2

15 Heritage Act 1995

15.1 Indictable offences under Part 4, Part 5 or Part 8 of the **Heritage Act 1995**.

16 Infertility Treatment Act 1995

16.1 Indictable offences under the **Infertility Treatment Act 1995**.

17 Information Privacy Act 2000

17.1 Offences under section 48(1) of the **Information Privacy Act 2000** (non-compliance with compliance notice).

18 Juries Act 2000

18.1 Offences under section 66(1), 77(1), 78(1), 78(2) or 78(6) of the **Juries Act 2000**.

19 Major Events (Aerial Advertising) Act 2007

19.1 Offences under section 10 of the **Major Events (Aerial Advertising) Act 2007**.

20 Occupational Health and Safety Act 2004

20.1 Indictable offences under the **Occupational Health and Safety Act 2004**.

21 Police Regulation Act 1958

21.1 Offences under section 127A(1AB) of the **Police Regulation Act 1958**.

22 Pollution of Waters by Oil and Noxious Substances Act 1986

22.1 Indictable offences under the **Pollution of Waters by Oil and Noxious Substances Act 1986**, but subject to section 24C of that Act.

23 Prostitution Control Act 1994

23.1 Offences under section 6(1) of the **Prostitution Control Act 1994** (obtaining payment for sexual services provided by a child).

23.2 Offences under section 7(1) of the **Prostitution Control Act 1994** (agreement for provision of sexual services by a child).

24 Road Management Act 2004

24.1 Indictable offences under section 48B, 48C or 48D of the **Road Management Act 2004**.

25 Sex Offenders Registration Act 2004

25.1 Offences under section 46(1) of the **Sex Offenders Registration Act 2004**.

26 Sports Event Ticketing (Fair Access) Act 2002

26.1 Indictable offences under the **Sports Event Ticketing (Fair Access) Act 2002**.

27 Tobacco Act 1987

27.1 Offences against section 6(2D), 7(5), 8(3) or 9(5) of the **Tobacco Act 1987**.

28 Water Act 1989

28.1 Indictable offences under section 137A(1) or (2) of the **Water Act 1989**.

29 Water Industry Act 1994

29.1 Indictable offences under section 62A(1) or (2) of the **Water Industry Act 1994**.

SCHEDULE 3

Sections 38, 47, 112

**PERSONS WHO MAY WITNESS STATEMENTS IN
PRELIMINARY BRIEF, FULL BRIEF OR HAND-UP BRIEF**

- 5 1 A member of the police force of Victoria or of any other
 2 State or of the Northern Territory.
- 3 A member of the Australian Federal Police.
- 4 An officer at Customs level 2 or higher in the Australian
10 5 Customs Service.
- 6 An officer at Australian Public Service level 5 or higher
 7 in the Australian Securities and Investments Commission.
- 8 A person employed at Victorian Public Service Grade 4
 9 or higher classification under Part 3 of the **Public**
 10 **Administration Act 2004** in the Office of Police
 11 Integrity under the **Police Integrity Act 2008**.
- 15 12 An officer at Australian Public Service level 5 or higher
 13 who is an Investigator in the Investigations Branch of the
 14 Department of Education, Employment and Workplace
 15 Relations.
- 20 16 An officer at Australian Public Service level 5 or higher
 17 who is a member of the Investigations Branch of the
 18 Inspector General Group in the Department of Defence.
- 19 A person who is an authorised officer for the purposes of
 20 Part 9 of the Law Enforcement Integrity Commissioner
 21 Act 2006 of the Commonwealth.
- 25 22 A person who is an inspector appointed under section
 23 267(1)(a) or (b) of the Radiocommunications Act 1992 of
 24 the Commonwealth.
- 30 25 A person appointed under regulation 42 of the
 26 Radiocommunications Regulations 1993 of the
 27 Commonwealth as an authorised person for those
 28 Regulations.
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- 11 A person who is an inspector for the purposes of a provision of the Telecommunications Act 1997 of the Commonwealth by force of section 533(1)(a) or (b) of that Act.
- 5 12 An Investigations Officer at Australian Public Service level 5 or higher in the Department of Agriculture, Fisheries and Forestry.
- 10 13 An officer at Australian Public Service level 5 or higher who is an authorised person in relation to a provision of Part 6-2 of the Therapeutic Goods Act 1989 of the Commonwealth and employed in the Surveillance Unit, Therapeutic Goods Administration of the Department of Health and Ageing.
- 15 14 A member of the staff of the National Offshore Petroleum Safety Authority who is appointed as an OHS inspector under section 390 of the Offshore Petroleum Act 2006 of the Commonwealth.
- 20 15 A member of the staff of the Australian Crime Commission who is an Investigator.
- 25 16 An Investigation Officer, or a Senior Investigation Officer or the Manager, Investigations in the Health Insurance Commission.
- 30 17 An officer at Australian Public Service level 5 or higher or an equivalent level who is a Fraud Investigator or Fraud Investigator Manager in the Commonwealth Services Delivery Agency (Centrelink).
- 35 18 An officer at Australian Public Service level 5 or higher who is an Investigator or Senior Investigator in the Passport Fraud Section of the Department of Foreign Affairs and Trade.
- 19 An officer at Australian Public Service level 5 or higher who is an investigator in the Australian Taxation Office.
- 20 An authorised officer under the **Environment Protection Act 1970**.
- 21 An authorised officer under the **Building Act 1993**.
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Sch. 3

- 5
- 22 An authorised officer within the meaning of the **Fisheries Act 1995**.
- 23 An inspector within the meaning of the **Dangerous Goods Act 1985, Equipment (Public Safety) Act 1994** or **Occupational Health and Safety Act 2004**.
- 10
- 24 A full-time or part-time officer of the Royal Society for the Prevention of Cruelty to Animals who is approved as a general inspector under section 18 of the **Prevention of Cruelty to Animals Act 1986**.
- 15
- 25 An employee of the Australian Postal Corporation who is appointed by the Corporation to act as a Corporate Investigator.
- 26 An officer at Australian Public Service level 5 or higher who is a member of the National Investigations Unit of the Department of Education, Science and Training.
- 27 An officer at Australian Public Service level 5 or higher who is an Investigator or Investigation Manager in the Insolvency and Trustee Service Australia.
- 20
- 28 An authorised officer within the meaning of the **Radiation Act 2005**.
- 29 A transport safety officer within the meaning of the **Transport Act 1983**.
- 30 Any other person, or a member of a class of persons, prescribed by the rules of court.
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ENDNOTES

By Authority. Government Printer for the State of Victoria.